

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO.
011982, HAPAG-LLOYD AG, HMM CO.
LTD., MAERSK A/S, MSC MEDITERRANEAN
SHIPPING COMPANY S.A., OCEAN NETWORK
EXPRESS PTE. LTD., WAN HAI LINES LTD., YANG
MING MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

**REPLY TO RESPONDENTS’ RESPONSE TO IMCC’S STATEMENT OF
UNDISPUTED MATERIAL FACTS**

IMCC hereby submits this Reply to the Respondents’ Response to IMCC’s Statement of
Undisputed Material Facts.

TABLE OF CONTENTS – IMCC’S REPLY

I. IMCC HAS STANDING.7

II. RESPONDENT OCEAN CARRIERS DIVESTED THEIR CHASSIS FLEETS AND ENTERED INTO AGREEMENTS WITH IEPS FOR CHASSIS PROVISIONING.24

A. The Chassis Paradigm Shift.....26

B. Business Models for the Provision of Chassis.....33

C. Loading of Chassis at Intermodal Terminals.....41

III. RESPONDENT OCEAN CARRIERS’ POLICIES AND PRACTICES DEMONSTRATE THAT CCM RULES 5.5 AND 5.7 RESTRICT CHASSIS CHOICE AND THAT LESS INTRUSIVE ALTERNATIVES ACHIEVE AN ADEQUATE SUPPLY OF CHASSIS.53

A. Respondent Ocean Carriers Approved and Implemented Rules 5.5 and 5.7 Which Permit Them or Their IEPs to Exercise Veto Power Over Chassis Choice.....53

B. Pursuant to Rule 5.5 and 5.7, Respondent Ocean Carriers Establish and Implement Chassis Policies Restricting or Permitting Choice on a Normal, Customary, and Continuous Basis.....61

C. Motor Carriers and BCOs Are Increasingly Exercising Chassis Choice.....107

IV. RESPONDENT OCEAN CARRIERS’ CONTRACTS WITH IEPS LINK CH RATES TO MH VOLUME.108

A. Ocean Carriers’ Contracts with IEPs Link CH/MHE Rates to MH Volume.....108

B. Each Ocean Carrier Designates One IEP as the “Exclusive,” “Default,” “Dedicated,” “Unitary Pool Concept Equipment Supplier,” “Recommended,” or “Preferred” Provider for CH Moves and/or for MH Moves.202

C. The Lower CH Rates Paid By Respondent Ocean Carriers Are Subsidized By the Higher MH Rates Paid By Motor Carriers and BCOs.....292

D. Chassis Choice is Not Available in Proprietary Pools, Giving IEPs Negotiating Leverage Over Motor Carriers and BCOs for MH Rates.311

E. MH Rates are Lower When Chassis Choice is Available, and Motor Carriers Have Paid Higher MH Rates Because of the Lack of Chassis Choice.315

V. RESPONDENT OCEAN CARRIER CONTRACTS THAT REQUIRE USAGE OF IEP PROPRIETARY POOLS INSTEAD OF CCM INTEROPERABLE GRAY POOLS REDUCE COMPETITION FOR MH RATES AND INCREASE COSTS ON SUPPLY CHAIN STAKEHOLDERS.326

A. Respondent Ocean Carriers Enter into Contracts That Transition Them Out of CCM Interoperable Pools and Into IEP Proprietary Pools.326

B. Respondent Ocean Carriers Agreed that Interoperable Gray Pools Benefit the Intermodal Supply Chain.362

C. Despite Their Agreement that Interoperable Gray Pools Benefit the Intermodal Supply Chain, Respondent Ocean Carriers Chose Their Short Term Financial Interests Instead.378

VI. THE RESPONDENTS’ CONDUCT HAS HARMED MOTOR CARRIERS, BCOS, AND THE SHIPPING PUBLIC.....388

A. The Closure of the COCP and the Fragmentation of the MCCP Have Resulted in Decreased Productivity and Increased Costs for Motor Carriers and Their Customers.388

B. The Lack of Interoperable Chassis Pools Increases Supply Chain Inefficiencies and Costs.....400

VII. LESS INTRUSIVE ALTERNATIVES TO THE CHALLENGED CONDUCT EXIST.....410

VIII. THE MARKETS IN WHICH THE RESPONDENTS’ CONDUCT SHOULD BE ASSESSED.414

A. Relevant Product Markets.....414

B. Relevant Geographic Markets.....434

IX. ADDITIONAL FACTS.....439

Prefatory Notes Regarding Respondents' Admissions

A. Respondents have Admitted the following Statements without comment or reservation:

SUMF ¶¶ 9, 11, 15-28, 31-33, 35-36, 41-43, 45-47, 50-51, 59-68, 73, 79, 81, 83-84, 89-92, 98-99, 104, 106, 124-127, 129, 132, 138-140, 144, 155, 158, 161-162, 166-168, 172, 177-182, 190-193, 197-198, 202-208, 216-220, 227, 229, 238-242, 244-247, 255-257, 259-260, 262-263, 265-266, 268-272, 276, 284, 286-287, 289-291, 293-296, 300-319, 331-333, 340, 343-350, 353-355, 357-360, 363-364, 367-368, 371-372, 374, 376-379, 383-384, 389-390, 435-436, 445-457, 522, 556, 571, 578, 580-586, 588-597, 605, 607-610, 636, 646-647, 678-680, 683, 685-687, 693, 696-697, 701, 705, 711, 714, 720, and 724-730.

B. Respondents have in many instances admitted or denied certain Statements by asserting solely that the Statement was not “material.” Because Respondents have submitted no citations demonstrating the existence of a genuine issue as to the fact, in accordance with Initial Order ¶ 16 these Statements should be deemed undisputed and therefore Admitted. Decisions as to the materiality of a Statement are to be determined by the Presiding Officer. These Statements are: SUMF ¶¶ 7-8, 57, 113, 173, 174, 176, 200-201, 277, 298, 507-509, 614, 622-623, 639-640, 659, 661, 664-665, 667-668, 670, 672, and 675-676.

C. Respondents have failed to respond to numerous Statements with “an exact citation to evidence that the responding party contends will rebut the evidence the proposing party claims supports the fact.” Initial Order ¶ 16. In accordance with the Initial Order, the following Statements that should be deemed admitted are:

SUMF ¶¶ 7-8, 12-14, 52-58, 69-72, 74-76, 80, 82, 85-86, 110-113, 117-120, 136, 148, 159, 173-176, 200-201, 209-210, 248, 252-253, 277, 356, 505-509, 524, 526, 529-530, 535-536, 542-544, 546-555, 557-559, 561, 563-570, 572, 574-577, 598-604, 606, 611-612, 614, 619, 621-623, 625-

626, 631-632, 637-642, 648-650, 659, 661, 664-665, 667-668, 670, 672, 675-676, 702, 706, 708, and 719.

D. Respondents have denied Statements based on an assertion that “efficiency” is not material or relevant pursuant to the Order Denying Respondents’ Motion for Leave to File Interlocutory Appeal at 6. IMCC’s understanding of that Order, particularly in light of the reference to the relevance of inefficiencies in the Order Denying Motion to Dismiss at 7, is that facts concerning “efficiency” *are* material and relevant to whether Respondents’ practices are unjust and unreasonable; but that more than a showing of inefficiency alone is needed to establish a violation of section 41102(c). In addition, Respondents’ own documents explain that

[REDACTED]

[REDACTED]. IMCC SUMF ¶¶ 658-76. Where Respondents have failed to support their denials with specific citations demonstrating the existence of a genuine issue as to the fact, in accordance with Initial Order ¶ 16 these Statements should be deemed undisputed and therefore Admitted. These Statements are:

SUMF ¶¶ 7-8, 12-14, 52-57, 70-72, 524-525, 559, 612, 614, 619, 621-623, 637-642, 649-650, 659, 661, 664-665, 667-668, 670, 672, and 675-676.

E. Respondents cite in their Responses two expert declarations submitted long after the deadlines for the disclosure of expert and rebuttal reports established in the Fourth Amended Scheduling Order of December 7, 2021. That Order required the parties to disclose initial expert reports by February 28, 2022, and rebuttal reports by March 18, 2022. In contravention of those deadlines, Respondents attached to their summary decision motion the Declaration of Mr. Douglas Coates in Support of Respondents’ Motions for Summary Decision, dated April 29, 2022; and, to their Opposition to IMCC’s Motion for Summary Decision, the Declaration of Dr.

James Reitzes, dated May 27, 2022. As IMCC explains in its Motion to Strike Untimely Expert Declarations from Respondents, there is no reason why these new dilatory expert reports could not have timely been disclosed—particularly insofar as they respond to the initial reports of IMCC’s experts. Because Respondents first disclosed these untimely declarations in violation of the Scheduling Order, IMCC requests that the Presiding Officer should strike all references to these dilatory expert reports, and deem admitted all Statements where those reports form the basis of the denial. These Statements are:

SUMF ¶¶ 2, 94, 97, 108-110, 187-189, 194-195, 199, 243, 249-251, 258, 261, 264, 267, 330, 396-434, 437-444, 458-495, 513, 516-519, 537-541, 545, 624, 628-630, 633, 677, 682, and 736.

F. IMCC re-inserts below the headings from its Statement of Material Fact that Respondents unilaterally removed in their responses. IMCC included the headings solely as helpful guideposts to the subject of the following Statements, and not as independent statements of fact to be admitted or denied.¹

IMCC’s Reply

1. IMCC hereby incorporates the Joint Stipulation of Facts in full. *See* Dkt. 87, 88.

RESPONSE: To the extent the Joint Stipulations of Fact are material to IMCC’s Motion, they are admitted. To the extent the Joint Stipulations of Fact refer to information that is not material or relevant to IMCC’s Motion, they are denied.

REPLY: All of the Joint Stipulations have, by definition, been Admitted by Respondents.

Decisions as to the materiality of a Stipulation are to be determined by the Presiding Officer.

¹ Additionally, Respondents’ Responses removed the paragraph number for paragraph 427. *See* May 27, 2022 Respondents’ Response to IMCC Statement of Material Facts, p. 176 (“[REDACTED]” *Id.* at 011.”). Therefore, paragraph numbers 427 through the end of Respondents’ Response to IMCC Statement of Material Facts are incorrect. IMCC re-inserted the paragraph number in this Reply, therefore the paragraph numbering in this Reply is accurate. *See infra*, ¶ 427.

I. IMCC HAS STANDING.

2. IMCC members have suffered harm as the result of Respondents’ conduct.

RESPONSE: Denied. This SUMF is argumentative and conclusory and does not contain a concise statement of material fact. Without prejudice, Respondents summarize below some of the substantial evidence confirming that IMCC members have not been harmed:

- Allegations that IMCC members sustained \$1.8 billion in damages has been shown to be demonstrably false. The flaws in the methodology by which this damages claim has been calculated have been set forth in detail in [REDACTED]

[REDACTED]

[REDACTED]. Briefly, the flaws in the damages calculation include:

[REDACTED]

Further evidence showing that IMCC members actually profit from the assessment of chassis use charges is set forth below.

- [REDACTED]

- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact that motor carriers have suffered harm, as set out subsequently in IMCC’s Statement of Undisputed Material Facts. *See infra*, ¶¶ 496-545 ([REDACTED]
[REDACTED]
[REDACTED]). Respondents’ assertions regarding

² “APP” refers to documents in the Appendix filed by Respondents in support of their Motion for Summary Judgment.

“damages” are not material to the issue of associational standing. Respondents’ additional assertions regarding motor carriers’ charges to their customers are irrelevant to this proceeding. *See* IMCC Resp. SUMF ¶¶ 232-38. Further, Respondents ignore the undisputed facts in the record regarding the harms caused by a lack of interoperable chassis pools, the closure of the COCP, and the fragmentation of the MCCP. *See infra*, ¶¶ 637-76.

3. At least one IMCC member paid invoices to the designated IEP participating in the Pool-of-Pools in Los Angeles/Long Beach to transport containers of each of the Respondents. *See* CX00004463 (showing TRAC Intermodal billing IMC \$[REDACTED] for daily rental chassis to move a CMA container; DCLI billing IMC \$[REDACTED] for daily rental chassis to move a COSCO container; DCLI billing IMC \$[REDACTED] for daily rental chassis to move an Evergreen container; DCLI billing IMC \$[REDACTED] for daily rental chassis to move a Hapag-Lloyd container; DCLI billing IMC \$[REDACTED] for daily rental chassis to move an HMM container; DCLI billing IMC \$[REDACTED] for daily rental chassis to move a Maersk container; DCLI billing IMC \$[REDACTED] for daily rental chassis to move a MSC container; Flexi-Van billing IMC \$[REDACTED] for daily rental chassis to move an ONE container; TRAC Intermodal billing IMC \$[REDACTED] for daily rental chassis to move a Wan Hai container; TRAC Intermodal billing IMC \$[REDACTED] for daily rental chassis to move a Yang Ming container; and TRAC Intermodal billing IMC \$[REDACTED] for daily rental chassis to move a ZIM container).

RESPONSE: Denied. This SUMF does not contain a concise statement of material fact in violation of Initial Order, ¶15. CX00004463 is an excel document containing 122,008 container movements and it is burdensome and unreasonable for IMCC to require Respondents to search through such a large volume of data for the eleven entries set forth in this SUMF. Further, an allegation of violation under Section 41102(c) requires the demonstration of a pattern of

- [REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]

REPLY: There is no dispute of material fact. This statement is a single proposition supported by citations to the record. Respondents’ assertions do not contradict that at least one IMCC member paid invoices to the designated IEP participating in the Pool-of-Pools in Los Angeles/Long Beach to transport containers of each of the Respondents. The record contains at least one such example for each Respondent. *See* CX00004463 (row 4675: TRAC Intermodal billing IMC [REDACTED] for daily rental chassis to move a CMA container; row 20036: DCLI billing IMC [REDACTED] for daily rental chassis to move a COSCO container; row 25567: DCLI billing IMC [REDACTED] for daily rental chassis to move a Hapag-Lloyd container; row 28036: DCLI billing IMC [REDACTED] for daily rental chassis to move an HMM container; row 26001: DCLI billing IMC [REDACTED] for daily rental chassis to move a Maersk container; row 23386: DCLI billing IMC [REDACTED] for daily rental chassis to move a MSC container; row 1018: Flexi-Van billing IMC [REDACTED])

³ The dollar amount in the original citation has been corrected.

█████ for daily rental chassis to move an ONE container; row 4727: TRAC Intermodal billing IMC █████ for daily rental chassis to move a Wan Hai container; row 4667: TRAC Intermodal billing IMC █████ for daily rental chassis to move a Yang Ming container; and row 5102: TRAC Intermodal billing IMC █████ for daily rental chassis to move a ZIM container); *see also* CX00004459⁴ (row 46070: DCLI billing IMC █████ for daily rental chassis to move an Evergreen container). Further, this statement is material to establishing IMCC's standing; a pattern of conduct is not required to establish IMCC's associational standing.

4. At least one IMCC member paid invoices to TRAC, DCLI, or Flexi-Van, or NACPC with respect to the transport of containers of each of the Respondents (other than Wan Hai) in to and from terminals in the Chicago region. *See* CX00002764 (showing TRAC Intermodal billing CPG \$█████ for daily rental chassis to move a CMA container; DCLI billing CPG \$█████ for daily rental chassis to move a COSCO container; TRAC Intermodal billing CPG \$█████ for daily rental chassis to move a Hapag-Lloyd container; DCLI billing CPG \$█████ for daily rental chassis to move an HMM container; DCLI billing CPG \$█████ for daily rental chassis to move a Maersk container; TRAC Intermodal billing CPG \$█████ for daily rental chassis to move a MSC container; Flexi-Van billing CPG \$█████ for daily rental chassis to move an ONE container; TRAC Intermodal billing CPG \$█████ for daily rental chassis to move a Yang Ming Container; and TRAC Intermodal billing CPG \$█████ for daily rental chassis to move a ZIM container); CX00002770 (Fehribach Dep. Ex. 13) (showing DCLI billing CPG \$█████ for daily rental chassis to move an Evergreen container).

RESPONSE: Denied. This SUMF does not contain a concise statement of material fact in violation of Initial Order, ¶15. CX00002764 is an excel document containing 144,515 container

⁴ This is the correct citation for the Evergreen example.

movements and it is burdensome and unreasonable for IMCC to require Respondents to search through such a large volume of data for the nine entries set forth in this SUMF and for the single entry involving Evergreen in CX00002770. Further, an allegation of violation under Section 41102(c) requires the demonstration of a pattern of unlawful conduct and a single instance herein alleged for each ocean carrier Respondent does not constitute a pattern of conduct for a Section 41102(c) violation. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Further reasons for

Respondents’ denial are set forth below:

- [REDACTED]
- [REDACTED]

- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]S.
- [REDACTED]
[REDACTED].
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].
- [REDACTED]
[REDACTED]
[REDACTED]

- [REDACTED]
- [REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. This statement is a single proposition supported by citations to the record. Respondents’ assertions regarding “profit” are immaterial and do not contradict that at least one IMCC member paid invoices to TRAC, DCLI, or Flexi-Van, or NACPC with respect to the transport of containers of each of the Respondents (other than Wan Hai) in to and from terminals in the Chicago region. The record contains at least one such example for each Respondent. Further, this statement is material to establishing IMCC’s standing; a pattern of conduct is not required to establish IMCC’s associational standing. The correct citation for the cited Evergreen and MSC examples is CX00002770. This PDF document was created by Respondents out of a spreadsheet produced by IMCC; the complete spreadsheet in native format is included in IMCC’s Reply Appendix. *See* CX00006322 (row 6604: DCLI billing CPG [REDACTED] for daily rental chassis to move an Evergreen container; row 93794: TRAC Intermodal billing CPG [REDACTED] for daily rental chassis to move a MSC container).

5. At least one IMCC member paid invoices to TRAC, DCLI, or Flexi-Van, or NACPC with respect to the transport of containers of each of the Respondents (other than Wan Hai) in to and from terminals in the Memphis region. *See* CX00002764 (showing TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a CMA container; NACPC billing CPG \$ [REDACTED] for daily rental chassis to move a COSCO container; TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a Hapag-Lloyd container; DCLI billing CPG \$ [REDACTED] for daily rental chassis to move an HMM container; DCLI billing CPG \$ [REDACTED] for daily rental chassis to move a Maersk container; TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a MSC container; NACPC billing CPG \$ [REDACTED] for daily rental chassis to move an ONE container; TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a Yang Ming container; and TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a ZIM container); CX00002770 (Fehribach Dep. Ex. 13) (showing DCLI billing CPG \$ [REDACTED] for daily rental chassis to move an Evergreen container).

RESPONSE: Denied. This SUMF does not contain a concise statement of material fact in violation of Initial Order, ¶15. CX00004463 is an excel document containing 144,515 container movements and it is burdensome and unreasonable for IMCC to require Respondents to search through such a large volume of data for the ten entries set forth in this SUMF. Further, an allegation of violation under Section 41102(c) requires the demonstration of a pattern of unlawful conduct and a single instance herein alleged for each ocean carrier Respondent does not constitute a pattern of conduct for a Section 41102(c) violation. In addition, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Further reasons for Respondents denial are set forth below:

- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. This statement is a single proposition supported by citations to the record. Respondents’ assertions regarding “profit” are immaterial and do not contradict that at least one IMCC member paid invoices to TRAC, DCLI, or Flexi-Van, or NACPC with respect to the transport of containers of each of the Respondents (other than Wan Hai) in to and from terminals in the Memphis region. The record contains at least one such example for each Respondent. Further, this statement is material to establishing IMCC’s standing; a pattern of conduct is not required. As to COSCO, the cited example can be found at row 65345 of CX00002764, as cited. A NACPC charge is cited because [REDACTED] [REDACTED]. See JSF ¶¶ 214-15, 218-21. As to MSC, the cited example can be found at row 14216 of CX00002764, as cited. The correct citation for the cited Evergreen example is CX00002770. This PDF document was created by Respondents out of a spreadsheet produced by IMCC; the complete spreadsheet in native format is included in IMCC’s Reply Appendix. See CX00006322 (row 8293: DCLI billing CPG [REDACTED] for daily rental chassis to move an Evergreen container).

6. At least one IMCC member paid invoices to TRAC, DCLI, or Flexi-Van, or NACPC with respect to the transport of containers of each of the Respondents (other than Wan Hai) in to and from terminals in the Savannah region. See CX00002764 (showing TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a CMA container; TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a COSCO container; NACPC billing CPG \$ [REDACTED] for daily rental chassis to move a Hapag-Lloyd container; DCLI billing CPG \$ [REDACTED] for daily rental chassis to move an HMM container; DCLI billing CPG \$ [REDACTED] for daily rental chassis to move a Maersk container; TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move an ONE container; TRAC Intermodal billing CPG \$ [REDACTED] for daily

rental chassis to move a Yang Ming container; and TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a ZIM container); CX00002770 (Fehribach Dep. Ex. 13) (showing DCLI billing CPG \$ [REDACTED] for daily rental chassis to move an MSC container); Evergreen Shipping Invoice, CX00006143 (Mark George Dep. Ex. 53) at 143-44 (invoicing IMC \$ [REDACTED] for daily rental chassis to move an Evergreen container).

RESPONSE: Denied. This SUMF does not contain a concise statement of material fact in violation of Initial Order, ¶15. CX00004463 is an excel document containing 144,515 container movements and it is burdensome and unreasonable for IMCC to require Respondents to search through such a large volume of data for the eight entries set forth in this SUMF. An allegation of violation under Section 41102(c) requires the demonstration of a pattern of unlawful conduct and a single instance herein alleged for each ocean carrier Respondent does not constitute a pattern of conduct for a Section 41102(c) violation. In addition, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Further reasons

for Respondents denial are set forth below:

- [REDACTED]
[REDACTED]
[REDACTED]

• [REDACTED]

• [REDACTED]

████████████████████

• [REDACTED]

• [REDACTED]

15 JULY 2004

• [REDACTED]

-
- A horizontal bar chart with 14 bars, grouped into four sets. Each bar is black and has a small black dot at its right end. The bars vary in length, with the longest bar in the third group and the shortest bar in the fourth group.

REPLY: There is no dispute of material fact. This statement is a single proposition supported by citations to the record. Respondents’ assertions regarding “profit” are immaterial and do not contradict that at least one IMCC member paid invoices to TRAC, DCLI, or Flexi-Van, or NACPC with respect to the transport of containers of each of the Respondents (other than Wan Hai) in to and from terminals in the Savannah region. The record contains at least one such example for each Respondent. Further, this statement is material to establishing IMCC’s

standing; a pattern of conduct is not required. In addition, Respondents' assertion regarding Evergreen is incorrect because Evergreen's per diem charge covers daily chassis usage. *See* IMCC Resp. SUMF ¶ 96. The correct citation for the cited MSC example is CX00002770. This PDF document was created by Respondents out of a spreadsheet produced by IMCC; the complete spreadsheet in native format is included in IMCC's Reply Appendix. *See* CX00006322 (row 5023: DCLI billing CPG [REDACTED] for daily rental chassis to move a MSC container).

7. At least one IMCC member has suffered injury from Respondents not being served by chassis in the COCP in Chicago and the COCP's subsequent closure. *See* Lhotak (Reliable) Dep., CX00000477 at 180:7-181:3; *see also infra*, Section VI.A.

RESPONSE: Denied. The referenced testimony contains general assertions regarding the efficiency of chassis operations in Chicago that are not material. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Facts regarding harms from the closure of the COCP are material to IMCC's arguments that Respondent ocean carriers' decisions and agreements to withdraw from existing interoperable chassis pools are unjust and unreasonable (IMCC MSD 22-25) and that Respondents' conduct harms motor carriers and the supply chain (IMCC MSD 28-29).

8. At least one IMCC member has been injured by certain Respondent ocean carrier's non-participation (or prospective non-participation) in the MCCP. *See* Scott George (TCW) Dep., CX00000640 at 144:16-145:19, 148:10-151:7 (testifying that the lack of ocean carrier participation and interoperable chassis pools like the MCCP increases chassis splits and

TCW's cost and summarizing Ex. 41); CX00005566 (Scott George Dep. Ex. 41); *see also infra*, Section VI.A.

RESPONSE: Denied. The referenced testimony contains general assertions regarding the efficiency of chassis operations in Memphis which are not material. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Facts regarding harms from the fragmentation of the MCCP are material to IMCC's arguments that Respondent ocean carriers' decisions and agreements to withdraw from existing interoperable chassis pools are unjust and unreasonable (IMCC MSD 22-25) and that Respondents' conduct harms motor carriers and the supply chain (IMCC MSD 28-29).

II. RESPONDENT OCEAN CARRIERS DIVESTED THEIR CHASSIS FLEETS AND ENTERED INTO AGREEMENTS WITH IEPS FOR CHASSIS PROVISIONING.

9. Containers used in the international movement of cargo are standardized under standards published by the International Standards Organization. The most common container sizes are 20-foot, 40-foot and 40-foot "high cube." Because they are standardized, ISO-compliant containers can be handled by ports and inland terminals equipped to handle such containers, as well as providers of rail, barge, and road transportation. Rodrigue Initial Expert Report, CX00001362 at ¶ 16, CX00001522-23.

RESPONSE: Admitted.

10. Chassis are used in "receiving, handling, storing or delivering property," 46 U.S.C. § 41102(c), that is, the cargo in the ocean containers that are mounted on them.

RESPONSE: Denied. This SUMF is argumentative and conclusory statement regarding subject matter jurisdiction, which has been contested as a matter of law. (*See*, Respondents' Motion for

Summary Judgment, Point IV; Respondents’ Memorandum of Law in Opposition to Complainant’s Motion for Summary Decision, Point II A)

REPLY: There is no dispute of material fact. Respondents have offered no evidence to rebut the fact that chassis are used in receiving, handling, storing, or delivering the cargo in the ocean carriers that are mounted on them.

11. A chassis used by motor carriers to move containers between intermodal terminals and shipping facilities “is a frame with a suspension and axle system, wheels and tires, brakes, a lighting and electrical system, a coupling for towing behind a truck tractor, and twistlocks that provide the securement points to the corner castings on a container. Newly constructed and remanufactured chassis often have high-tech components such as asset tracking, or GPS, weight sensors and automatic tire inflation systems.” “Intermodal Factbook: An Introduction to Intermodal Freight Transportation,” CX00003961 at 976.

RESPONSE: Admitted.

12. Like containers, chassis are designed to be interoperable and to carry ISO-standard containers, though some may be limited to specific chassis lengths, such as 20 or 40-foot containers. Rodrigue Initial Expert Report, CX00001362 at ¶ 16.

RESPONSE: Denied. This SUMF does not contain facts which are material (Order, at p. 6) and furthermore the assertion herein that chassis are designed to be interoperable is conclusory.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. This statement is material as it relates to the fact that chassis pools can be interoperable.

13. Some chassis may be expandable to handle additional container sizes, including 53-foot domestic containers or specialty sizes, such as tri-axle containers. *Id.*

RESPONSE: Denied. This SUMF does not contain facts which are material. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. This statement is material as it relates to the fact that chassis pools can be interoperable.

14. Tri-axle containers are used to move heavy containers (often 20-foot) where state axle-load-limit regulations would otherwise prevent such heavy containers from being moved on public roads. Fehribach (CPG) Dep., CX00000329 at 43:19-25.

RESPONSE: Denied. This SUMF does not contain facts which are material. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. This statement is material as it relates to the fact that chassis pools can be interoperable.

A. The Chassis Paradigm Shift

15. The business models for provisioning chassis in the U.S. are unique. In other markets, motor carriers or logistics providers are responsible for the provision of chassis, with ocean carriers having no direct role in chassis provisioning. The evolution of the business models for the provision of chassis for the movement of marine cargo containers in the United States is an outgrowth of the historical circumstances in which cargo containers were first introduced in the United States and the business model for chassis provision reflects the nature of that introduction. *See* Coates Initial Expert Report, CX00001524 at 530-33.

RESPONSE: Admitted.

16. When containerization first emerged in the United States in the 1950s and early 1960s, its key driver/initiator was SeaLand, a container ocean carrier founded by Malcolm McLean. His original idea was to load chassis and containers/trailers onto the ship, but this idea turned out to be impractical. The use of containers without chassis or wheels proved to be more efficient, leading to a separation between containers and chassis operations that has remained since. As McLean had a trucking background, he considered the inland (truck) leg of containerization very important to the overall transport process. Therefore, strategic decisions made by SeaLand were aimed at supporting truck operations as part of intermodalism. Rodrigue Initial Expert Report, CX00001362 at ¶ 23; *see also* Coates Initial Expert Report, CX00001524 at 530.

RESPONSE: Admitted.

17. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] The ocean
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 24.

RESPONSE: Admitted.

18. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 25.

RESPONSE: Admitted

19. SeaLand was purchased by CSX in 1986, which brought a railroad’s intermodal perspective to the supply of chassis. Similarly, APL was a major innovator concerning the integration of rail into the intermodal system. It introduced the first intermodal trains in the late 1970s, with full container trains between Los Angeles and New York. Rodrigue Initial Expert Report, CX00001362 at ¶ 26; *see also* CX00001778, *History of APL Limited*,

FUNDINGUNIVERSE, <http://www.fundinguniverse.com/company-histories/apl-limited-history/>

(last visited Feb. 28, 2022); CX00006151, *APL Highlights Significant Contributions to*

Containerization, SEAPORTS PRESS REVIEW (Apr. 6, 2006),

https://web.archive.org/web/20061229100504/http://www.seaportspr.com/viewtechnews.cgi?newsletter_id=49&article_id=2200.

RESPONSE: Admitted.

20. Beginning in the 1990s, several mergers and alliances started to take place in the shipping industry, which complicated chassis operations. Once an alliance was established, chassis pools needed to be reorganized to reflect the new partnership structure. The outcome of this consolidation was the establishment of co-op pools, or “alliance pools” by ocean carriers.

These pools were an attempt to coordinate and make fully interoperable the regional chassis assets of IEPs. Rodrigue Initial Expert Report, CX00001362 at ¶ 27; *see also* CX00001783 at 822, CPCS Transcom, InterPro Advisory, Prime Focus, and Jean-Paul Rodrigue (2012), Guidebook for Assessing Evolving International Container Chassis Supply Models; CX00001966 at 968-69, 977, U.S. Government Accountability Office (“GAO”) (2021), Commercial Shipping: Information on How Intermodal Chassis Are Made Available and the Federal Government’s Oversight Role.

RESPONSE: Admitted.

21. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 28; *see also* CX00002436 (Wilson Dep. Ex 9) at 437.

RESPONSE: Admitted.

22. “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] . . . ” CX00002436 (Wilson Dep. Ex 9) at 437.

RESPONSE: Admitted.

23. CCM had six pool LLC subsidiaries. These subsidiaries and the port and inland terminal metropolitan areas that they served include: (1) Chicago & Ohio Valley Consolidated Chassis Pool LLC (Chicago, IL; Cleveland, OH; Cincinnati, OH; Columbus, OH; Detroit, OH; Indianapolis, IN; Louisville, KY); (2) Denver Consolidated Chassis Pool LLC (Denver, CO; Salt Lake City, UT); (3) Gulf Consolidated Chassis Pool LLC (Houston, TX; Dallas, TX; New Orleans, LA; El Paso, TX; Fort Worth, TX; San Antonio, TX); (4) Mid-South Consolidated Chassis Pool LLC (Memphis, TN; Nashville, TN); (5) Mid-West Consolidated Chassis Pool LLC (St. Louis, MO; Kansas City, KS; Omaha, NE); and (6) South Atlantic Chassis Pool LLC (Atlanta, GA; Charleston, SC; Charlotte, NC; Jacksonville, FL; Savannah, GA; Tampa, FL). Joint Stipulations at ¶ 200.

RESPONSE: Admitted.

24. On August 19, 2020, GCCP formally closed, and GCCP’s contracts with chassis contributors and users terminated as of that date. Joint Stipulations at ¶ 202.

RESPONSE: Admitted.

25. On August 19, 2020, the COCP formally closed and COCP’s contracts with chassis contributors and users terminated as of that date. Joint Stipulations at ¶ 204.

RESPONSE: Admitted.

26. The SACP operates under its own agreement, FMC Agreement No. 011980. Joint Stipulations ¶ 205.

RESPONSE: Admitted.

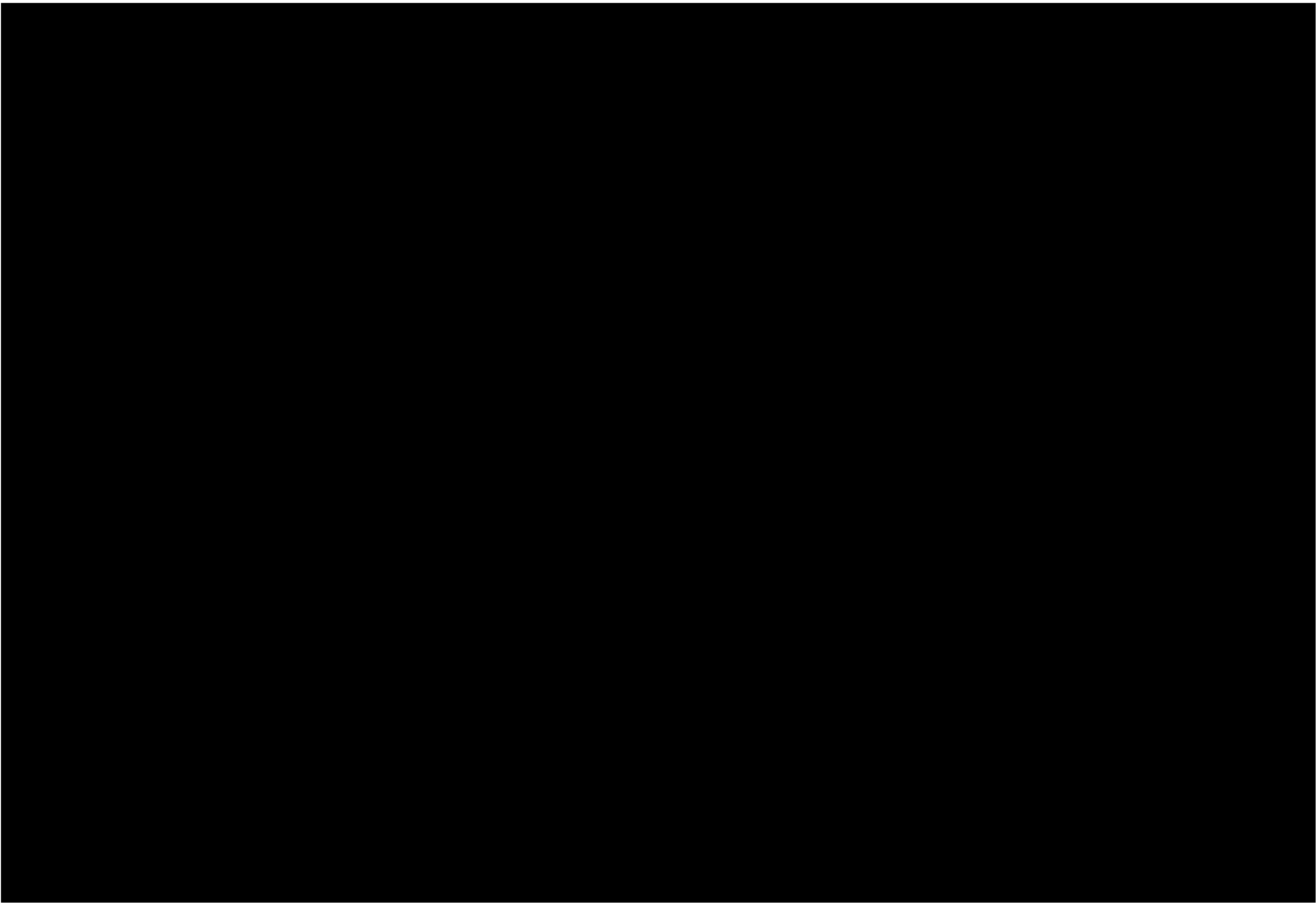
27. For ocean carriers wishing to make use of on-dock chassis at the Ports of Savannah, Jacksonville, and (currently) Charleston, use of the SACP is currently mandated by the Ports of Savannah and Jacksonville. Joint Stipulations at ¶ 207.

RESPONSE: Admitted.

28. “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” CX00002436 (Wilson Dep. Ex 9) at 437.

RESPONSE: Admitted.

29. CCM estimates that, as of the end of 2019, the U.S. chassis inventory was approximately [REDACTED]. Of these, [REDACTED] were owned by DCLI [REDACTED] FlexiVan [REDACTED]%), and TRAC [REDACTED]. Ocean carriers accounted for [REDACTED]. Motor carriers accounted for [REDACTED].



“OCEMA Senior Steering Committee” presentation (March 26, 2020), CX00004883 (Tock Dep. Ex. 13) at 890.

RESPONSE: Admitted that paragraph 29 is an accurate summary of the chart appearing at CX00004890.

30. [Redacted]

[Redacted]



Id. at 400.

RESPONSE: Denied. The chart reproduced above, and the summary preceding it, are not an accurate representation of the chart and data appearing in CX00004891 (Bates No. OCE0001400).

REPLY: There is no dispute of material fact. The correct citation for the chart above is the February 19, 2020 CCE Board Meeting Presentation. *See* CX00002259 at 265.

B. Business Models for the Provision of Chassis.

i. Interoperable “Gray” Pools with Choice: The CCM Model and Box Rules.

31. “Fully interoperable” or “gray” chassis pools are chassis pools managed by a single entity in which equipment contributed by multiple equipment providers are commingled. Joint Stipulations at ¶ 193.

RESPONSE: Admitted

32. A gray chassis pool does not require matching a specific equipment provider’s chassis with a particular ocean carrier’s containers. Joint Stipulations at ¶ 194.

RESPONSE: Admitted

33. The CCM business model is a gray pool model based on the contribution of chassis to an interoperable pool [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. Lawrence (OCEMA) Dep., CX00000448 at 90:15-92:21.

RESPONSE: Admitted

34. CCM’s strategy was to “ [REDACTED]
[REDACTED]
[REDACTED].” Minutes of the OCEMA Senior Steering Committee (December 5, 2012), CX00005275 (Wilson Dep. Ex. 1) at 277; *see also* Wilson (CCM) Dep., CX00000490 at 51:16-53:5 (agreeing that the minutes were an accurate description of CCM’s strategy as of Dec. 2012 and explaining the strategy as: “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED].”).

RESPONSE: Denied. This SUMF does not contain a concise statement of material fact in violation of Initial Order, ¶15. Respondents further deny that the first sentence of this SUMF is an accurate quotation from the referenced Minutes, CX00005275.

REPLY: There is no dispute of material fact. This statement is a single proposition supported by citations to the record. Further, Respondents do not deny the substance of this statement. The correct quotation is: “[REDACTED]” Minutes of the OCEMA Senior Steering Committee (December 5, 2012), CX00005275 (Wilson Dep. Ex. 1) at 277 (emphasis added).

35. CCM serves as the manager of its pools and is responsible for the maintenance and repair of contributed chassis for which services it bills chassis contributors as well as for other administrative fees. Coates Initial Expert Report, CX00001524 at 532-33.

RESPONSE: Admitted

36. CCM rules establish a mechanism for the assignment of chassis “usage” to a contributor, which gives that contributor the right to bill its customer for usage of a chassis regardless of the contributor of the chassis the customer physically uses. Tock (CCM) Dep., CX00000459 at 118:25-120:8.

RESPONSE: Admitted.

37. The need to establish such assignment rules began with the Maher Terminal pool in New Jersey. “[REDACTED]”

[REDACTED]

[REDACTED]

[REDACTED].”

CX00002436 (Wilson Dep. Ex 9) at 437.

RESPONSE: Denied. The excerpts from Ex. 9, CX00002436, do not support the SUMF asserted herein.

REPLY: There is no dispute of material fact. The sentence immediately preceding this quotation states that, “[REDACTED]

[REDACTED].” CX00002436 (Wilson Dep. Ex. 9) at 437. This context confirms that [REDACTED]

[REDACTED]

[REDACTED].” *Id.*

38. Consequently, in the years immediately following the establishment of the CCM pools, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” *Id.*

RESPONSE: Admit that the excerpts from Ex. 9, CX00002436 have been accurately quoted.

39. At about the same time as they began selling their chassis, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” *Id.*

RESPONSE: Admit that the excerpts from Ex. 9, CX00002436 have been accurately quoted.

40. When established in 2013, “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” *Id.*

RESPONSE: Admit that the excerpts from Ex. 9, CX00002436 have been accurately quoted.

41. The formation of non-party North American Chassis Pool Cooperative, LLC (“NACPC”), an IEP, was affirmatively approved by the Surface Transportation Board in 2013. Pursuant to that decision, NACPC remains under the Board’s continuing jurisdiction. CX00001995 at 998, *North American Chassis Pool Cooperative, LLC – Pooling Application*, Docket No. MCF 21050 (Decision, January 22, 2013).

RESPONSE: Admitted.

ii. Single-Provider Pools.

42. The concept of a single-provider pool is also known as a “proprietary pool,” “private pool,” or a “neutral pool” (because it serves multiple ocean carriers). In the single-provider model, an individual IEP owns chassis pooled at selected locations, usually in proximity to container yards, and the motor carrier must pick up and drop chassis from selected locations offered by the IEP. The daily charges for chassis used from a private pool are set via negotiated contract or through posted daily rates. CX00001362 at ¶ 57; *see also* CX00001966 at 975, U.S. Government Accountability Office (“GAO”) (2021), *Commercial Shipping: Information on How Intermodal Chassis Are Made Available and the Federal Government’s Oversight Role*.

RESPONSE: Admitted.

43. [REDACTED]

[REDACTED]. An IEP may claim its higher quality chassis in its single-provider pool provides an advantage over use of competing pools. However, [REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 58; *see also* CX00001957, Ari Ashe, *DCLI exiting NVO business to deal directly with truckers*, THE JOURNAL OF COMMERCE (Oct. 6, 2020), https://www.joc.com/trucking-logistics/trucking-equipment/direct-chassislink-inc/dcli-exiting-nvobusiness-deal-directly-truckers_20201006.html.

RESPONSE: Admitted.

iii. The “Pool of Pools” Model.

44. The “pool of pools” model differs from the gray pool model in that it involves the interoperation of separate chassis pools managed by the participating IEP. Similar to a gray pool, a pool of pools permits a chassis to be used to move the containers of ocean carriers having contracts with a participating IEP regardless of ownership of the chassis being used, with flexible pick-up/drop-off locations, allowing for inter-pool chassis interoperability. However, unlike in a gray pool, each IEP retains responsibility for the M&R of its own chassis. Tock (CCM) Dep., CX00000459 at 25:14-26:100.

RESPONSE: Denied. The Pool of Pools is not a model but a specific pool located in the LA/LB region that is operated by DCLI, TRAC and Flexi-Van [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny the substance of the statement. The fact that a “pool of pools” model is currently only in use in one region of the United States does not dispute the fact that it is a chassis provisioning model. *See also* Guidebook for Assessing Evolving International Container Chassis Supply Models, CX00001966 at 974, 978 (describing the “pool-of-pools” model of chassis provisioning, including that “each IEP is responsible for and continues to manage its own chassis fleet in regard to operating rules, maintenance, and repair”).

45. The key active pool of pools in the United States is in San Pedro Bay, supporting the Los Angeles/Long Beach port complex. At the POP, established by DCLI, TRAC Intermodal, and Flexi-Van at the ports of Los Angeles and Long Beach, chassis owned by those IEPs can be used on an interoperable basis. Joint Stipulations at ¶ 195.

RESPONSE: Admitted.

46. The Los Angeles/Long Beach POP began operations in March 2015 and its combined fleet is provided by DCLI’s “DCLP”, TRAC Intermodal’s “TPSP”, and FlexiVan’s “FLBP” pools. CX00001990, The Pool of Pools, <http://www.pop-lalb.com/> (last visited Apr. 27, 2022).

RESPONSE: Admitted.

47. As of August 20, 2020, the POP website had stated the following:

Prior to the POP, the operation of multiple independent chassis pools in Los Angeles and Long Beach created situations where chassis in different pools were segregated at facilities for use only by certain user bases, and returnable only to a fraction of the facilities otherwise available to receive chassis. These inefficiencies often resulted in lost time and revenue to a motor carrier, duplicative repositioning, and confusion on terminals and rail ramps. The “gray fleet” that is the POP has smoothed the impacts to chassis operations that would have otherwise occurred in the ever-changing landscape of ocean carrier alliances and terminal operations, increases overall efficiency and availability, and significantly reduces chassis splits.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” CX00004429 at 434.

RESPONSE: Admit that the excerpt from CX00004429 at 434 has been accurately quoted.

50. [REDACTED]
[REDACTED], it has not been implemented. *See* Mar. 5, 2018 Email from Frank Grossi (COSCO) to Stacy Normington (OCEMA), CX00002488 at 488 (“[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]”).

RESPONSE: Admitted.

iv. Motor Carrier-Provided Chassis.

51. The final chassis provision model is the one in which the motor carrier owns chassis or leases them long-term from an IEP and is responsible for maintenance and repair (“M&R”) and repositioning. Under this model, the supply of chassis is part of the transportation service that the motor carrier provides to its customers. Rodrigue Initial Expert Report, CX00001362 at ¶ 63; *see also* CX00001966 at 976, U.S. Government Accountability Office (“GAO”) (2021), Commercial Shipping: Information on How Intermodal Chassis Are Made Available and the Federal Government’s Oversight Role.

RESPONSE: Admitted.

C. Loading of Chassis at Intermodal Terminals.

i. Grounded vs. Wheeled Operations.

52. Intermodal container yards have two major configurations that impact chassis

operations:

- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]

Rodrigue Initial Expert Report, CX00001362 at ¶ 43.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents further deny that operations at rail terminals are material to the extent they relate to efficiency. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not deny the substance of the statement. Facts relating to operations at rail terminals are material to establishing the harms that a lack of interoperability imposes on the supply chain. IMCC MSD 28-29; *see also supra*, Prefatory Statement, ¶ E.

53. [REDACTED]
[REDACTED]

[REDACTED]. *Id.* at ¶ 44.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains argumentative and conclusory statements regarding Choice and because its assertions regarding the efficiency of grounded operations at rail terminals are not material or relevant.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 52 (addressing Respondents’ assertion that facts regarding the efficiency of operations at rail terminals are not material or relevant).

54. [REDACTED]

[REDACTED]. *Id.* at ¶ 44.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains assertions regarding the efficiency of grounded and wheeled operations at rail terminals which are not material or relevant. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 52 (addressing Respondents’ assertion that facts regarding the efficiency of operations at rail terminals are not material or relevant).

55. According to IMC employee [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *Id.*; *see also* Scott George (TCW)

(04/25/22) Decl., CX00001715 at ¶¶ 5, 8; Glenn Fehribach (CPG) (Apr. 25, 2022) Decl., CX00001709 at ¶¶ 4-5, 8.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains assertions regarding the efficiency of grounded operations at rail terminals that are not material or relevant. (Order, at p. 6). Respondents further deny the statement as it is a characterization of non-party hearsay.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 52 (addressing Respondents’ assertion that facts regarding the efficiency of operations at rail terminals are not material or relevant). Further, hearsay evidence is admissible in administrative court as long as it is not irrelevant, immaterial, or unduly repetitious. *See* 5 U.S.C. § 556(d); 46 C.F.R. § 502.202. This statement is material as to how grounded and wheeled operations at terminals operate and the advantages of grounded operations. Respondents also do not deny the substance of this statement. Finally, this statement is supported by the above citations to the Declarations of Scott George (TCW) and Glenn Fehribach (CPG).

56. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 45; *see also* Scott George (TCW) Dep., CX00000640 at 153:3-154:8.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains assertions regarding the efficiency of grounded operations at rail terminals that are not material. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 52 (addressing Respondents’ assertion that facts regarding the efficiency of operations at rail terminals are not material or relevant).

57. A chassis flip may be required for several reasons, for example, if the motor carrier brings its own chassis. Rodrigue Initial Expert Report, CX00001362 at ¶ 45; *see also* CX00001783 at 814, CPCS Transcom, InterPro Advisory, Prime Focus and Jean-Paul Rodrigue, Guidebook for Assessing Evolving International Container Chassis Supply Models (2012); Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 133:10-13 (“[REDACTED]”).

RESPONSE: Denied. This SUMF contains assertions regarding the efficiency of operations at rail terminals, specifically with respect to conditions that involve “chassis flips”, which are not material. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue

as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 52 (addressing Respondents’ assertion that facts regarding the efficiency of operations at rail terminals are not material or relevant).

ii. The Role of Railroads at Inland Intermodal Terminals.

58. Ocean carriers have contracts with railroads for the movement of containers to and from intermodal terminals that they serve.

RESPONSE: Admit that some ocean carriers have contracts with railroads. Deny that all ocean carriers have contracts with railroads. ([REDACTED])

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. All Respondent ocean carriers except Wan Hai have contracts with railroads. *See infra*, ¶¶ 59-68.

59. CMA has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including Norfolk Southern Railway Company, Union Pacific Railroad Company, Canadian Pacific Railway Company, and Canadian National Railway Company to terminals in the Chicago and Memphis markets. *See* Basila (CMA) Dep., CX00000534 at 7:3-12.

RESPONSE: Admitted.

60. COSCO has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including Norfolk Southern and BNSF Railway company to terminals in the Chicago market and Canadian National Railway Company, BNSF Railway Company, and CSX to serve terminals in the Memphis market. *See* Houghtalin (COSCO) Dep., CX00000337 at 336:16-337:13; *see also* Feb. 28, 2021, CN Confidential Transportation Agreement No. 660882-AE, CX00003048 at 054;

Aug. 1, 2019, Norfolk Southern Railway Company Intermodal Transportation Agreement, CX00003082 at 097; April 1, 2019, BNSF Contract MA111 International Transportation Contract, CX00003038 at 039.

RESPONSE: Admitted.

61. Evergreen has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including BNSF Railway Company and Union Pacific Railroad Company to terminals in the Chicago market and BNSF Railway Company and Union Pacific Railroad Company to serve terminals in the Memphis market. *See* Wang (Evergreen) Dep., CX00000773 at 196:12-197:17; November 1, 2005, BNSF Railway Company International Transportation Agreement, CX00003822; May 1, 2006, Union Pacific Railroad Company Exempt Rail Transportation Agreement, CX00003829 (Wang Dep. Ex. 18) at 833.

RESPONSE: Admitted.

62. Hapag-Lloyd has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including Union Pacific Railway Company, BNSF Railway Company, and CSX to terminals in the Chicago market and Norfolk Southern Railway Company to serve terminals in the Memphis market. *See* Barattini (Hapag-Lloyd) (10/22/2021) Dep., CX00000695 at 330:12-22, 323:25-324:4; *see also* CX00004152 (Barattini Dep. Ex. 34) at 171.

RESPONSE: Admitted.

63. HMM has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including Union Pacific Railway Company, Canadian Pacific Railway Company, and Canadian National Railway

Company to terminals in the Chicago market and Union Pacific Railroad Company and Canadian National Railway Company to serve terminals in the Memphis market. *See* Compton (HMM) Dep., CX00000207 at 188:7-189:4; February 4, 2020, Canadian Pacific Confidential Contract #36693, CX00004297 at 309; August 1, 2020, Union Pacific Railroad Company, CX00004315 at 320; June 1, 2021, Canadian National Confidential Transportation Agreement No. 575164-AA, CX00004286 at 294.

RESPONSE: Admitted.

64. Maersk has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including BNSF Railway Company and Canadian National Railway Company to terminals in the Chicago market and CSX to serve terminals in the Memphis market. *See* March 18, 2013, CSX Amendment No. 2 to Agreement for Rail Transport Services, CX00004776 at 827; November 30, 2015, BNSF Railway Company Intermodal Transportation Contract Agreement MA-80 Amendment No. 4, CX00004765 at 773; January 3, 2021, Canadian National Railway Company Confidential Transportation Master Agreement No. 572970-AA, CX00004722 at 732.

RESPONSE: Admitted.

65. MSC has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including BNSF Railway Company, CSX, Canadian Pacific Railway Company, and Canadian National Railway Company to terminals in the Chicago market and BNSF Railway Company and Canadian National Railway Company to serve terminals in the Memphis market. *See* Roveccio (MSC) Dep., CX00000799 at 89:11-18, 90:11-16; March 2020 Amendment ONE to CSXT Intermodal International Agreement, CX00004581; May 1, 2020, Amendment No. 1 to BNSF Intermodal

Transportation Contract Agreement MA105, CX00004597; November 15, 2020, Canadian National Railway Company Confidential Transportation Agreement 012808-BZ, CX00004600.

RESPONSE: Admitted.

66. ONE has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including Canadian National Railway Company, Union Pacific Railroad Company, Norfolk Southern Railway Company, BNSF Railway Company, and CSX to terminals in the Chicago market and Canadian National Railway Company, Union Pacific Railroad Company, and Norfolk Southern Railway Company to serve terminals in the Memphis market. *See* Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 149:7-15; Feb. 2, 2019, Norfolk Southern Railway Company Intermodal Transportation Agreement, CX00005541; September 1, 2019, Canadian National Railway Company Confidential Transportation Master Agreement No. 561828-AA, CX00005511; June 1, 2020, Norfolk Southern Railway Company Amendment #1 to Intermodal Transportation Agreement, CX00005563; Aug. 1, 2020, Amendment One to the CSXT Intermodal International Agreement, CX00005533 at 457; July 31, 2022, BNSF Railway Company, CX00005503.

RESPONSE: Admitted.

67. Yang Ming has contracts with the following railroad companies for rail transportation of cargo containers to and from locations in the United States: (i) Norfolk Southern Railway Company; (ii) BNSF Railway Company; (iii) Canadian National Railway Company; (iv) Canadian Pacific Railway Company; (v) CSX; and (vi) Union Pacific Railroad Company. For example, it has contracts with railroads, including BNSF Railway Company and Canadian Pacific Railway Company to terminals in the Chicago market and Union Pacific to serve terminals in the Memphis market. *See* CX00006156, Stipulations Concerning Respondent

Yang Ming Marine Transport Corp., at ¶ 6; May 30, 2019, Canadian Pacific Railway Company Confidential Contract #503894, CX00005958 at 978; July 1, 2018, BNSF Railway Company Amendment No. 4 to International Transportation Agreement MA40, CX00005944 at 955; January 1, 2014, Union Pacific Railroad Company First Amendment to Exempt Rail Transportation Agreement, CX00005981 at 983.

RESPONSE: Admitted.

68. ZIM has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including Canadian National Railway Company and CSX to terminals in the Chicago market and the Memphis markets. *See* Messing (ZIM) Dep., CX00000260 at 79:13-22, 82:24-83:1; Feb. 11, 2016, Second Amendment to the Canadian National Railway Company Confidential Transportation Agreement No. 016223-AY, CX00006136.

RESPONSE: Admitted.

69. Through agreement, tariff, or regulation, railroads require ocean carriers to have an adequate supply of chassis to load arriving containers, particularly at wheeled terminals. *Armstrong (ONE) (10/06/2021) Dep.*, CX00000544 at 147:21-148:2.

RESPONSE: Denied. The referenced testimony states: “The language in our agreements just says that we’re responsible for designating equipment – a chassis provider at each facility and that provider providing adequate equipment to support our business.”

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact that railroads require ocean carriers to ensure that there is an adequate supply of chassis to load their arriving containers at rail terminals, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16.

70. At wheeled terminals, railroads require ocean carriers to designate a single chassis pool from which the railroad or ramp operator will take the chassis and on to which the ocean carrier’s containers will be loaded. Such pools may include interoperable pools such as CCM pools as well as single-provider pools operated by the major IEPs. [REDACTED]

[REDACTED]

[REDACTED]

“Letter of Authority,”⁵ (September 11, 2018), CX00005416 (Armstrong Dep. Ex. 14); Barattini (Hapag-Lloyd) (10/22/2021) Dep., CX00000695 at 328:18-333:18; *see also* Rodrigue Rebuttal Expert Report, CX00001606 at ¶¶ 32-34.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains assertions regarding the efficiency of operations at rail terminals that are not material or relevant. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 52 (addressing Respondents’ assertion that facts regarding the efficiency of operations at rail terminals are not material or relevant).

71. [REDACTED]

[REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 46.

⁵ This letter was created from a template provided by the railroad that allowed the ocean carrier to designate TRAC, CCM, DCLI, FLEXI, or OTHER as its sole chassis provider at each ramp operated by Union Pacific. *See also* “Letter of Authority for Chassis Pool Provisioning at Union Pacific Railroad Intermodal Terminals with Evergreen” (June 30, 2020), CX00003813.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains assertions regarding the efficiency of wheeled operations at rail terminals that are not material or relevant. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 52 (addressing Respondents’ assertion that facts regarding the efficiency of operations at rail terminals are not material or relevant).

72. Railroad operating procedures may also limit the ability of motor carriers’ ability to use a chassis other than one from the pool designated by the ocean carrier whose container is to be moved. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *Id.*
at ¶ 153.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains assertions regarding the efficiency of railroad operations that are not material or relevant. (Order, at p. 6). Respondents further deny the statement as it is a characterization of non-party hearsay.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 52 (addressing Respondents’ assertion that facts regarding the efficiency of operations at rail terminals are not material or relevant). Further, hearsay evidence is admissible in administrative court as long as it is not irrelevant,

immaterial, or unduly repetitious. *See* 5 U.S.C. ¶ 556(d); 46 C.F.R. ¶ 502.202. This statement is material as to the impact the designation of an interoperable or a non-interoperable pool has on the operations at railroad terminals. Respondents also do not deny the substance of this statement. Finally, this statement is supported by the Declaration of Mark George (IMC). CX00001712 at ¶ 12.

III. RESPONDENT OCEAN CARRIERS’ POLICIES AND PRACTICES DEMONSTRATE THAT CCM RULES 5.5 AND 5.7 RESTRICT CHASSIS CHOICE AND THAT LESS INTRUSIVE ALTERNATIVES ACHIEVE AN ADEQUATE SUPPLY OF CHASSIS.

A. Respondent Ocean Carriers Approved and Implemented Rules 5.5 and 5.7 Which Permit Them or Their IEPs to Exercise Veto Power Over Chassis Choice.

73. The Chassis Choice program was developed by OCEMA and CCM during 2012-13. “

.” “The Chassis “Choice” Dilemma” presentation, CX00002160 (Wilson Dep. Ex. 10) at 163.

RESPONSE: Admitted.

74. In 2012-13 the members of OCEMA and which had representatives on its Senior Steering committee included:

- APL
- CMA-CCM
- COSCO
- Evergreen
- Hamburg Sud
- Hapag-Lloyd

- Hyundai (HMM)
- K Line⁶
- Maersk
- MOL
- NYK
- OOCL
- Yang Ming
- ZIM

See e.g., “Minutes of the OCEMA Senior Steering Committee Meeting” (December 5, 2012), CX00005275 (Wilson Dep. Ex. 1) at 280; “Minutes of the OCEMA Senior Steering Committee Meeting” (Sept. 11, 2013), CX00005201 at 206.

RESPONSE: This SUMF is not a complete list of the representatives on the OCEMA Senior Steering Committee during the specified time frame, and CMA-CGM is incorrectly described as “CMA-CCM”. With those qualifications, Respondents admit this SUMF.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See*, Initial Order, ¶ 16.

75. As summarized by CCM:

■ [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

⁶ K-Line, MOL, and NYK were part of an ownership consolidation that became Ocean Network Express in 2018. Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 15:14-20.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents fail to articulate how the cited testimony does not support this statement.

77. As originally adopted in 2013, CCM Pool Operations Manual Section 8.2 simply provided that the User (i.e., the IEP) Customer (i.e., ocean carrier) information provided to the CCM pool manager was to include a “Description of whether Customer’s Off-Terminal Usage is exclusive to the User or with exceptions.” This provision formalized the choice by exception process. CX00005207 (Tock Dep. Ex. 2) at 231, 233.

RESPONSE: Denied. This SUMF does not accurately describe nor does it accurately quote the language in CX00005207.

REPLY: There is no dispute of material fact. The original quote was inaccurate. The correct quote from the cited document is: “Users [IEPs] are required to provide a list of their Customers prior to the Customer’s use of Pool Chassis. The Customer information to be provided to the [CCM] Pool Manager by the User shall include the following: . . . Designation of Customer’s Off-Terminal Usage being exclusive Customer of User, or, where some exceptions to Usage are not for the account of the User.” CX00005207 (Tock Dep. Ex. 2) at 233. Further, the description of the document is accurate. Ken Tock confirmed that this provision required IEPs to designate via email to CCM whether “[REDACTED]” and that “[REDACTED]” [REDACTED]. Tock (CCM) Dep., CX00006313 at 57:19-59:9.

78. In 2019, the CCE/CCM Board members approved changes to section 8 of the CCM Pool Operations Manual Version 2.9 effective April 1, 2019, [REDACTED]

[REDACTED]. “CCM Pools LLC (CCMP) Operations Manual Version 2.9” (April 1, 2019), CX00002170.

RESPONSE: Denied. This SUMF is ambiguous. Respondents refer to CX00002178 with respect to changes to section 8 of the CCM Operations Manual, effective April 1, 2019.

REPLY: There is no dispute of material fact. Respondents do not deny that the CCE/CCM Board members approved the April 1, 2019 changes to section 8 of the CCM Pool Operations Manual. CX00002170 at 178, cited by Respondents, confirms that Version 2.9 of the CCM Pool Operations Manual replaced Sections 8.1 through 8.5 (including the version of section 8.2 that is quoted *supra* at ¶ 77) with new Sections 8.1 through 8.10.

79. Section 8.5 stated, “[REDACTED]” *Id.* at 190.

RESPONSE: Admitted.

80. Section 8.7 stated:

[REDACTED]

Id.

RESPONSE: Denied. This SUMF is not an accurate quotation of the language contained in ¶8.7 of the CCM Operations Manual.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not deny the substance of this statement. *See* Initial Order, ¶ 16. The correct quotation is: “Notwithstanding Section 8.5. . .” CX00002170 at 190 (emphasis added).

81. According to the description of changes provided at the front of Version 2.9, the revisions to section 8 were “ [REDACTED] [REDACTED].” *Id.* at 174.

RESPONSE: Admitted; but deny that the page citation referenced in this SUMF is accurate.

REPLY: Respondents admit this fact. The correct citation is CX00002170 at 178.

82. Sections 8.8 and 8.9 [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *Id.* at 190.

RESPONSE: Denied. This SUMF is not an accurate description of sections 8.8 and 8.9 at CX00002190.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not articulate how the statement is not an accurate description of Sections 8.8 and 8.9, which state as follows:

[REDACTED]

[REDACTED]

CX00002170 at 190; *see also infra*, ¶ 87.

83. CCM regarded the adoption of Rules 8.5, 8.7, 8.8, and 8.9 as the codification in the Operations Manual of policies that were already in place. As a result, the revisions were not presented to the OCEMA Senior Steering Committee but were approved by the Boards of Managers of CCE, CCM, and CCM Pools, LLC. Tock (CCM) Dep., CX00000459 at 99:12-100:25.

RESPONSE: Admitted.

84. CCM Pool Operations Manual Version 4.0, effective October 1, 2019, renumbered Rules 8.5, 8.7, 8.8, and 8.9 as Rules 5.5, 5.7, 5.8, and 5.9. The text of these Rules as of October 1, 2019, remains in effect. “CCM Pools LLC (CCMP) Operations Manual Version 4.0” (October 1, 2019), CX00002379.

RESPONSE: Admitted.

85. Current CCM Pool Rule 5.7 gives ocean carriers the ability to decide whether the ocean carrier consents to a motor carrier’s request for chassis choice. *Id.* at 398.

RESPONSE: Denied. This SUMF is not an accurate description of section 5.7 at CX00002398-9.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not articulate how the statement is not an

accurate description of Section 5.7, which states in relevant part that “under the Choice Program, Usage Days may be directed to another User [IEP] when the Container Line Operator [ocean carrier] and the User for whom the Container Line Operator is a customer authorize a deviation from the default assignment. To utilize this program, the Container Line Operator must notify CCM that it allows exceptions[.]” CX00002379 at 398.

86. As of January 28, 2022, CCM’s website contained the following information concerning a chassis customer’s choice in choosing its chassis provider:

CHOICE PROGRAM
MOTOR CARRIERS AND SHIPPERS

Often the chassis customer has little choice in choosing its chassis provider. A container is placed on a chassis at the rail or ocean terminal before the motor carrier arrives for pick up. Unless the container is taken off the chassis and placed on another chassis, the chassis provider is already determined by the ocean container. Within a CCM pool, there are many chassis providers and some of them participate in a program that allows the customer to **choose a chassis provider** without having to lift the container onto a new chassis. . . .

CCM can allow the chassis customer to select their preferred chassis provider in its pools on specified chassis movement. **There are some restrictions.** Shippers and motor carriers can choose a provider when the ocean carrier and the ocean carrier’s on-terminal chassis provider participate in this CCM program.

CX00001992, CCM, *Choice Program*, <https://www.ccmpool.com/Chassis-Pool/Choice-Program.aspx> (last visited Apr. 27, 2022) (emphasis in original).

RESPONSE: Denied. This SUMF is an incomplete quotation of the language appearing at <https://www.ccmpool.com/Chassis-Pool/Choice-Program.aspx>

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not deny that statement accurately quotes CCM’s website and fail to articulate how any additional language appearing at the website contradicts the statement.

B. Pursuant to Rule 5.5 and 5.7, Respondent Ocean Carriers Establish and Implement Chassis Policies Restricting or Permitting Choice on a Normal, Customary, and Continuous Basis.

87. The following table provides ocean carriers' selected chassis provision option within the CCM Pools as listed on CCM's website as of April 23, 2022:

Ocean Carrier	Chassis Provider	CCM Pool	Chassis Provision Option within CCM Pools
CMA	Trac Intermodal	SACP	Chassis provided only by Trac Intermodal unless exception is requested
COSCO Shipping	Trac Intermodal	SACP	Trac Intermodal provides chassis unless exception requested
COSCO Shipping	Trac Intermodal	MCCP	Trac Intermodal provides chassis unless exception requested
Evergreen	DCLI	SACP	Chassis provided by DCLI only
Evergreen	DCLI	MCCP	Chassis provided by DCLI only
Hapag Lloyd	NACPC	SACP	NACPC provides chassis unless exception requested and approved
Hapag Lloyd	Trac Intermodal	MCCP	Trac Intermodal provides chassis unless exception requested and approved
HMM	DCLI	SACP	Chassis provided only by DCLI
HMM	DCLI	MCCP	Chassis provided only by DCLI
Maersk	DCLI	SACP	Chassis provided only by DCLI
MSC	DCLI	SACP	Chassis provided only by DCLI
MSC	DCLI	MCCP	Chassis provided only by DCLI
OOCL	Trac Intermodal	SACP	Trac Intermodal provides chassis unless exception requested
ONE	Flexi-Van	SACP	Flexi-Van provides chassis unless exception requested and approved
ONE	NACPC	MCCP	NACPC provides chassis unless exception requested and approved
Wan Hai	Trac Intermodal	SACP	Trac Intermodal provides chassis unless exception requested and approved
Yang Ming	Trac Intermodal	SACP	Trac Intermodal provides chassis unless exception requested and approved
ZIM	Trac Intermodal	SACP	Trac Intermodal provides chassis unless exception requested and approved

CCM, *Chassis Provider Search*, <https://www.ccmpool.com/Membership/Chassis-Providers/> (last visited Apr. 23, 2022).

RESPONSE: Denied. This SUMF is an inaccurate summary of information on the CCM, Chassis Provider Search webpage. Some of these inaccuracies are set forth below:

- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

REPLY: There is no dispute of material fact. None of Respondents’ assertions contradict that the chart accurately reflects each carrier’s chassis provision options within CCM pools as stated on the CCM website as of April 23, 2022.

CMA-CGM (“CMA”)

88. As of November 18, 2017, [REDACTED].

Fentress (CMA) Dep., CX00000916 at 233:12-18; CX00002684 (Fentress Dep. Ex. 23) at 684.

[REDACTED]

[REDACTED]. Fentress (CMA) Dep., CX00000916 at 234:4-13. CCM’s website at the time stated only that chassis for CMA moves in the CCM pools would be provided by TRAC only and did not reference the option to request an exception. Fentress (CMA) Dep., CX00000916 at 236:2-14; CX00002684 (Fentress Dep. Ex. 23) at 684.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Respondents’ purported denial only confirms the fact that, as of November 18, 2017, CMA required motor carriers to request and receive approval to select an IEP provider other than TRAC. Further, Respondents do not address the fact that CCM’s website at the time did not reference the option to request an exception.

89. As of December 2018, [REDACTED]

[REDACTED]. See Fentress (CMA) Dep., CX00000916 at 119:15-18 (“[REDACTED]

[REDACTED]”), 222:17-223:24; CX00002713 (Fentress Dep. Ex. 20) at 719.

RESPONSE: Admitted.

90. As of February of 2018, [REDACTED]
[REDACTED]. Fentress (CMA) Dep., CX00000916 at
241:11-25; *see also* CX00002749 (Fentress Dep. Ex. 24) at 749. [REDACTED]
[REDACTED]. Fentress (CMA) Dep.,
CX00000916 at 242:12-19.

RESPONSE: Admitted.

COSCO

91. COSCO [REDACTED]
[REDACTED]. *See* CX0002846 at 846 (December 6, 2018, email from COSCO’s Frank
Grossi to COSCO employees, stating “[REDACTED]
[REDACTED].”).

RESPONSE: Admitted.

92. COSCO’s Interrogatory Responses state that with respect to the SACP, “COSCO
has always permitted chassis choice for MH moves” and “[t]o the best of its knowledge, COSCO
is not aware of any instances in which it did not consent to chassis choice.” COSCO Resps. &
Objs. to Interrog. No. 3, CX00002013 (Houghtalin Dep. Ex. 10) at 018.

RESPONSE: Admitted.

Evergreen

93. [REDACTED]
[REDACTED].
Wang (Evergreen) Dep., CX00000773 at 37:18-38:4 (“[REDACTED]
[REDACTED]
[REDACTED].”).

RESPONSE: Denied. Motor carriers are not charged for CH or MH moves. [REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents admit that Evergreen charges motor carriers a per diem fee for the use of chassis beyond the five days covered by the Chassis Usage Charge Evergreen assesses on shippers. JSF ¶¶ 63-65. This per diem fee is a charge for the use of chassis in CH and MH moves. *See* IMCC Resp. SUMF ¶ 96.

94. [REDACTED]

[REDACTED]

[REDACTED].” Wang (Evergreen) Dep., CX00000773 at 35:23-36:13 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].”); Wang (Evergreen) Dep., CX00000773 at 37:11-17 (“[REDACTED]

[REDACTED]

[REDACTED]”).

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents admit that Evergreen charges shippers a Chassis Usage Charge that covers five days of chassis usage for MH and CH moves and, further, that Evergreen charges motor carriers a per diem fee for the use of a chassis after those five days. JSF ¶¶ 63-65.

95. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” CX00003249

(Wang Dep. Ex. 3) at 249; Wang (Evergreen) Dep., CX00000773 at 35:23-36:13 (“[REDACTED]

[REDACTED]

[REDACTED].”).

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Further, the SUMF does not accurately characterize the cited testimony.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes the cited exhibit. None of Respondents’ assertions contradict that [REDACTED]

[REDACTED]

[REDACTED], nor do Respondents’ assertions contradict that [REDACTED]

[REDACTED] stated in the cited exhibit that [REDACTED]

[REDACTED].” CX00003249 (Wang Dep. Ex. 3) at 249. Mr. Wang also testified that “[REDACTED]

[REDACTED].” Wang (Evergreen) Dep., APP2263 at 51:2-6.

96. As a result, [REDACTED]

[REDACTED]. Wang (Evergreen) Dep., CX00000773 at 153:9-19 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].”).

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents’ assertions do not contradict that

[REDACTED]

[REDACTED]

97. [REDACTED]

[REDACTED]. Wang (Evergreen) Dep., CX00000773 at 152:23-153:8

(“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF misstates the testimony and Evergreen’s business model.

(Coates Declaration ¶21c, APP2209)

REPLY: There is no dispute of material fact. This statement does not purport to describe Evergreen’s business model, nor does it “misstate” the sworn testimony of Evergreen’s corporate witness.

98. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] February 11, 2012 Email from

Philip Wolfe (DCLI) to Tom Wang (Evergreen), CX00003779 at 779; *see also* Wang

(Evergreen) Dep., CX00000773 at 227:16-228:9 (“... [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

RESPONSE: Admitted.

Hapag-Lloyd

99. [REDACTED]

Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 187:4-13.

RESPONSE: Admitted.

100. [REDACTED]

[REDACTED]
[REDACTED]

RESPONSE: Denied. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]:
[REDACTED]
[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Both the cited exhibit and Respondents’ response confirm that [REDACTED]
[REDACTED]. CX00003959
(Barattini Dep. Ex. 17) at 959.

101. Pursuant to the terms in Hapag-Lloyd’s January 1, 2016, EUA with TRAC,
[REDACTED]
[REDACTED]
Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 150:11-152:2; CX00004115
(Barattini Dep. Ex. 13) at 130; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep.,
CX00000654 at 162:10-23 ([REDACTED]
[REDACTED]), 171:21-172:20; CX00002463 (Barattini Dep.
Ex. 15) at 465 ([REDACTED]
[REDACTED]); 187:14-188:3;
CX00003959 (Barattini Dep. Ex. 17) at 959 (“[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].”).

RESPONSE: Denied. Choice in CCM pools refers to requests by a BCO or trucker to request billing from another IEP in the CCM pool, not a request “to use another chassis provider’s

chassis” in the pool. The cited testimony of Hapag’s witness Tom Barattini in the response to SUMF 100 and the citations in this SUMF 101 [REDACTED]

REPLY: There is no dispute of material fact. Respondents do not dispute the substance of the statement, and the January 1, 2016 Hapag-Lloyd/TRAC CUA states that [REDACTED]

[REDACTED]” CX00004115 (Barattini Dep. Ex. 13) at 130.

102. [REDACTED]

[REDACTED]. CX00002459 at 460 (Barattini writes to Flexport, “[REDACTED]

RESPONSE: Denied. In regions where Hapag-Lloyd utilizes a proprietary pool, a motor carrier does not need to request choice to use another IEP or IEP pool in that region, or to use its own chassis. [REDACTED]

[REDACTED]

[REDACTED]. Hapag-Lloyd does not control whether a flip charge is incurred. Railroads have exclusive control over whether a terminal is grounded or wheeled and whether a chassis flip results in a charge.

REPLY: There is no dispute of material fact. Respondents’ assertions do not contradict that

[REDACTED]

[REDACTED]. The “material context” omitted from the quoted email states that, [REDACTED]

[REDACTED].” CX00002459 at 460 (emphasis added).

HMM

103. [REDACTED]

[REDACTED].

Compton (HMM) Dep., CX00000207 at 140:14-141:5 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].”); CX00004220 (Compton Dep. Ex. 16) at 221 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. In the cited exhibit, HMM’s Director of Equipment Control, Dan Compton, stated that, [REDACTED]

[REDACTED].” CX00004220 (Compton Dep. Ex. 16) at 221. [REDACTED]

[REDACTED].”

CX00000207 at 140:14-19. He further confirmed that [REDACTED]

[REDACTED].” *Id.* at 140:20-141:5.

104. [REDACTED]

[REDACTED]

[REDACTED]. *Id.* (“[REDACTED]

[REDACTED]

[REDACTED].”); Compton (HMM) Dep., CX00000207 at 141:13-18 (“[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Admitted.

105. [REDACTED]

[REDACTED]. Compton (HMM) Dep., CX00000207 at 134:21-135:8.

RESPONSE: Denied. The assertion in this SUMF does not accurately reflect the evidence cited. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents’ citations in support of their response support the statement that [REDACTED]

[REDACTED]. Compton (HMM) Dep., CX00000207 at 134:25-135:8 ([REDACTED])

[REDACTED]

[REDACTED] [.]” (CX00004223 at 226)).

106. As a result of those negotiations, on November 30, 2017, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” CX00004223 (Compton Dep. Ex. 15) at 226.

RESPONSE: Admitted.

107. In deciding whether or not to grant a request for chassis choice for MH

movements, “[REDACTED]

[REDACTED]

[REDACTED].” HMM’s corporate witness confirmed that the

“[REDACTED]

[REDACTED]. Compton (HMM) Dep., CX00000207 at 135:17-136:4.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny that Compton testified the [REDACTED] (CX00004223 at 226) [REDACTED] [REDACTED]” Compton (HMM) Dep., CX00000207 at 136:2-4.

108. [REDACTED]
[REDACTED]
[REDACTED]. CX00004276 at 276, 283.

RESPONSE: Denied. The statement [REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny that [REDACTED]
[REDACTED]
[REDACTED].” CX00004276 at 276, 284.

109. [REDACTED]
[REDACTED]
[REDACTED] CX00004243 at 243.

RESPONSE: Denied. The statement mischaracterizes [REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes [REDACTED]. IMCC does not “characterize” the quotation.

110. [REDACTED]

[REDACTED]

[REDACTED] CX00004267 at 267, 269.

RESPONSE: Denied. The statement mischaracterizes [REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes [REDACTED]. IMCC does not “characterize” the quotation.

111. [REDACTED]

[REDACTED]

[REDACTED] CX00004271 at 271-72; *see also* CX00004273 ([REDACTED])

[REDACTED]).

RESPONSE: Denied to the extent that this SUMF characterizes [REDACTED]

[REDACTED].

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not deny that the statement includes examples of [REDACTED]

[REDACTED]

112. [REDACTED]

[REDACTED]

[REDACTED] CX00004216 at 216, 217 (emphasis in the original email).

RESPONSE: Denied. The document, including its context, speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not deny that the statement accurately quotes

[REDACTED]

113. [REDACTED]

[REDACTED]

[REDACTED] CX00004245

(Compton Dep. Ex. 18) at 245, 252-61 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. The email speaks for itself. Furthermore, to the extent that IMCC describes locations outside of the geographic scope in which discovery was permitted, the statement is denied because it is not material.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not deny that the statement accurately quotes

[REDACTED]. Further, the agreement on the

scope of geographic discovery does not preclude citations to agreements or communications produced by Respondents that refer to other ports and inland terminals, particularly when those agreements or documents include the focused geographies and provide evidence of the overall business context in which those agreements or communications occurred.

Maersk

114. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. Weisberg (Maersk) Dep., CX00007709 at 50:23-51:6; CX00004705 (Weisberg Dep. Ex. 4) at 707 (“[REDACTED]
[REDACTED]
[REDACTED].”).

RESPONSE: Denied. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. The testimony cited by Respondents does not contradict Maersk’s corporate witness’s testimony [REDACTED]
[REDACTED] (CX00004705 at 707) “[REDACTED]
[REDACTED]” Weisberg (Maersk) Dep., CX00000709 at 50:23-51:6.

115. [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED].” CX00004709 (Weisberg Dep. Ex. 12);
Weisberg (Maersk) Dep., CX00000709 at 103:6-104:23 ([REDACTED]
[REDACTED].)

RESPONSE: Denied. This statement ignores the more relevant part of the testimony which is
that [REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. The testimony cited by Respondents does not
contradict the fact that Maersk’s corporate witness [REDACTED]
[REDACTED]. Weisberg (Maersk) Dep., CX00000709 at 104:9-14.
Respondents themselves ignore the next part of Weisberg’s testimony, where he [REDACTED]
[REDACTED]
[REDACTED]. *Id.* at 104:20-23.

116. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] CX00004710 at 710.

RESPONSE: Denied. This SUMF mischaracterizes this example as a regular occurrence. The
cited evidence does not reflect the fact that [REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny that the statement
accurately quotes internal Maersk correspondence, which states [REDACTED]
[REDACTED].” CX00004710 at 710 (emphasis added). Respondents’

citation in support of their contention that [REDACTED]
[REDACTED]
[REDACTED]. See Weisberg (Maersk) Dep., APP0852 at
125:4-8 (“[REDACTED]
[REDACTED]”);
CX00000709 at 103:24-104:8 (“[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]”).

117. [REDACTED]
[REDACTED]. See Weisberg (Maersk) Dep., CX00000709 at
101:25-102:18 [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]”); CX00004720 (Weisberg Dep. Ex. 11) at 720 ([REDACTED]
[REDACTED]).

RESPONSE: Denied. The testimony that IMCC cites speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. See Initial Order, ¶ 16. Respondents do not articulate how Maersk’s corporate witness’s testimony that [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Weisberg (Maersk) Dep., CX00000709 at 102:4-9. Further, Respondents do not address the cited exhibit, which is an email [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” CX00004720 (Weisberg Dep. Ex. 11) at 720.

118. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004703 (Weisberg Dep. Ex. 15) at 703.

RESPONSE: Admitted to the extent that [REDACTED]

[REDACTED]. This statement is denied to the extent that it describes statements made by a non-party that cannot be properly admitted by Respondents

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. IMCC is not “[REDACTED]

[REDACTED]. Respondents do not deny that the statement accurately quotes [REDACTED]

119. [REDACTED]

[REDACTED] Weisberg (Maersk) Dep., CX00000709 at 103:24-

104:8 ([REDACTED]
[REDACTED]).

RESPONSE: Denied. The testimony cited by IMCC speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not articulate [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. Maersk’s corporate witness also testified [REDACTED]
[REDACTED].”

Weisberg (Maersk) Dep., APP0852 at 125:4-8.

120. [REDACTED]
[REDACTED]. Weisberg (Maersk)
Dep., CX00000709 at 108:12-112:24; CX00004699 (Weisberg Dep. Ex. 13) at 700 ([REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

RESPONSE: Denied. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16.

121. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Weisberg (Maersk) Dep., CX00000709 at 113:18-115:15;
CX00004715 (Weisberg Dep. Ex. 14) at 715.

RESPONSE: Denied. The record does not support a conclusion that [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. Respondents ignore the cited exhibit, in which Hamburg Sud’s Senior Vice President of Business Operations (Mike Wilson) stated that [REDACTED]
[REDACTED].” CX00004715
(Weisberg Dep. Ex. 14) at 715. Maersk’s corporate witness confirmed that [REDACTED]
[REDACTED]. Weisberg (Maersk) Dep., CX00000709 at

114:14-16. The testimony cited by Respondents only supports that, [REDACTED]
[REDACTED]. *Id.* at 115:3-8.

122. [REDACTED]
[REDACTED]. Weisberg (Maersk) Dep.,
CX00000709 at 115:3-8.

RESPONSE: Denied. As described in the previous paragraph, the testimony does not support
the position stated by IMCC here. ([REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

REPLY: There is no dispute of material fact. Respondents do not articulate how Weisberg’s
testimony contradicts this statement. Weisberg confirmed [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. Weisberg (Maersk) Dep.,
CX00000709 at 115:3-8.

123. As of November 21, 2021, the CCM website identified Maersk’s choice policy as
being to not offer choice. Weisberg (Maersk) Dep., CX00000709 at 51:7-15. [REDACTED]
[REDACTED]
Weisberg (Maersk) Dep., CX00000709 at 51:16 ([REDACTED]).

RESPONSE: Denied. The testimony cited speaks for itself and does not do the work that IMCC
describes it as doing in its “fact.” [REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the CCM website identified Maersk’s choice policy as being not to offer choice as of November 21, 2021. Further, Respondents do not cite any support for their assertion that Maersk “is not best suited to confirm whether CCM had been notified of a change for the purposes of updating its website.” As Ken Tock (CCM) testified, “[REDACTED]

[REDACTED]

[REDACTED]” Tock (CCM) Dep., CX00000459 at 122:17-24. Further, the CCM website still states (as of April 23, 2022) that Maersk’s chassis provision option in the SACP is “Chassis provided only by DCLI[.]” *See supra*, ¶ 87.

MSC

124. [REDACTED]

Roveccio (MSC) Dep., CX00000799 at 180:15-19 (“[REDACTED]

[REDACTED]”).

RESPONSE: Admitted.

125. [REDACTED]

[REDACTED] Roveccio (MSC) Dep., CX00000799 at 37:19-38-7, 120:8-20.

RESPONSE: Admitted.

126. [REDACTED]
[REDACTED]

[REDACTED]. Roveccio (MSC) Dep., CX00000799 at 35:15-25, 43:25-44:17.

RESPONSE: Admitted.

127. Both the CUC and ECU are “[REDACTED]
[REDACTED].” Roveccio (MSC) Dep., CX00000799 at 36:5-9.

RESPONSE: Admitted.

128. [REDACTED]
[REDACTED]

[REDACTED].” Roveccio (MSC) Dep.,
CX00000799 at 52:3-11.

RESPONSE: Denied. [REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not dispute that the statement accurately quotes the testimony. [REDACTED]

[REDACTED]
[REDACTED]. *See supra*, ¶¶ 126-27; *infra*, ¶ 129.

129. The per diem is “[REDACTED]
[REDACTED].” Roveccio (MSC) Dep., CX00000799 at 52:23-16.

RESPONSE: Admitted.

130. [REDACTED]

[REDACTED]. Roveccio (MSC) Dep., CX00000799 at 108:10-11; CX00002256 (Roveccio Dep. Ex.

15) at 256 (Roveccio: “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]); Roveccio (MSC) Dep., CX00000799 at 116:24-117:7 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”).

RESPONSE: Denied. This SUMF mischaracterizes the testimony it cites. This SUMF describes a portion of MSC’s testimony that is only part of an answer to support its position here.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Finally, IMCC

characterizes MSC as refusing choice when it simply reiterates the policy of securing chassis

from DCLI when the customer has paid a chassis usage fee.

REPLY: There is no dispute of material fact. Respondents do not deny that MSC’s corporate witness testified, “[REDACTED].” Roveccio (MSC) Dep., CX00000799 at 108:10-11. Respondents’ additional citations only confirm that this was at least in part because of the fact that [REDACTED] (*supra*, ¶ 125). Respondents also fail to address the cited testimony, where MSC’s corporate witness testified that MSC “[REDACTED]” Roveccio (MSC) Dep., CX00000799 at 117:3-7.

131. [REDACTED]
[REDACTED]. CX00004578 (Roveccio Dep. Ex. 16) at 578 (Roveccio: “[REDACTED]
[REDACTED]
[REDACTED]”); Roveccio (MSC) Dep., CX00000799 at 130:21-131:9 (“[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]”).

RESPONSE: Denied. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. IMCC infers far more than the record supports here.

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes the testimony and cited exhibit. Further, Respondents’ assertion that the email

“does not show MSC responding to the customer” is not relevant. The cited email shows MSC

[REDACTED]

[REDACTED].” CX00004578 at 578.

132. [REDACTED]

[REDACTED]. Roveccio (MSC) Dep., CX00000799 at 38:4-21, 45:2-8.

RESPONSE: Admitted.

133. [REDACTED]

[REDACTED]

[REDACTED]. CX00004549 (Roveccio Dep. Ex. 17) at 549 (“[REDACTED]

[REDACTED]

[REDACTED]”); Roveccio (MSC) Dep., CX00000799 at 134:22-135:2 (“[REDACTED]

[REDACTED]

[REDACTED].”).

RESPONSE: Denied. This SUMF mischaracterizes the testimony. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not cite any testimony that contradicts the fact that MSC, [REDACTED]

[REDACTED].” CX00004549 (Roveccio Dep. Ex. 17) at 549 ([REDACTED])

[REDACTED]”). Nor does the testimony cited by Respondents contradict the testimony of MSC’s corporate witness defining [REDACTED]

[REDACTED].” Roveccio (MSC) Dep., CX00000799 at 134:12-21. Roveccio testifies further that “[REDACTED] [REDACTED].” *Id.* at 134:22-135:2.

134. [REDACTED]

[REDACTED] Roveccio (MSC) Dep, CX00000799 at 134:14-21 ([REDACTED]).

RESPONSE: Denied. [REDACTED]

REPLY: There is no dispute of material fact. [REDACTED]

[REDACTED]. Roveccio (MSC)

Dep., CX00006318 at 99:19-100:21. There, he testified that [REDACTED]

[REDACTED] *Id.* at 100:19-21. Later in the deposition, [REDACTED]

[REDACTED]

[REDACTED]. Roveccio (MSC) Dep., CX00000799 at 134:3-139:2.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *Id.* at 136:17-21.

135. [REDACTED] Roveccio (MSC) Dep., CX00000799 at 137:16-139:3; CX00004549 (Roveccio Dep. Ex. 17) at 549 ([REDACTED] [REDACTED]).

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” Roveccio (MSC) Dep., CX00000799 at 135:3-12.

The cited internal email is an example of [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].”

CX00004549 (Roveccio Dep. Ex. 17) at 549. He goes on to state that MSC’s “[REDACTED]

[REDACTED]

[REDACTED].” *Id.*

136. [REDACTED]

[REDACTED]

[REDACTED]

CX00004549 (Roveccio Dep. Ex. 17) at 549; Roveccio (MSC) Dep., CX00000799 at 138:8-19.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED].

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not deny that the statement accurately quotes the cited internal email, nor that email was describing [REDACTED]

[REDACTED]. *See also supra*, ¶ 135.

137. [REDACTED]

[REDACTED]. Roveccio (MSC) Dep., CX00000799 at 138:20-139:2.

RESPONSE: Denied. IMCC’s conclusion here is overstated. [REDACTED]

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Both the statement and the response agree that [REDACTED]

[REDACTED]

[REDACTED].” Roveccio (MSC) Dep., CX00000799 at 138:25-139:2.

ONE

138. [REDACTED]

[REDACTED]

[REDACTED] Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 49:9-13.

RESPONSE: Admitted.

139. [REDACTED]. Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 93:2-12.

RESPONSE: Admitted.

140. [REDACTED]

[REDACTED]. Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 50:2-4.

RESPONSE: Admitted.

141. [REDACTED]

[REDACTED]

[REDACTED] Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 50:17-23.

RESPONSE: Denied. [REDACTED]

[REDACTED] IMCC

overstates the testimony here.

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes the testimony. Further, the fact that “[REDACTED]
[REDACTED]”

Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 50:17-23.

142. [REDACTED] Armstrong
(ONE) (10/06/2021) Dep., CX00000544 at 50:24-51:3.

RESPONSE: Denied. This SUMF misrepresents the cited testimony, [REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes the testimony. Armstrong’s testimony that [REDACTED]
[REDACTED].” Armstrong
(ONE) (10/06/2021) Dep., CX00000544 at 50:24-51:3.

143. [REDACTED]
[REDACTED] Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 51:4-6.

RESPONSE: Denied. This SUMF misrepresents the cited testimony, [REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes the testimony. Further, Respondents fail to cite support for their assertion that this testimony applies only at present. The quoted exchange in full is as follows: “[REDACTED]
[REDACTED].” Armstrong
(ONE) (10/06/2021) Dep., CX00000544 at 51:4-6.

144. [REDACTED]
[REDACTED]

Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 93:2-12.

RESPONSE: Admitted.

145. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Armstrong (ONE) (10/06/2021) Dep.,
CX00000544 at 93:2-12.

RESPONSE: Denied. This SUMF misrepresents the testimony by describing only part of
ONE’s response. ONE explicitly states that [REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny that the statement
accurately quotes the testimony. Armstrong does testify that ONE “[REDACTED]
[REDACTED]
[REDACTED]” Armstrong (ONE) (10/06/2021) Dep., CX00000544 at
93:2-4. This testimony, though, is immediately followed by the quotation above: “[REDACTED]
[REDACTED]” *Id.* at
93:5-12 (emphasis added). The context relied on by Respondents does not contradict the
remainder of Armstrong’s testimony regarding [REDACTED]
[REDACTED].

146. [REDACTED]

[REDACTED]

[REDACTED] CX00005422 (Armstrong Dep. Ex. 7) at 423;

see also Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 95:6-14 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”).

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes the cited exhibit and testimony. Respondents’ cited testimony does not contradict the fact that ONE [REDACTED]

[REDACTED]”

CX00005422 (Armstrong Dep. Ex. 7) at 423. In fact, this statement is one bullet under the

header “[REDACTED]” in

an email drafted by ONE’s corporate witness, Ronald Armstrong.

147. [REDACTED]. CX00002468

(Armstrong Dep. Ex. 3) at 470 (“[REDACTED]

[REDACTED]”).

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately describes the cited exhibit. Further, Respondents admit that [REDACTED]

[REDACTED]

148. [REDACTED]

[REDACTED]” Armstrong (ONE)

(10/28/2021) Dep., CX00000606 at 111:7-11; *see also id.* at 126:23-127:7 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”).

RESPONSE: Denied. The testimony cited speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not deny that the statement accurately quotes the testimony. Further, Respondents do not dispute the factual assertion.

149. [REDACTED]

[REDACTED] CX00002468 (Armstrong Dep. Ex. 3) at 468-69; Armstrong (ONE)

(10/06/2021) Dep., CX00000544 at 63:4-16.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

IMCC overstates the evidence in the form of an unsupported conclusion here.

REPLY: There is no dispute of material fact. Respondents incorrectly state that “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] In the cited exhibit, a CCM Customer Support Manager asked ONE, “ [REDACTED]?”

CX00002468 at 469. Jeff Kabella (ONE) confirmed, “[REDACTED]

[REDACTED].” *Id.* at 468. In an earlier email in the same thread, Kabella stated, “[REDACTED]

[REDACTED]

[REDACTED].” *Id.* at 470.

150. [REDACTED]

[REDACTED] Armstrong (ONE) (10/28/2021) Dep., CX00000606 at 94:16-19; CX00005495 (Armstrong Dep. Ex. 22) at 495.

RESPONSE: Denied. [REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents admit that ONE’s corporate witness

[REDACTED] Further, the document cited by

Respondents shows that ONE [REDACTED]

[REDACTED]

[REDACTED]”

APP2143-APP2144 ([REDACTED])

[REDACTED]).

151. [REDACTED]

[REDACTED] CX00005493 (Armstrong Dep. Ex. 24) at 493; Armstrong (ONE) (10/28/2021) Dep.,

CX00000606 at 104:16-18.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Respondents ignore the cited testimony, where

ONE’s corporate witness confirms that “[REDACTED]”

Armstrong (ONE) (10/28/2021) Dep., CX00000606 at 104:16-18. Further, in the testimony cited

by Respondents, Mr. Armstrong confirms that ONE [REDACTED]

[REDACTED].

152. [REDACTED]

CX00005482 (Armstrong Dep. Ex. 25) at 483; Armstrong (ONE) (10/28/2021) Dep.,

CX00000606 at 107:22-109:20.

RESPONSE: Denied. This SUMF mischaracterizes the evidence. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents’ assertion that the request was

“ [REDACTED]”

[REDACTED] Further, Respondents’ cited exhibit shows that [REDACTED]

[REDACTED]

[REDACTED]. APP2146 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]”).

153. [REDACTED]

CX00005500 (Armstrong Dep. Ex. 26) at 500; Armstrong (ONE) (10/28/2021) Dep.,

CX00000606 at 120:5-16.

RESPONSE: Denied. This SUMF mischaracterizes the evidence. [REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny that [REDACTED]

[REDACTED], and there is no evidence in the record as to [REDACTED]

[REDACTED].

154. [REDACTED]

[REDACTED] CX00005480 (Armstrong Dep. Ex. 27) at 480; CX00005478(Armstrong Dep. Ex. 28)

at 478; Armstrong (ONE) (10/28/2021) Dep., CX00000606 at 122:15-125:15.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny that [REDACTED]

[REDACTED]. CX00005478 at

478; CX00005480 at 480. Further, Respondents’ cited exhibit shows [REDACTED]

[REDACTED]. APP2159.

Wan Hai

155. [REDACTED]. Chung (Wan Hai)
Dep., CX00000304 at 22:17-21.

RESPONSE: Admitted.

156. [REDACTED]. Chung (Wan Hai)
Dep., CX00000304 at 87:7-9; CX00004864, CCM Chassis Provider Matrix (Chung Dep. Ex. 9).

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. The complete quote relied on by Respondents is
that, “[REDACTED]

[REDACTED]

[REDACTED]” CX00000304

at 88:25-89:7. Chung testified further that [REDACTED]

[REDACTED]. *Id.* at 90:9-12.

157. [REDACTED]

[REDACTED]

[REDACTED]. Chung (Wan Hai) Dep., CX00000304 at 88:10-25 (“[REDACTED]”).

RESPONSE: Denied. This SUMF misrepresents Wan Hai’s policy and ignores direct testimony from Wan Hai that [REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 156 ([REDACTED]).

158. [REDACTED]

[REDACTED]. *Id.* at 88:25-89:7.

RESPONSE: Admitted.

159. [REDACTED]

[REDACTED]

Id., at 89:19-90:12. (“[REDACTED]”).

RESPONSE: Denied. The testimony cited speaks for itself. Furthermore, TRAC is best positioned to respond to this “fact” as the party that is implicated by it, but also because the testimony cited literally states that [REDACTED] does not have the information in question.

161. Yang Ming’s Interrogatory Responses state that with respect to the SACP, “Yang Ming has sometimes permitted chassis choice” and “[t]o the best of its knowledge, Yang Ming has approved most requests except where the request involved carrier haulage.” CX00002136 at 141, Yang Ming Resps. & Objs. to Interrog. No. 3 (Micena Dep. Ex. 12).

RESPONSE: Admitted.

162. [REDACTED]
[REDACTED] See, e.g., December 7, 2018 Email from Tony Micena (Yang Ming) to Ken Tock (CCM), CX00002457 at 457 ([REDACTED]
[REDACTED]); see also Micena (Yang Ming) Dep., CX00000001 at 361:17-362:25.

RESPONSE: Admitted.

163. [REDACTED]
[REDACTED] See, e.g., October 5, 2018 Email from Tony Micena (Yang Ming) to Will Douglas (IMC), CX00004460 at 460 (“[REDACTED]
[REDACTED]
[REDACTED]”).

RESPONSE: Denied. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. Respondents admit that “[REDACTED]
[REDACTED].” Respondents also cite to a document that is not in any of their appendices or in IMCC’s appendices, in violation of Initial Order ¶¶ 15-16. Further,

Respondents’ [REDACTED]
[REDACTED]
[REDACTED]. This is consistent with Yang Ming’s own Interrogatory Responses, which state that “[REDACTED].” CX00002136 at 141 (emphasis added).

164. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]” CX00005859 (Micena Dep. Ex. 18) at 864; *see also* Micena (Yang Ming) Dep., CX00000001 at 282:22-283:10, 376:13-377:12 (“[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]”).

RESPONSE: Admitted. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

165. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Micena (Yang Ming) Dep., CX00000001 at 383:5-384:11; CX00005832(Micena Dep. Ex. 25) at 837.

RESPONSE: Admitted. [REDACTED]

[REDACTED]

ZIM

166. ZIM generally allowed motor carriers and BCOs to exercise chassis choice in MH movements.

RESPONSE: Admitted.

167. In the record, there are fifty-two requests between April 4, 2016, and February 5, 2021, for chassis choice for MH moves. ZIM Interrogatory No. 3 (Messing Dep. Ex. 16) at 5.

RESPONSE: Admitted.

168. Of those 52 requests, 51 were approved. ZIM Interrogatory No. 3 (Messing Dep. Ex. 16) at 5.

RESPONSE: Admitted.

169. The sole non-approval arose when the merchant sought to exercise chassis choice to TRAC, who was already ZIM’s chassis provider, and so “[REDACTED]” Messing (ZIM) Dep., CX00000260 at 129:23-130:3; ZIM Interrogatory No. 3 (Messing Dep. Ex. 16) at 5.

RESPONSE: Admitted.

C. Motor Carriers and BCOs Are Increasingly Exercising Chassis Choice.

170. [REDACTED]

[REDACTED]. See CX00006145, “Choie

package data.xlsx” spreadsheet.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]. See CX00006145, “Choie package data.xlsx” spreadsheet.

REPLY: There is no dispute of material fact. Respondents produced the cited exhibit and relied on it in their own expert’s rebuttal report. Citing to this same exhibit, Respondents’ expert stated, “[REDACTED]” CX00001688 at 690.

171. [REDACTED]

[REDACTED]. *Id.*

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Respondents produced the cited exhibit and relied on it in their own expert’s rebuttal report. Citing to this same exhibit, Respondents’ expert stated, [REDACTED]” CX00001688 at 690.

IV. RESPONDENT OCEAN CARRIERS’ CONTRACTS WITH IEPS LINK CH RATES TO MH VOLUME.

A. Ocean Carriers’ Contracts with IEPs Link CH/MHE Rates to MH Volume.

CMA

172. [REDACTED]

[REDACTED]. Fentress

(CMA) Dep., CX0000916 162:4-6; 169:17-21.

RESPONSE: Admitted.

173. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” CX00002736 (Fentress Dep. Ex. 13) at 743.

RESPONSE: Denied. [REDACTED]

[REDACTED]. Most notably, this evidence relates to a non-party to this litigation and does not lend itself to characterizations by the parties to the litigation as fact.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not deny that the statement accurately quotes the cited exhibit. Proposals by IEPs in response to an ocean carrier’s Request for Proposal are relevant and material. Such responses were intended to be relied upon by the ocean carrier in selecting which IEP(s) to contract with for the provision of chassis in each region in which the ocean carrier operates. These [REDACTED]

[REDACTED]

[REDACTED]. IMCC Reply 9-10.

174. [REDACTED]

[REDACTED] *Id.* at 744.

[REDACTED]

[REDACTED] as shown below:

[REDACTED]

Id. at 644; Fentress (CMA) Dep., CX0000916 at 163:4-164:24 (“... [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].”).

RESPONSE: Denied. [REDACTED]

[REDACTED]. Most notably, this evidence relates

to a non-party to this litigation and does not lend itself to characterizations by the parties to the litigation as fact.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 173 (addressing Respondents’ assertions regarding the materiality and relevance of proposed contract provisions [REDACTED] [REDACTED]).

175. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” CX00002686
(Fentress Dep. Ex. 14) at 707; Fentress (CMA) Dep., CX0000916 171:21-172:20 (“... [REDACTED]
[REDACTED]
[REDACTED]”).

RESPONSE: Denied. [REDACTED]
[REDACTED]. Most notably, this evidence relates to a non-party to this litigation and does not lend itself to characterizations by the parties to the litigation.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 173 (addressing Respondents’ assertions regarding the materiality and relevance of proposed contract provisions [REDACTED] [REDACTED]); CX00002686 (Fentress Dep. Ex. 14) at 706.

176. [REDACTED]

[REDACTED]

[REDACTED]

CX00002686 (Fentress Dep. Ex. 14) at 686. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. [REDACTED]

[REDACTED]. Most notably, this evidence relates to a non-party to this litigation and does not lend itself to characterizations by the parties to the litigation.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 173 (addressing Respondents’ assertions regarding the materiality and relevance of proposed contract provisions [REDACTED] [REDACTED]); CX00002686 (Fentress Dep. Ex. 14) at 706.

177. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *See* January 1, 2017, CMA/TRAC CUA, CX00002586 (Fentress Dep. Ex. 16)

at 586, 602-08.

RESPONSE: Admitted.

178. [REDACTED]

[REDACTED], *Id.* at 589.

RESPONSE: Admitted.

179. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 617.

RESPONSE: Admitted.

180. [REDACTED]

[REDACTED]. *See* December 1, 2017, CMA/TRAC Amendment, CX00002582 at 582, 585.

RESPONSE: Admitted.

181. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *See* December 3, 2019 CMA/TRAC CUA, CX00002536 at 554-562.

RESPONSE: Admitted.

182. [REDACTED]

[REDACTED]. *Id.* at 541.

RESPONSE: Admitted.

183. [REDACTED]

[REDACTED]

[REDACTED] CX00002629 (Fentress Dep. Ex. 18) at

633. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 173 (addressing Respondents’ assertions regarding the materiality and relevance of proposed contract provisions [REDACTED] [REDACTED] [REDACTED]). Further, Respondents do not dispute that

[REDACTED]

[REDACTED].” The December 3, 2019

CMA/TRAC CUA did ultimately include “[REDACTED]

[REDACTED]

[REDACTED]” CX00002536 at 551.

184. [REDACTED]

[REDACTED].

[REDACTED]

Id.; Fentress (CMA) Dep., CX00000916 at 210:11-211:2 [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Denied. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 173 addressing Respondents’ assertions regarding the materiality and relevance of proposed contract provisions [REDACTED]

[REDACTED]). Further, the statement that [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. The

testimony of CMA’s corporate witness clarifies his understanding [REDACTED]
[REDACTED]
[REDACTED].” CX00000916 at 210:11-18.

185. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] CX00002629

(Fentress Dep. Ex. 18) at 635; Fentress (CMA) Dep., CX00000916 at 211:11-25 [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

RESPONSE: Denied. [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]. The testimonial evidence cited by IMCC is also hypothetical and speculative of the intent of a non-party to this litigation.

REPLY: There is no dispute of material fact. *See supra*, ¶ 173 (addressing Respondents’ assertions regarding the materiality and relevance of proposed contract provisions [REDACTED] [REDACTED]), 183 ([REDACTED] [REDACTED]). Further, CMA’s corporate representative’s testimony confirms his [REDACTED]. Therefore, it is neither hypothetical nor speculative.

186. [REDACTED]
[REDACTED]
[REDACTED] CX00002629 (Fentress Dep. Ex. 18) at 634.

RESPONSE: Denied. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 173 (addressing Respondents’ assertions regarding the materiality and relevance of proposed contract provisions [REDACTED] [REDACTED]). Further, the [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED].” CX00002536 at 570; *see also infra*, ¶ 189.

187. Pursuant to the December 3, 2019 CMA/TRAC CUA:

[REDACTED]

December 3, 2019 CMA/TRAC CUA, CX00002536 at 551 (emphasis in original).

RESPONSE: Denied. This SUMF is not material, because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the cited contract includes the quoted provision or that the statement accurately quotes the provision. This provision is relevant and material to IMCC’s argument that Respondent ocean carriers’ contracts linking MH volumes with CH prices (or direct payments from the IEP to the ocean carrier) are unjust and unreasonable. IMCC MSD 20-21.

188. Pursuant to the December 3, 2019, CMA/TRAC CUA, [REDACTED]

[REDACTED]:

[REDACTED]

[REDACTED]

Id. at 599–601.

RESPONSE: Denied. This SUMF is not material, [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]
[REDACTED]).

189. Pursuant to the December 3, 2019, CMA/TRAC CUA, [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Id. at 570.

RESPONSE: Denied. This SUMF is not material, [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

190. [REDACTED]
[REDACTED]. *See* March 1, 2021, Amendment, CX00002521 at 521–24.

RESPONSE: Admitted.

COSCO

191. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *See* May 1, 2016, COSCO/TRAC CUA, CX00003121 (Houghtalin Dep. Ex. 12) at 121, 131; *see also* Houghtalin (COSCO) Dep., CX00000337 at 192:8-25, 193:5-25.

RESPONSE: Admitted.

192. [REDACTED]
[REDACTED]. *Id.* at 838; Houghtalin (COSCO) Dep., CX00000337 at 192:8-25, 194:9-19.

RESPONSE: Admitted.

193. [REDACTED]
[REDACTED]. Houghtalin (COSCO) Dep., CX00000337 at

188:2-10; *see also* CX00002818 (Houghtalin Dep. Ex. 13).

RESPONSE: Admitted.

194. [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]” CX00002826 (Houghtalin Dep. Ex. 14) at 826-27; *see also*
Houghtalin (COSCO) Dep., CX00000337 at 225:22-226:23.

RESPONSE: Denied. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 173 (addressing Respondents’
assertions regarding the materiality and relevance of proposed contract provisions [REDACTED]
[REDACTED]).

195. [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” CX00002826 (Houghtalin Dep. Ex. 14) at 832; *see also* Houghtalin (COSCO) Dep., CX00000337 at 231:2-232:13.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 173 (addressing Respondents’ assertions regarding the materiality and relevance of proposed contract provisions [REDACTED] [REDACTED]).

196. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00002886 (Houghtalin Dep. Ex. 15) at 889; *see also* Houghtalin (COSCO) Dep., CX00000337 at 244:16-246:16 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”).

RESPONSE: Denied. This SUMF ignores significant contextual information included in the

same exhibit that IMCC cites, [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny that COSCO characterized the fact that the [REDACTED]
[REDACTED]
[REDACTED].” CX00002886 at 889 (emphasis added). Respondents also do not deny that the [REDACTED]
[REDACTED],” which COSCO’s corporate witness confirmed [REDACTED]
[REDACTED]. *Id.*; CX00000337 at 244:24-245:16. Further, COSCO’s statement that [REDACTED]
[REDACTED]
[REDACTED]; COSCO goes on to state that “[REDACTED]
[REDACTED]
[REDACTED].” CX00002886 at 889.

197. [REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *See* July 1, 2018, COSCO/DCLI CUA, CX00002796 (Houghtalin Dep. Ex. 16) at 796, 798, 808; *see also* COSCO SS List_v2, CX00003117 (Houghtalin Dep. Ex. 17); Houghtalin (COSCO) Dep., CX00000337 at 246:21-247:25, 250:12-252:5, 262:6-265:12.

RESPONSE: Admitted.

198. [REDACTED]

[REDACTED]. *Id.* at 796; *see also* Houghtalin (COSCO) Dep., CX00000337 at 247:17-25 ([REDACTED]).

RESPONSE: Admitted.

199. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *Id.* at 809–811; *see also* Houghtalin (COSCO) Dep., CX00000337 at 186:2-25 (“[REDACTED]”), 253:3-261:22 ([REDACTED]), 259:2-17 ([REDACTED]).

RESPONSE: Denied. This SUMF is not material. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

<https://www.ccmpool.com/Membership/Chassis-Providers/>

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the cited contract includes the described provision or that the statement accurately describes the provision. This provision is relevant and material to IMCC’s argument that Respondent ocean carriers’ contracts linking MH volumes with CH prices (or direct payments from the IEP to the ocean carrier) are unjust and unreasonable. IMCC MSD 20-21.

200. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *Id.* at 809, 811.

RESPONSE: Denied. This SUMF describes a hypothetical that is not material, [REDACTED]

[REDACTED]

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]).

201. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *Id.* at 811; *see also* Houghtalin (COSCO) Dep., CX00000337 at 259:18-261:22.

RESPONSE: Denied. This SUMF describes a hypothetical that is not material, [REDACTED]
[REDACTED].

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]
[REDACTED]).

202. [REDACTED]
[REDACTED]
[REDACTED]. *See* July 1, 2018, COSCO/TRAC CUA, CX00002782 (Houghtalin Dep. Ex. 20) at 782, 792; *see also* Houghtalin (COSCO) Dep., CX00000337 at 275:12-276:17.

RESPONSE: Admitted.

203. [REDACTED]
[REDACTED]. *Id.* at 782; *see also* Houghtalin (COSCO) Dep., CX00000337 at 276:18-

24.

RESPONSE: Admitted.

204. Pursuant to the July 1, 2018, COSCO/TRAC CUA, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] July 1, 2018, COSCO/TRAC CUA, CX00002782 (Houghtalin Dep. Ex. 20) at 786.

RESPONSE: Admitted.

205. [REDACTED]

[REDACTED].” CX00003037 (Houghtalin Dep. Ex. 23) at 037; *see also* Houghtalin (COSCO) Dep., CX00000337 at 298:4-16.

RESPONSE: Admitted.

206. [REDACTED]

[REDACTED]. *See* April 1, 2020, COSCO/TRAC Amendment, CX00002813 (Houghtalin Dep. Ex. 22) at 813; *see also* Houghtalin (COSCO) Dep., CX00000337 at 290:8-291:7.

RESPONSE: Admitted.

207. Pursuant to the April 1, 2020, COSCO/TRAC Amendment, the term of the July 1, 2018 COSCO/TRAC Contract was extended through December 31, 2024. *Id.*; *see also* Houghtalin (COSCO) Dep., CX00000337 at 291:20-24.

RESPONSE: Admitted.

Evergreen

208. [REDACTED]

[REDACTED]. *See*

November 28, 2016, Evergreen/TRAC PSA, CX00003550.

RESPONSE: Admitted.

209. [REDACTED]

[REDACTED]

[REDACTED]. *Id.* at 550.

RESPONSE: Denied. NY and NJ are not relevant to the scope of discovery that was agreed to by the parties and completed in advance of this stage of the litigation.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not deny that the cited contract includes the described provision or that the statement accurately describes the provision. Further, the agreement on the scope of geographic discovery does not preclude citations to agreements or communications produced by Respondents that refer to other ports and inland terminals, particularly when those agreements or documents provide evidence of the overall business context in which those agreements or communications occurred.

210. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *See* November 28, 2016, Evergreen/TRAC CUA,

CX00003532 at 532, 535.

RESPONSE: Denied. NY and NJ are not relevant to the scope of discovery that was agreed to

by the parties and completed in advance of this stage of the litigation. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 209 (addressing Respondents’ assertion regarding the relevance of New York and New Jersey). Further, [REDACTED]

[REDACTED]. JSF 231.

211. [REDACTED]

[REDACTED]. *Id.* at 535.

RESPONSE: Denied. As noted above, the [REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. The response and citation provided by Respondents confirm the statement.

212. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].”

Id. at 538.

RESPONSE: Denied. NY and NJ are not relevant to the scope of discovery that was agreed to by the parties and completed in advance of this stage of the litigation. Furthermore [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]), 209 (addressing Respondents’ assertion regarding the relevance of New York and New Jersey).

213. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *Id.* at 538-39.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

214. [REDACTED]
[REDACTED]
[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

215. [REDACTED]
[REDACTED]
[REDACTED]

Id.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

216. [REDACTED]
[REDACTED]. *See*
December 1, 2017 Evergreen/TRAC PSA, CX00003639.

RESPONSE: Admitted.

217. [REDACTED]
[REDACTED]
[REDACTED]. *Id.* at 640.

RESPONSE: Admitted.

218. [REDACTED]
[REDACTED]
[REDACTED]. See December 1, 2017
Evergreen/TRAC contract, CX00003226 (Wang Dep. Ex. 11) at 226, 244.

RESPONSE: Admitted.

219. [REDACTED]
[REDACTED]. *Id.* at 230.

RESPONSE: Admitted.

220. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *Id.*

RESPONSE: Admitted.

221. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Id. at 234.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

222. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] *Id.* at 234-35.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

223. [REDACTED]
[REDACTED]
[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

224. [REDACTED]
[REDACTED]
[REDACTED]

Id.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

225. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *See*

October 22, 2019, Evergreen/DCLI EGA CUA, CX00003784 (Wang Dep. Ex. 12) at 784, 801.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents inaccurately characterize this statement as describing a “hypothetical situation.” Further, they stipulated to the fact that [REDACTED]. *See* JSF ¶ 236.

226. [REDACTED]

[REDACTED]. *Id.* at 787.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents inaccurately characterize this statement as describing a “hypothetical situation.” Further, they stipulated to [REDACTED]

[REDACTED]. *See* JSF ¶ 237.

227. [REDACTED]

[REDACTED]

[REDACTED]. *See* October 22, 2019, Evergreen/DCLI EMC Amendment No. 1, CX00003815.

RESPONSE: Admitted.

228. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *See* October 22, 2019 Evergreen/DCLI EMC CUA, CX00003754 at 754, 771.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. Respondents inaccurately characterize this statement as describing a “hypothetical situation.” Further, they stipulated to the fact that [REDACTED]. *See* JSF ¶ 238.

229. [REDACTED]
[REDACTED]. *Id.* at 757.

RESPONSE: Admitted.

230. [REDACTED]
[REDACTED]
[REDACTED]. *Id.* at 759.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]
[REDACTED]).

231. [REDACTED]
[REDACTED]. *Id.* at 775.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]
[REDACTED]).

232. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]
[REDACTED]). Further, Respondents inaccurately characterize the definition of a term as a “hypothetical situation.”

233. [REDACTED]
[REDACTED]
[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

234. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

235. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

236. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

237. Pursuant to the October 22, 2019, Evergreen/DCLI EMC CUA:

[REDACTED]

[REDACTED]

Id. at 760 (emphasis added).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]).

238. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 765.

RESPONSE: Admitted.

Hapag-Lloyd

239. [REDACTED]

[REDACTED]

[REDACTED] *See* November 28, 2012,

Hapag-Lloyd/TRAC PSA, CX00004036 at 036.

RESPONSE: Admitted.

240. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. See December 21, 2012, Hapag-Lloyd/TRAC CUA, CX00004010

(Barattini Dep. Ex. 7) at 010, 021; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep.,

CX00000654 at 103:11-18 ([REDACTED]).

RESPONSE: Admitted.

241. [REDACTED]

[REDACTED] *Id.* at 010.

RESPONSE: Admitted.

242. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at

019.

RESPONSE: Admitted.

243. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 012; *see also* Barattini (Hapag-Lloyd)

(10/01/2021) Dep., CX00000654 at 104:3-15 (confirming meaning of contractual language),

105:9-18 ([REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]
[REDACTED]).

244. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *See* Nov. 28, 2012 Hapag-Lloyd/DCLI CPA, CX00003993 at 995-96.

RESPONSE: Admitted.

245. [REDACTED]
[REDACTED]. *Id.* at 996-97.

RESPONSE: Admitted.

246. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See December 21, 2012,

Hapag-Lloyd/DCLI CUA, CX00004049 at 049. “

RESPONSE: Admitted.

247. [REDACTED]

[REDACTED]. *Id.*

RESPONSE: Admitted.

248. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Admitted in part, denied in part. [REDACTED]

[REDACTED].

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. See Initial Order, ¶ 16. It is unclear what portion of this statement Respondents purport to deny. Respondents do not explain their partial denial, fail to support their denial with any citation, and do not contend that the statement is immaterial.

249. [REDACTED]

[REDACTED]

[REDACTED]

Id.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the cited contract includes the quoted provision or that the statement accurately quotes the provision. The cited contractual provision is relevant and material to show that [REDACTED]

[REDACTED].”

CX00004049 at 049 (“[REDACTED]

[REDACTED]” (emphasis added)). Further, if the term was never used, then the contractual provision is excessive and not tailored to ensuring [REDACTED]

[REDACTED], and thus unreasonable. *See* IMCC Response to Respondents’ MSD 14.

250. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 049-50.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the cited contract includes the quoted provision or that the statement accurately quotes the provision. Even assuming arguendo that the contractual provision was never used, it is still relevant and material to the motions. *See supra*, ¶ 249.

251. Pursuant to the December 21, 2012, Hapag-Lloyd/DCLI CUA:

[REDACTED]

Id. at 058.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

252. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 050.

RESPONSE: Admitted in part denied in part. [REDACTED]
[REDACTED].

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. It is unclear what portion of this statement Respondents purport

to deny. Respondents do not explain their partial denial, fail to support their denial with any citation, and do not contend that the statement is immaterial.

253. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Admitted in part denied in part. [REDACTED]
[REDACTED].

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. It is unclear what portion of this statement Respondents purport to deny. Respondents do not explain their partial denial, fail to support their denial with any citation, and do not contend that the statement is immaterial.

254. [REDACTED]

[REDACTED] *Id.* at 058.

RESPONSE: Denied. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not cite any support for their assertion that [REDACTED]
[REDACTED]
[REDACTED].

255. [REDACTED]

[REDACTED] *See*

January 1, 2013, Hapag-Lloyd/Flexi-Van CUA, CX00004060 (Barattini Dep. Ex. 8) at 060.

RESPONSE: Admitted.

256. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *See* January 1, 2016 Hapag-Lloyd/TRAC CUA, CX00004115 (Barattini Dep. Ex. 13) at 129, 142.

RESPONSE: Admitted.

257. [REDACTED]

[REDACTED] *Id.* at 129; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 148:6-9 (confirming term of agreement).

RESPONSE: Admitted.

258. Pursuant to the January 1, 2016, Hapag-Lloyd/DCLI CUA:

[REDACTED]

CX00004101 (Barattini Dep. Ex. 9) at 113-14.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

259. [REDACTED]

[REDACTED]

[REDACTED]. *See* 10/01/2017 Hapag-Lloyd/DCLI Amendment, CX00004086 (Barattini Dep. Ex. 10) at 086.

RESPONSE: Admitted.

260. [REDACTED]

[REDACTED]

[REDACTED] *Id.*; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 128:21-129:4. [REDACTED]

[REDACTED].

RESPONSE: Admitted.

261. [REDACTED]

[REDACTED]

_____).

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]).

262. [REDACTED]

[REDACTED]

[REDACTED].

See October 1, 2018 Hapag-Lloyd/DCLI CUA, CX00003894 at 894.

RESPONSE: Admitted.

263. [REDACTED]

[REDACTED]. *Id.*

RESPONSE: Admitted.

264. Pursuant to the October 1, 2018, Hapag-Lloyd/DCLI CUA:

[REDACTED]

Id. at 206.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

265. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *See* January 1, 2019 Hapag-Lloyd/TRAC CUA, CX00003906 (Coates Dep. Ex. 7) at 906, 922.

RESPONSE: Admitted.

266. [REDACTED]

[REDACTED] *Id.* at 906.

RESPONSE: Admitted.

267. Pursuant to the January 1, 2019, Hapag-Lloyd/TRAC CUA:

[REDACTED]

[REDACTED]

Id. at 912; *see also* CX00003893 (Barattini Dep. Ex. 21) at 893 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

HMM

268. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] *See* June 19, 2013, HMM/DCLI CPA, CX00004382 (Compton Dep. Ex. 8) at 384.

RESPONSE: Admitted.

269. [REDACTED]. *Id.*
at 386.

RESPONSE: Admitted.

270. [REDACTED]
[REDACTED]
[REDACTED] *Id.*

RESPONSE: Admitted.

271. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] See June 19, 2013, HMM/DCLI CUA,
CX00004416 at 416, 423-24.

RESPONSE: Admitted.

272. [REDACTED]

[REDACTED] *Id.* at 417; *see also* CX0004382 (Compton Dep. Ex. 8) at 386.

RESPONSE: Admitted.

273. [REDACTED]

[REDACTED]
[REDACTED] June 19,
2013 HMM/DCLI CUA, CX00004382 at 418.

RESPONSE: Denied. The contract clearly states that [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the cited contract includes the quoted provision or that the statement accurately quotes the provision. Further, Respondents do not cite any support for their assertion that the [REDACTED]

[REDACTED]
[REDACTED]. See
CX00004382 at 418 ([REDACTED]
[REDACTED]).

274. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004350 (Compton Dep. Ex. 10) at 351-52 ([REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Ocean carriers’ Requests for Proposal are relevant and material. Such requests were intended to be relied upon by IEPs in submitting proposals to contract with the ocean carrier for the provision of chassis in all or some of the regions in which the ocean carrier operates. These negotiations show [REDACTED]

[REDACTED]

[REDACTED]. IMCC Reply 9-10.

275. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 354; *see also* Compton (HMM) Dep.,

CX00000207 at 102:5-103:4 ([REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF is not material [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 173 (addressing Respondents’
assertions regarding the materiality and relevance of proposed contract provisions [REDACTED]
[REDACTED]).

276. [REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Admitted.

277. [REDACTED]
[REDACTED] *Id.* at 373 (“[REDACTED]
[REDACTED]
[REDACTED].”)

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED].

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue
as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the
Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 173 (addressing Respondents’ assertions

regarding the materiality and relevance of proposed contract provisions [REDACTED]
[REDACTED]).

278. [REDACTED]
[REDACTED].” *Id.* at
370, 372-73 (“[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].”). [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].”).

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 173 (addressing Respondents’
assertions regarding the materiality and relevance of proposed contract provisions [REDACTED]
[REDACTED]).

279. [REDACTED]
[REDACTED]
[REDACTED] CX00004370 (Compton Dep. Ex. 9) at 379.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 173 (addressing Respondents’ assertions regarding the materiality and relevance of proposed contract provisions [REDACTED] [REDACTED]).

280. [REDACTED]

[REDACTED]

[REDACTED].” *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 173 (addressing Respondents’ assertions regarding the materiality and relevance of proposed contract provisions [REDACTED] [REDACTED]).

281. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 380; *see also* Compton (HMM) Dep., CX00000207 at 94:23-95:14.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 173 (addressing Respondents’ assertions regarding the materiality and relevance of proposed contract provisions [REDACTED] [REDACTED]).

282. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] CX00004370 (Compton Dep. Ex. 9) at 380-81.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 173 (addressing Respondents’ assertions regarding the materiality and relevance of proposed contract provisions [REDACTED] [REDACTED]).

283. [REDACTED]
[REDACTED]
[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 173 (addressing Respondents’ assertions regarding the materiality and relevance of proposed contract provisions [REDACTED] [REDACTED]).

284. [REDACTED]
[REDACTED]. *See* August 11, 2017 HMM/DCLI Amendment, CX00004329 at 329.

RESPONSE: Admitted.

285. [REDACTED]
[REDACTED]
[REDACTED]. CX00004191 (Compton Dep. Ex. 12) at 191 (“[REDACTED]
[REDACTED]
[REDACTED]”).

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 173 (addressing Respondents’ assertions regarding the materiality and relevance of proposed contract provisions [REDACTED] [REDACTED]).

286. [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]. See November 30, 2017 HMM/DCLI CUA, CX00004191 (Compton Dep. Ex. 12) at 193, 202-03.

RESPONSE: Admitted.

287. [REDACTED]

[REDACTED]. *Id.* at 194.

RESPONSE: Admitted.

288. Pursuant to the November 30, 2017 HMM/DCLI CUA:

[REDACTED]

Id. at 195; see also Compton (HMM) Dep., CX00000207 at 109:15-23, 110:8-14 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”).

RESPONSE: Denied. The evidence confirms that [REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. See *supra*, ¶ 187 (addressing Respondents’

assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]).

289. Pursuant to the November 30, 2017 HMM/DCLI CUA:

[REDACTED]

Id.

RESPONSE: Admitted.

290. [REDACTED]

[REDACTED]

[REDACTED]. *See* January 1, 2020 HMM/TRAC CUA, CX00004208 at 208, 210.

RESPONSE: Admitted.

291. [REDACTED]

[REDACTED] *Id.* at 208.

RESPONSE: Admitted.

292. Pursuant to the January 1, 2020 HMM/TRAC CUA:

[REDACTED]

Id. at 211.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

Maersk

293. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] *See* January 1, 2015, Maersk/DCLI CUA, CX00004613 (Weisberg Dep. Ex. 5) at 613, 630-35.

RESPONSE: Admitted

294. [REDACTED]
[REDACTED] *Id.* at 613.

RESPONSE: Admitted.

295. [REDACTED]
[REDACTED]. *Id.*

RESPONSE: Admitted.

296. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]” *Id.* at 616.

RESPONSE: Admitted.

297. Pursuant to the January 1, 2015 Maersk/DCLI CUA:

[REDACTED]

Id.; *see also* Weisberg (Maersk) Dep., CX00000709 at 54:18-56:25 ([REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’
assertions regarding the materiality and relevance of contract provisions [REDACTED]
[REDACTED]).

298. Pursuant to the January 1, 2015 Maersk/DCLI CUA:

[REDACTED]

January 1, 2015 Maersk/DCLI CUA, CX00004613 (Weisberg Dep. Ex. 5) at 616; *see also*
Weisberg (Maersk) Dep., CX00000709 at 58:20-59:5 ([REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED].

contradict the testimony of Maersk’s corporate witness. Weisberg (Maersk) Dep., CX00000709 at 61:22-62:5.

300. [REDACTED]

[REDACTED]

[REDACTED]. See March 14, 2018, Maersk/DCLI Amendment, CX00004644 (Weisberg Dep. Ex. 6) at 644.

RESPONSE: Admitted.

301. [REDACTED]

[REDACTED]. *Id.*; see also Weisberg (Maersk) Dep., CX00000709 at 66:12-18.

RESPONSE: Admitted.

302. [REDACTED]

[REDACTED] March 14, 2018 Maersk/DCLI Amendment, CX00004644 (Weisberg Dep. Ex. 6) at 645.

RESPONSE: Admitted.

303. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See July 1, 2017 Maersk/TRAC CUA, CX00004679 at 679, 682.

RESPONSE: Admitted.

304. [REDACTED]

[REDACTED] *Id.* at 679.

RESPONSE: Admitted.

305. [REDACTED] Weisberg

(Maersk) Dep., CX00000709 82:8-20.

RESPONSE: Admitted.

306. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 82:23-83:6.

RESPONSE: Admitted.

307. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *See* July 1, 2018 Maersk/TRAC

CUA, CX00004652 (Weisberg Dep. Ex. 9) at 653, 655.

RESPONSE: Admitted.

308. [REDACTED]

[REDACTED] *Id.* at 653.

RESPONSE: Admitted.

MSC

309. [REDACTED]

[REDACTED] *See* March 26, 2015 MSC/DCLI CPA,

CX00004466 (Roveccio Dep. Ex. 20) at 466; Roveccio (MSC) Dep., CX00000799 at 150:20-151:6.

RESPONSE: Admitted.

310. [REDACTED]

[REDACTED]. Roveccio (MSC) Dep., CX00000799 at 151:7-10.

RESPONSE: Admitted.

311. [REDACTED]

[REDACTED]

[REDACTED]. CX00004466 (Roveccio Dep. Ex. 20) at 468.

RESPONSE: Admitted.

312. [REDACTED]

[REDACTED]. *Id.* at 469.

RESPONSE: Admitted.

313. [REDACTED]

[REDACTED]

[REDACTED]. *Id.* at 470.

RESPONSE: Admitted.

314. [REDACTED]

[REDACTED]. *Id.* at

471.

RESPONSE: Admitted.

315. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. See Roveccio (MSC) Dep., CX00000799 at 154:5-155:6; March 26, 2015
MSC/DCLI CUA, CX00004551 (Roveccio Dep. Ex. 21) at 551, 564-66.

RESPONSE: Admitted.

316. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 553.

RESPONSE: Admitted.

317. [REDACTED]. Roveccio (MSC) Dep.,
CX00000799 at 155:21-23.

RESPONSE: Admitted.

318. [REDACTED]

[REDACTED]

[REDACTED] Roveccio (MSC) Dep.,
CX00000799 at 160:22-161:6; CX00004551 (Roveccio Ex. 21) at 567-68.

RESPONSE: Admitted.

319. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Id. at 567; Roveccio (MSC) Dep., CX00000799 at 160:4-21.

RESPONSE: Admitted.

320. [REDACTED].

CX00004551 (Roveccio Dep. Ex. 21) at 558.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 addressing Respondents’
assertions regarding the materiality and relevance of contract provisions [REDACTED]
[REDACTED]).

321. Under this provision,

[REDACTED]

Id.; Roveccio (MSC) Dep., CX00000799 at 162:3-163:5.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’
assertions regarding the materiality and relevance of contract provisions [REDACTED]
[REDACTED]).

322. [REDACTED]

[REDACTED]
[REDACTED]. Roveccio (MSC) Dep., CX00000799 at 162:14-163:13.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes the cited testimony. The testimony is relevant and material as it relates to the [REDACTED] *See also supra*, ¶¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]
[REDACTED]).

323. [REDACTED]
[REDACTED]
[REDACTED] Roveccio (MSC) Dep., CX00000799 at 163:14-21.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 322 (addressing Respondents’ assertions regarding the materiality and relevance of the [REDACTED]
[REDACTED]).

324. [REDACTED]
[REDACTED]. CX00004551
(Roveccio Dep. Ex. 21) at 558; *see also* Exhibit C, *id.* at 577.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

325. [REDACTED]
[REDACTED]. Roveccio (MSC) Dep., CX00000799 at 164:18-165:5; CX00004551 (Roveccio Dep. Ex. 21) at 558.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 322 (addressing Respondents’ assertions regarding the materiality and relevance of [REDACTED] [REDACTED]).

326. [REDACTED]
[REDACTED] Roveccio (MSC) Dep., CX00000799 at 165:6-17; CX00004551 (Roveccio Dep. Ex. 21) at 558.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 322 (addressing Respondents’ assertions regarding the materiality and relevance of the [REDACTED] [REDACTED]).

327. [REDACTED]
[REDACTED]

Roveccio (MSC) Dep., CX00000799 at 165:18-166:4; CX00004551 (Roveccio Dep. Ex. 21) at 558.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 322 (addressing Respondents’ assertions regarding the materiality and relevance of the [REDACTED]
[REDACTED]).

328. [REDACTED]
[REDACTED] Roveccio (MSC) Dep., CX00000799 at 166:5-10; CX00004551 (Roveccio Dep. Ex. 21) at 558.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 322 (addressing Respondents’ assertions regarding the materiality and relevance of the [REDACTED]
[REDACTED]).

329. [REDACTED]
[REDACTED]. Roveccio (MSC) Dep., CX00000799 at 166:11-18; CX00004551 (Roveccio Dep. Ex. 21) at 558.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 322 (addressing Respondents’ assertions regarding the materiality and relevance of the [REDACTED] [REDACTED]).

330. [REDACTED]. CX00004578 (Roveccio Dep. Ex. 16) at 578 ([REDACTED]); Roveccio (MSC) Dep., CX00000799 at 130:21-131:9 ([REDACTED]).

RESPONSE: Denied. This SUMF misrepresents a statement

REPLY: There is no dispute of material fact.

ONE

331. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. See March 1, 2018 ONE/TRAC CUA, CX00005466 at 466, 469.

RESPONSE: Admitted. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

332. [REDACTED]

[REDACTED]. *Id.* at 466.

RESPONSE: Admitted.

333. [REDACTED]

[REDACTED]

[REDACTED] *Id.*; see also March 1, 2018 ONE/TRAC GTC,

CX00005429 (Armstrong Dep. Ex. 5).

RESPONSE: Admitted.

334. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00005429 (Armstrong Dep. Ex. 5) at 433.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

335. [REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

336. [REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

337. [REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]
[REDACTED]).

338. [REDACTED]
[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]
[REDACTED]).

339. [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

340. [REDACTED]
[REDACTED]
[REDACTED]. CX00005414 at 414; *see also* CX00005440 at 442 ([REDACTED] [REDACTED]).

RESPONSE: Admitted.

341. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. CX00005440 at 442 ([REDACTED] [REDACTED]).

RESPONSE: Denied.

IMCC describes a proposal by a non-party which should not be agreed to as fact in the absence of that party. Furthermore, this statement is not relevant on account of the fact that [REDACTED] [REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 173 (addressing Respondents’ assertions regarding the materiality and relevance of proposed contract provisions [REDACTED] [REDACTED]).

342. [REDACTED]

[REDACTED]. CX00005445 at 445-47 ([REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that [REDACTED]
[REDACTED]. This
provision is relevant and material to IMCC’s argument that Respondent ocean carriers’ contracts
[REDACTED] are
unjust and unreasonable. IMCC MSD 20-21.

343. [REDACTED]

[REDACTED]. See June 1, 2020 ONE/TRAC
amendment, CX00005396 at 396.

RESPONSE: Admitted.

344. [REDACTED]

[REDACTED]. *Id.* at
396, 399.

RESPONSE: Admitted.

345. [REDACTED]

[REDACTED]. *Id.*

at 396.

RESPONSE: Admitted.

346. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. See June 1, 2020 ONE/FLVI CUPA, CX00005382 (Armstrong Dep. Ex. 11) at 382.

RESPONSE: Admitted.

Wan Hai

347. [REDACTED]

[REDACTED]

[REDACTED]. See February 1, 2016

Wan Hai/TRAC CUA, CX00005777 (Chung Dep. Ex. 5) at 777.

RESPONSE: Admitted.

348. [REDACTED]

[REDACTED]. *Id.*

RESPONSE: Admitted.

349. [REDACTED]

[REDACTED] See

February 1, 2017 Wan Hai/TRAC Amendment, CX00005803 (Chung Dep. Ex. 6) at 803.

RESPONSE: Admitted.

350. [REDACTED]

[REDACTED]. *Id.*; Chung (Wan Hai) Dep.,

CX00000304 at 64:24-65:3.

RESPONSE: Admitted.

351. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00005803 (Chung Dep. Ex. 6) at 804.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 187 (addressing Respondents’

assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]). Further, in the cited testimony, Wan Hai’s corporate

witness confirmed [REDACTED]

[REDACTED]. APP1885 at 71:18-19 (“[REDACTED]

[REDACTED]”).

352. [REDACTED]

[REDACTED]

[REDACTED] 8 [REDACTED]

[REDACTED]

[REDACTED]. *Id.* at 806; Chung (Wan Hai) Dep., CX00000304 at 66:23-67:19 ([REDACTED]

[REDACTED]

⁸ [REDACTED]
[REDACTED] *Id.* at 804.

[REDACTED].

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]
[REDACTED]).

353. [REDACTED]. Chung (Wan Hai) Dep., CX00000304 at 66:5-8.

RESPONSE: Admitted.

354. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] *See* April 1, 2020 Wan Hai/TRAC CUA, CX00005789 (Chung Dep. Ex. 7) at 789, 798.

RESPONSE: Admitted.

355. [REDACTED]
[REDACTED]. *Id.* at 789; Chung (Wan Hai) Dep., CX00000304 at 74:20-75:8.

RESPONSE: Admitted.

356. [REDACTED]
[REDACTED]. CX00005789 (Chung Dep. Ex. 7) at 811; Chung (Wan Hai) Dep., CX00000304 at 75:24-76:6 ([REDACTED]).

[REDACTED]).

RESPONSE: Denied. This SUMF is not supported by the cited testimony.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents fail to address that the statement is supported adequately by the cited contract.

357. [REDACTED]

[REDACTED] *See* July 1, 2021 Wan Hai/TRAC Amendment, CX00005771 (Chung Dep. Ex. 8) at 771.

RESPONSE: Admitted.

358. [REDACTED]

[REDACTED]

[REDACTED]. *Id.* at 773; Chung (Wan Hai) Dep., CX00000304 at 77:18-78:16.

RESPONSE: Admitted.

Yang Ming

359. [REDACTED]

[REDACTED]

[REDACTED]. *See* October 1, 2013 Yang Ming/TRAC CUA, CX00006027 (Micena Dep. Ex. 13) at 027; *see also* Micena (Yang Ming) Dep., CX00000001 at 191:14-193:25.

RESPONSE: Admitted.

360. [REDACTED]

[REDACTED]. CX00006027 (Micena Dep. Ex. 13) at 027; *see also* Micena (Yang Ming) Dep., CX00000001 at 194:2-10.

RESPONSE: Admitted.

361. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. CX00006027 (Micena Dep. Ex. 13) at 035-36; *see also* Micena (Yang Ming) Dep., CX00000001 at 205:21-212:23, 226:11-16 ([REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]).

362. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. CX00006027 (Micena Dep. Ex. 13) at 035; *see also* Micena (Yang Ming) Dep., CX00000001 at 205:21-211:19 ([REDACTED]).

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED].

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]). Further, Dr. Rodrigue’s testimony is not responsive here. His testimony was specific to [REDACTED]

[REDACTED]

[REDACTED]. IMCC Resp. SUMF ¶¶ 186-87; Rodrigue Initial Expert Report, CX00001362 at ¶ 112.

363. [REDACTED]

[REDACTED]

[REDACTED]. *See* May 1, 2014 Yang Ming/TRAC COCP CUA, CX00006013 (Micena Dep. Ex. 14) at 013; *see also* Micena (Yang Ming) Dep.,

CX00000001 at 216:3-218:9.

RESPONSE: Admitted.

364. [REDACTED]

[REDACTED]. CX00006013 (Micena Dep. Ex. 14) at 013; *see also* Micena (Yang Ming) Dep., CX00000001 at 218:10-19.

RESPONSE: Admitted.

365. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]⁹ CX00006013 (Micena Dep. Ex. 14) at 022; *see also* Micena (Yang Ming) Dep., CX00000001 at 223:3-224:16, 226:5-10, 228:10-20 ([REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

⁹ [REDACTED]
[REDACTED]. CX00006013 (Micena Dep. Ex. 14) at 022.

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]), 362 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

366. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00006013 (Micena Dep. Ex. 14) at 022; *see also* Micena (Yang Ming) Dep., CX00000001 at 228:21-229:22.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED])

[REDACTED], 362 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

367. [REDACTED]

[REDACTED]

[REDACTED] See May 1, 2014 Yang Ming/TRAC LABP CUA, CX00005987 (Micena Dep. Ex. 28) at 987; *see also* Micena (Yang Ming) Dep., CX00000001 at 388:5-390:10.

RESPONSE: Admitted.

368. [REDACTED]

[REDACTED]. CX00005987 (Micena Dep. Ex. 28) at 987.

RESPONSE: Admitted.

369. [REDACTED]

[REDACTED]

[REDACTED].¹⁰ *Id.* at 996.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

¹⁰ [REDACTED]
[REDACTED] See May 1, 2014 Yang Ming/TRAC LABP CUA, CX00005987 (Micena Dep. Ex. 28) at 991.

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]), 362 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

370. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *Id.*; *see also* CX00005922 (Micena Dep. Ex. 15) at 922-23 [REDACTED]

[REDACTED]

[REDACTED]); *see also* Micena (Yang Ming) Dep., CX00000001 at 245:8-246:13, 393:5-396:11 ([REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]), 362 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

371. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *See* January 1, 2017 Yang Ming/TRAC CUA, CX00005859 (Micena Dep. Ex. 18) at 859, 871; *see also* Micena (Yang Ming) Dep., CX000000001 at 277:10-278:11 ([REDACTED]).

RESPONSE: Admitted.

372. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

CX00005859 (Micena Dep. Ex. 18) at 859–60, 872–85; *see also* Micena (Yang Ming) Dep., CX000000001 at 278:12-279:15.

RESPONSE: Admitted.

373. [REDACTED]

[REDACTED]. *Id.* at 881–82.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the January 1, 2017 Yang Ming/TRAC CUA set the initial base rental rate in the COCP at [REDACTED] per chassis per day. Choice policies and facts regarding who controls the ratio of MH and CH movements do not contradict this.

374. [REDACTED]

[REDACTED]. *See*

February 1, 2018 Yang Ming/TRAC amendment. CX00005808 (Micena Dep. Ex. 19) at 820.

RESPONSE: Admitted.

375. [REDACTED]

[REDACTED]. *Id.* at

822–23.

RESPONSE: Denied. This SUMF misrepresents [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Respondents’ contentions regarding [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

376. [REDACTED]

[REDACTED] *See* January

1, 2019 Yang Ming/TRAC amendment, CX00005940 (Micena Dep. Ex. 20) at 940.

RESPONSE: Admitted.

377. [REDACTED]

[REDACTED]

[REDACTED]. CX00005935 (Micena Dep. Ex. 22) at 935.

RESPONSE: Admitted.

378. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *Id.*

RESPONSE: Admitted.

379. [REDACTED]

[REDACTED]. *Id.* at 936.

RESPONSE: Admitted.

380. [REDACTED]

[REDACTED]. *Id.* at 939.

RESPONSE: Denied. This SUMF misrepresents [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Respondents’ contentions regarding [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

381. [REDACTED]

[REDACTED]

[REDACTED]. *Id.* at 937; *see*

also Micena (Yang Ming) Dep., CX00000001 at 189:2-190:22, 322:8-324:18, 325:23-326:4 [REDACTED]

[REDACTED]

[REDACTED]),

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]), 362 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

382. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00005901 (Micena Dep. Ex. 8) at 904; *see also* Micena (Yang Ming) Dep., CX00000001 at 329:13-331:6 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes the cited exhibit. Internal discussions regarding an [REDACTED]

[REDACTED]

[REDACTED] are material and relevant to IMCC’s argument that Respondent ocean carriers’ contracts [REDACTED]

[REDACTED] are unjust and unreasonable. IMCC MSD 20-21.

ZIM

383. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. See March 1, 2016 ZIM/TRAC CUA, CX00006040 (Messing Dep. Ex. 18) at 040, 043; Messing (ZIM) Dep., CX00000260 at 138:16-139:11.

RESPONSE: Admitted.

384. [REDACTED]

[REDACTED]

[REDACTED]. See March 1, 2016 ZIM/TRAC
CUA, CX00006040 (Messing Dep. Ex. 18) at 040, 044-70.

RESPONSE: Admitted.

385. [REDACTED]

[REDACTED]. *Id.* at 040-41.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. See *supra*, ¶ 187 (addressing Respondents’
assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]). Further, Dr. Rodrigue’s testimony is not responsive
here. His testimony was specific to [REDACTED]

[REDACTED]

[REDACTED]. IMCC Resp. SUMF ¶¶ 198-99; Rodrigue Initial Expert
Report, CX00001362 at ¶ 112.

386. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*; Messing (ZIM) Dep., CX00000260 at 152:7-153:14.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]), 385 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

387. Pursuant to the March 1, 2016 ZIM/TRAC CUA MH Incentive Provision:

[REDACTED]

March 1, 2016 ZIM/TRAC CUA, CX00006040 (Messing Dep. Ex. 18) at 040-41; Messing (ZIM) Dep., CX00000260 at 152:7-153:14.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]), 385 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

388. [REDACTED]

[REDACTED]. *See* September 1, 2017 ZIM/TRAC amendment, CX00006100 (Messing Dep. Ex. 19) at 100; Messing (ZIM) Dep., CX00000260 at 161:3-19.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents stipulated to this fact. JSF ¶ 318.

389. [REDACTED]

[REDACTED]. CX00006100 (Messing Dep. Ex. 19) at 102, 104; Messing (ZIM) Dep., CX00000260 at 164:5-8; *see also* CX00006040 (Messing Dep. Ex. 18) at 040, 043.

RESPONSE: Admitted.

390. [REDACTED]

[REDACTED]. CX00006100 (Messing Dep. Ex. 19) at 100.

RESPONSE: Admitted.

391. [REDACTED]

[REDACTED]

[REDACTED].

Id.; Messing (ZIM) Dep., CX00000260 at 165:15-168:16.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 199 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]), 385 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

392. [REDACTED]
[REDACTED]
[REDACTED]

CX00006100 (Messing Dep. Ex. 19) at 100; Messing (ZIM) Dep., CX00000260 at 166:11-16.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 187 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]), 385 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

- B. Each Ocean Carrier Designates One IEP as the “Exclusive,” “Default,” “Dedicated,” “Unitary Pool Concept Equipment Supplier,” “Recommended,” or “Preferred” Provider for CH Moves and/or for MH Moves.**

393. Since at least 2012, Respondent ocean carriers have entered into agreements designating the IEP as the exclusive provider of chassis for CH movements and forbidding the ocean carrier from paying any other IEP for chassis. [REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. The cited examples are [REDACTED]

[REDACTED]

[REDACTED]. See *infra*, ¶¶ 396-495. Further, the extent to which each Respondent

ocean carrier [REDACTED]

[REDACTED].

394. These agreements also include [REDACTED] terms explicitly related to MH movements.

The ocean carrier agrees to designate the IEP as their “[REDACTED],” “[REDACTED],” or “[REDACTED]

[REDACTED]” (“[REDACTED]”). [REDACTED]

[REDACTED].

RESPONSE: Denied. This SUMF is not material [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. The cited examples are [REDACTED]

[REDACTED]

[REDACTED]. *See infra*, ¶¶ 396-495. Further, the extent to which each Respondent ocean carrier [REDACTED]

[REDACTED].

395. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Langenfeld Initial Expert Report at ¶ 71.

RESPONSE: Denied. This SUMF is contradicted by ocean carrier Respondents’ experts: “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. The contention that [REDACTED]
[REDACTED]” is insufficient to dispute that [REDACTED]
[REDACTED]
[REDACTED]. *See, e.g.*, Fentress (CMA) Dep., CX00000916 at 223:10-18 ([REDACTED]
[REDACTED]
[REDACTED]); *see also* Coates Dep., CX00000871 at 172:17-23 (Respondents’ industry expert testifying
that [REDACTED]
[REDACTED]). And the contention that [REDACTED]
[REDACTED]
[REDACTED].”

CMA

396. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] *See*
January 1, 2017 CMA/TRAC CUA, CX00002586 (Fentress Dep. Ex. 16) at 589.
RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the cited contract includes the quoted provision or that the statement accurately quotes the provision. Further, an ocean carrier’s [REDACTED] is irrelevant to a contract provision that [REDACTED]

[REDACTED]

397. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] December 3, 2019 CMA/TRAC CUA, CX00002536 (Fentress Dep. Ex. 19) at 539.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the cited contract includes the quoted provision or that the statement accurately quotes the provision. Further, an ocean carrier’s [REDACTED] does not contradict this contract term, which explicitly provides that “[REDACTED]

[REDACTED]. CX00002536 (Fentress Dep. Ex. 19) at 539 (emphasis added).

398. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the cited contract includes the quoted provision or that the statement accurately quotes the provision. An ocean carrier’s [REDACTED] is irrelevant to a contract provision [REDACTED]

[REDACTED]

[REDACTED] These provisions are relevant and material to IMCC’s argument that “[o]cean carriers steer MH chassis usage to the IEP supplying chassis for CH movements by designating that IEP for MH movements[,]” and that such provisions “go ‘beyond what is necessary’ to ensure the supply chain has sufficient MH chassis[.]” IMCC MSD 22.

399. [REDACTED]

[REDACTED]

[REDACTED]

Id.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the cited contract includes the quoted provision or that the statement accurately quotes the provision. An ocean carrier’s [REDACTED] is irrelevant to a contract provision [REDACTED]

[REDACTED]. *See, e.g.,*

Fentress (CMA) Dep., CX00000916 at 223:10-18 (testifying that [REDACTED]

[REDACTED]).

400. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 396 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]).

COSCO

401. Pursuant to the May 1, 2016 COSCO/TRAC CUA:

[REDACTED]

CX00003121 (Houghtalin Dep. Ex. 12) at 123

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 399 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

402. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]).

403. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]).

404. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

405. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 396 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]).

406. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 396 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]).

407. [REDACTED]

[REDACTED]

[REDACTED]. CX00002782 (Houghtalin

Dep. Ex. 20) at 784.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

408. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 399 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

409. Pursuant to the July 1, 2018 COSCO/TRAC CUA:

[REDACTED]

Id. at 785.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

410. [REDACTED]
[REDACTED]
[REDACTED]. *See* July 1, 2021 COSCO/TRAC CUA, CX00003082

(Houghtalin Dep. Ex. 25) at 082, 092; *see also* Houghtalin (COSCO) Dep., CX00000337 at 323:17-324:13.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. Respondents stipulated to this fact. JSF ¶ [REDACTED].

411. [REDACTED]

[REDACTED] CX00003082 (Houghtalin Dep. Ex. 25) at 082; *see also* Houghtalin (COSCO) Dep., CX00000337 at 325:9-13.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. Respondents stipulated to this fact. JSF ¶ [REDACTED].

412. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00003082 (Houghtalin Dep. Ex. 25) at 082.

RESPONSE: Denied. This SUMF is material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 399 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

413. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 082, 092.

RESPONSE: Denied. This SUMF is material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]).

414. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the cited contract includes the quoted provision or that the statement accurately quotes the provision. Further, COSCO’s choice policy does not contradict [REDACTED], which explicitly provides that [REDACTED]

[REDACTED] CX00003082 (Houghtalin Dep. Ex. 25) at 092.

Evergreen

415. [REDACTED]

[REDACTED]

[REDACTED] November 28, 2016

Evergreen/TRAC CUA, CX00003532 (Wang Dep. Ex. 11) at 539.

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398-99 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]).

416. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398-99 addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED].

417. [REDACTED]

[REDACTED]

[REDACTED] December 1, 2017 Evergreen/TRAC contract, CX00003226 at 237.

_____).

RESPONSE: Denied. This SUMF is not material because “

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398-99 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]).

419. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] October 22, 2019 Evergreen/DCLI EMC CUA, CX00003754 at 759.

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 396 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]).

420. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398-99 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]).

421. [REDACTED]

[REDACTED] *Id.* at 760.

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the cited contract includes the quoted provision or that the statement accurately quotes the provision. Further, an ocean carrier’s [REDACTED] is irrelevant to a contract provision [REDACTED]

[REDACTED]

[REDACTED]” CX00003754 at 760. These provisions are relevant and material to IMCC’s argument that “[o]cean carriers steer MH chassis usage to the IEP supplying chassis for CH movements by designating that IEP for MH movements[.]” and that such provisions “go ‘beyond what is necessary’ to ensure the supply chain has sufficient MH chassis[.]” IMCC MSD 22.

422. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the cited contract includes the quoted provision or that the statement accurately quotes the provision. Further, an ocean carrier’s [REDACTED] is irrelevant to a contract [REDACTED]

[REDACTED]

[REDACTED]” CX00003754 at 760. These provisions are relevant and material to IMCC’s argument that “[o]cean carriers steer MH chassis usage to the IEP supplying chassis for CH movements by designating that IEP for MH movements[.]” and that such provisions “go ‘beyond what is necessary’ to ensure the supply chain has sufficient MH chassis[.]” IMCC MSD 22.

423. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]).

424. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]”

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the cited contract includes the quoted provision or that the statement accurately quotes the provision. Further, an ocean carrier’s [REDACTED] is irrelevant to a contract provision relating to [REDACTED].

Hapag-Lloyd

425. [REDACTED]

[REDACTED]

[REDACTED] December 21, 2012 Hapag-Lloyd/TRAC CUA, CX00004010
(Barattini Dep. Ex. 7) at 010.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]). Further, Dr. Rodrigue’s testimony is not responsive here. His testimony was specific to provisions in [REDACTED].

IMCC Resp. SUMF ¶ 107; Rodrigue Initial Expert Report, CX00001362 at ¶ 112.

426. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 010-11.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny that the cited contract includes the quoted provision or that the statement accurately quotes the provision. An ocean

carrier’s [REDACTED] is irrelevant to a contract provision [REDACTED]
[REDACTED]
[REDACTED].” CX00004010 (Barattini Dep. Ex. 7) at 010-11. This provision is relevant and material to IMCC’s argument that “[o]cean carriers steer MH chassis usage to the IEP supplying chassis for CH movements by designating that IEP for MH movements[,]” and that such provisions “go ‘beyond what is necessary’ to ensure the supply chain has sufficient MH chassis[.]” IMCC MSD 22. *See also supra*, ¶ 425 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

427. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 011.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]), 425 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

428. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the cited contract includes the quoted provision or that the statement accurately quotes the provision. An ocean carrier’s [REDACTED] is irrelevant to a contract provision [REDACTED]

[REDACTED]

[REDACTED].” CX00004010 (Barattini Dep. Ex. 7) at 011. This provision is relevant and material to IMCC’s argument that “[o]cean carriers steer MH chassis usage to the IEP supplying chassis for CH movements by designating that IEP for MH movements[.]” and that such provisions “go ‘beyond what is necessary’ to ensure the supply chain has sufficient MH chassis[.]” IMCC MSD 22. *See also supra*, ¶ 425 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

429. Pursuant to the December 21, 2012, Hapag-Lloyd/DCLI CUA:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

December 21, 2012 Hapag-Lloyd/DCLI CUA, CX00004049 at 051.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]), 425 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

430. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 422 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]

[REDACTED]), 425

(addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

431. [REDACTED]

[REDACTED]

[REDACTED] January 1, 2016 Hapag-Lloyd/TRAC CUA, CX00004115 (Barattini Dep. Ex. 13) at 129; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 149:16-150:10 ([REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398-99 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]),
425 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

432. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004115 (Barattini Dep. Ex. 13) at 129-30.

), 425

433. Pursuant to the January 1, 2016, Hapag-Lloyd/TRAC CUA:

[REDACTED]

Id. at 031; *see also* Barattini Dep. (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 151:11-152:8 ([REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the cited contract includes the quoted provision or that the statement accurately quotes the provision. This provision is relevant and material to establishing Hapag-Lloyd’s choice policy and to IMCC’s

argument that “CCM’s ‘Choice Program’ is more restrictive than necessary[.]” IMCC MSD 19-20.

434. [REDACTED]

[REDACTED]

[REDACTED] CX00004115 (Barattini Dep. Ex. 13) at 031.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 428 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]

[REDACTED]), 425 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

435. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *See* January 1, 2016 Hapag-Lloyd/DCLI CUA, CX00004101 (Barattini Dep. Ex. 9) at 101.

RESPONSE: Admitted.

436. [REDACTED]

[REDACTED]. *Id.*

RESPONSE: Admitted.

437. Pursuant to the January 1, 2016, Hapag-Lloyd/DCLI CUA:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398-99 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]),

425 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

438. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] January 1, 2016 Hapag-Lloyd/DCLI CUA, CX00004101 (Barattini Dep. Ex. 9) at 103.

RESPONSE: Denied. This SUMF is not material [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. There is no dispute of material fact. *See supra*, ¶¶ 422 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]), 425 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

439. Pursuant to the October 1, 2018, Hapag-Lloyd/DCLI CUA:

[REDACTED]

October 1, 2018 Hapag-Lloyd/DCLI CUA, CX00003894 at 896.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398-99 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]),

[REDACTED],

425 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

440. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 422 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]
[REDACTED]
[REDACTED]), 425
(addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

441. [REDACTED]
[REDACTED]
[REDACTED] January 1, 2019 Hapag-Lloyd/TRAC CUA,
CX00003906 (Coates Dep. Ex. 7) at 906, 922.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398-99 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]), 425 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

442. [REDACTED]

[REDACTED] *Id.* at 907.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]), 425 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

443. Pursuant to the January 1, 2019, Hapag-Lloyd/TRAC CUA:

[REDACTED]

[REDACTED]

Id.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the cited contract includes the quoted provision or that the statement accurately quotes the provision. This provision is relevant and material to establishing Hapag-Lloyd’s choice policy and to IMCC’s argument that “CCM’s ‘Choice Program’ is more restrictive than necessary[.]” IMCC MSD 19-20.

444. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 428 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED])

[REDACTED], 425 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

HMM

445. [REDACTED]

[REDACTED] CX00004382

(Compton Dep. Ex. 8) at 416.

RESPONSE: Admitted.

446. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Admitted.

447. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 417.

RESPONSE: Admitted.

448. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 417, 423.

RESPONSE: Admitted.

449. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 418.

RESPONSE: Admitted.

450. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 419.

RESPONSE: Admitted.

451. [REDACTED]

[REDACTED]

[REDACTED] November 30, 2017 HMM/DCLI CUA, CX00004191 (Compton Dep.

Ex. 12) at 191.

RESPONSE: Admitted.

452. [REDACTED]

[REDACTED]

[REDACTED]

Id.

RESPONSE: Admitted.

453. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Admitted.

454. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 192.

RESPONSE: Admitted.

455. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Admitted.

456. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 194.

RESPONSE: Admitted.

457. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Admitted.

Maersk

458. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] January

1, 2015 Maersk/DCLI CUA, CX00004613 (Weisberg Dep. Ex. 5) at 620; *see also* Weisberg (Maersk) Dep., CX00000709 at 59:9-21 ([REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398-99 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]).

459. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] CX00004613 (Weisberg Dep. Ex. 5) at 620; *see also* Weisberg (Maersk) Dep., CX00000709 at 59:22-60:3 ([REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398-99 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]).

460. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]¹¹ March 14, 2018

Maersk/DCLI Amendment, CX00004644 (Weisberg Dep. Ex. 6) at 646.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the cited contract includes the quoted provision or that the statement accurately quotes the provision. An ocean carrier's [REDACTED] is irrelevant to a contract provision regarding [REDACTED]

[REDACTED].

MSC

¹¹ [REDACTED] CX00004644
(Weisberg Dep. Ex. 6) at 651.

461. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004551 (Roveccio Ex. 21) at 554; Roveccio (MSC) Dep., CX00000799 at 157:7-19.

RESPONSE: Denied. This SUMF is not material because: “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398-99 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]).

462. [REDACTED]

[REDACTED] Roveccio (MSC) Dep., CX00000799 at 180:15-19.

RESPONSE: Denied. This SUMF is not material because: “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes the cited testimony. The clarification of a contract provision [REDACTED] [REDACTED] is relevant and material to IMCC’s argument that “[o]cean carriers steer MH chassis usage to the IEP supplying chassis for CH movements by designating that IEP for MH movements[.]” and that such provisions “go ‘beyond what is necessary’ to ensure the supply chain has sufficient MH chassis[.]” IMCC MSD 22.

463. [REDACTED]

[REDACTED]

[REDACTED] CX00004551 (Roveccio Ex. 21) at 554.

RESPONSE: Denied. This SUMF is not material because: “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]).

464. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because: “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398-99 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]).

465. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*; Roveccio (MSC) Dep., CX00000799 at 157:22-158:17.

RESPONSE: Denied. This SUMF is not material because: “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 422 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]

[REDACTED]).

ONE

466. Pursuant to the March 1, 2018 ONE/TRAC GTC:

[REDACTED]

[REDACTED]

CX00005429 (Armstrong (10/06/2021) Dep. Ex. 5) at 434.

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]
[REDACTED]).

467. Pursuant to the March 1, 2018 ONE/TRAC GTC:

[REDACTED]

Id.

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 399 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

468. [REDACTED]

[REDACTED]

[REDACTED] CX00005382 (Armstrong (10/06/2021) Dep. Ex. 11) at 383.

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

469. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398-99 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]).

471. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 396 (addressing Respondents’

assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]).

Yang Ming

472. [REDACTED]

[REDACTED]

[REDACTED] CX00006027 (Micena Dep. Ex. 13) at 031.

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398-99 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]).

Further, Dr. Rodrigue’s testimony is not relevant here. His testimony was [REDACTED]

[REDACTED]

[REDACTED]

IMCC Resp. SUMF ¶¶ 186-87; Rodrigue Initial Expert Report, CX00001362 at ¶ 112.

473. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398 (addressing Respondents’

assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED], 472
(addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

474. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]”
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398-99 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]

[REDACTED]),

472 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

475. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 396 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]), 472 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

476. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 396 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]), 472

(addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

477. [REDACTED]

[REDACTED]

[REDACTED] CX00006013 (Micena Dep. Ex. 11) at 017.

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398-99 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]),

472 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

478. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]), 472 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

479. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]”

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398-99 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]), 472 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

480. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 018.

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 396 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]), 472 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

481. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 396 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]), 472 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

482. [REDACTED]

[REDACTED]

[REDACTED] May 1, 2014 Yang Ming/TRAC LABP CUA, CX00005987 (Micena Dep. Ex. 28) at 992.

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398-99 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]), 472 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

483. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]), 472 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

484. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398-99 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]), 472 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

485. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 396 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]), 472 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

486. [REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]” [REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 396 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]), 472 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

487. Pursuant to the January 1, 2017 Yang Ming/TRAC CUA:

[REDACTED]

January 1, 2017 Yang Ming/TRAC CUA, CX00005859 (Micena Dep. Ex. 18) at 864.

RESPONSE: Denied. This SUMF is not material because “ [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]).

This provision is also relevant and material to establishing Yang Ming’s choice policy and to IMCC’s argument that “CCM’s ‘Choice Program’ is more restrictive than necessary[.]” IMCC MSD 19-20.

488. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See January 1, 2020 Yang Ming/TRAC CUA, CX00005832 (Micena Dep. Ex. 25) at 832, 843; *see also* Micena (Yang Ming) Dep., CX00000001 at 344:17-345:13.

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents stipulated to this fact. JSF ¶ [REDACTED].

489. [REDACTED]

[REDACTED]

[REDACTED], January 1,
2020 Yang Ming/TRAC CUA, CX00005832 (Micena Dep. Ex. 25) at 832-33.

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents stipulated to this fact. JSF ¶ [REDACTED].

490. Pursuant to the January 1, 2020 Yang Ming/TRAC CUA:

[REDACTED]

[REDACTED]

Id. at 837.

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED])

491.

RESPONSE: Denied. This SUMF is not material because “

287

[REDACTED].

Further, Dr. Rodrigue’s testimony is not relevant here. His testimony discussed [REDACTED]

[REDACTED]

[REDACTED]. IMCC Resp. SUMF

¶¶ 198-99; Rodrigue Initial Expert Report, CX00001362 at ¶ 112

492. [REDACTED]

[REDACTED]

[REDACTED] March 1, 2016 ZIM/TRAC CUA, CX00006040

(Messing Dep. Ex. 18) at 072.

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]), 491 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

493. Pursuant to the March 1, 2016 ZIM/TRAC CUA:

[REDACTED]

Id. at 073; Messing (ZIM) Dep., CX00000260 at 157:5-158:13.

RESPONSE: Denied. This SUMF is not material because “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 398 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED]).

This provision is also relevant and material to establishing ZIM’s choice policy and to IMCC’s argument that “CCM’s ‘Choice Program’ is more restrictive than necessary[.]” IMCC MSD 19-20.

494. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] March 1, 2016 ZIM/TRAC CUA, ,
CX00006040 (Messing Dep. Ex. 18) at 073.

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 396 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]), 491

(addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

495. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 396 (addressing Respondents’ assertions regarding the materiality and relevance of contract provisions [REDACTED] [REDACTED]), 491 (addressing Respondents’ non-responsive quotation of Dr. Rodrigue’s testimony).

C. The Lower CH Rates Paid By Respondent Ocean Carriers Are Subsidized By the Higher MH Rates Paid By Motor Carriers and BCOs.

496. Ocean carriers’ contracts with IEPs for the provision of chassis to cover ocean carriers’ CH movements frequently offer CH pricing terms that are explicitly linked to the ocean carriers’ MH volume. [REDACTED]; *see also supra*, Section IV.A.

RESPONSE: Denied. “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]:

“Q. [REDACTED]?”

A. [REDACTED].

Q. [REDACTED]?

A. [REDACTED].

Q. [REDACTED]?

A. [REDACTED]” ([REDACTED]).

REPLY: There is no dispute of material fact. The contract provisions cited in Section IV.A. and summarized in ¶ 497 of [REDACTED]

[REDACTED]. Respondents do not deny that the contract provisions are accurately quoted. Respondents' "volume discount" characterization does not contradict IMCC's material fact and is inaccurate; the contract provisions cited in Section IV.A. and summarized in ¶ [REDACTED]

See, e.g., CX00004086 at 086 ([REDACTED])

[REDACTED]). This is the opposite of the volume discount [REDACTED], which would provide for lower CH pricing for higher CH volume.

497. CH pricing terms [REDACTED] have been linked to the ocean carriers' MH volume in the following ways:

- Providing for the renegotiation or direct increase of pricing terms if the ocean carriers' MH volume decreases, or the renegotiation or direct decrease of pricing terms if the ocean carriers' MH volume increases. *See supra* at ¶¶ [REDACTED] [REDACTED].
- Providing for a direct payment from the IEP to the ocean carrier based on the ocean carriers' MH volume. *See supra* at ¶¶ [REDACTED].
- Providing for incremental revenue sharing based on MH volume. *See supra* at ¶¶ [REDACTED].
- Conditioning a discount on the CH rate on the ocean carriers' maintaining a specified MH volume. *See supra* at ¶¶ [REDACTED].

- Providing for the termination of the contract based on MH volume. *See supra* at ¶ [REDACTED].
- Including a term requiring the ocean carrier actively to try to generate more MH volume. *See supra* at ¶ [REDACTED].
- Setting the MH pricing in the contract. *See supra* at ¶ [REDACTED].

RESPONSE: Denied. This SUMF does not contain a concise statement of each material fact (Initial Order, ¶15) and the statements are conclusory and argumentative. Respondents furthermore deny this SUMF based on the following: [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents’ assertions regarding [REDACTED]

[REDACTED] do not dispute the fact that the [REDACTED]

[REDACTED] Respondents’ further assertions are inappropriate legal arguments regarding whether [REDACTED] is unjust and unreasonable, which IMCC addresses in its briefing. IMCC MSD 20-21; IMCC Response 12-14; IMCC Reply 8-11.

498. [REDACTED]
[REDACTED]
[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 69.

RESPONSE: Denied. This statement is conclusory and speculative because it refers to a hypothetical opportunity without any evidence that it either existed or was acted upon by any of the ocean carrier Respondents. Furthermore, the evidence confirms that [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. Respondents’ only citations are to testimony that does not rebut the statement, which is itself supported by extensive record evidence in the cited paragraph from Dr. Langenfeld’s report. *See* Langenfeld Initial Expert Report, CX00001266 at ¶ 69, n. 102-06.

499. [REDACTED]
[REDACTED]. *Id.* at ¶ 70.

RESPONSE: Denied. The evidence shows that [REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Respondents’ assertions regarding [REDACTED]

[REDACTED] do not

rebut the statement that [REDACTED]

[REDACTED]

[REDACTED], which is itself supported by extensive record evidence in the cited paragraph from Dr.

Langenfeld’s report. *See* Langenfeld Initial Expert Report, CX00001266 at ¶ 70, n.107-09.

500. [REDACTED]

[REDACTED]. *See* June 2019

Maersk Slide deck (Weisberg Dep. Ex. 19), CX00004610 at 610 [REDACTED]

[REDACTED]

[REDACTED]; *see also* Weisberg (Maersk) Dep., CX00000709 at 148:20-149:6 ([REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF relies upon a draft document from which informational

details are missing; further, there is no evidence that [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. The fact that the underlying document is a “draft” is immaterial; Maersk’s corporate witness testified that [REDACTED] [REDACTED]” Weisberg Dep., CX00006316 at 141:24-142:15. Further, Respondents’ assertions regarding additional parts of the slide deck do not contradict this statement.

501. Indeed, [REDACTED] [REDACTED] [REDACTED]. See CX00004610 (Weisberg Dep. Ex. 19) at 612 ([REDACTED]) [REDACTED]

RESPONSE: Denied. This SUMF relies upon a draft document from which informational details are missing; further, there is no evidence that [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]

REPLY: There is no dispute of material fact. The fact that the underlying document is a “draft” is immaterial; Maersk’s corporate witness testified that [REDACTED] [REDACTED]” Weisberg Dep., CX00006316 at 141:24-142:15. Further, Respondents’ assertions regarding additional parts of the slide deck do not contradict this statement.

[REDACTED]
[REDACTED]. *See id.* [REDACTED]

[REDACTED] (emphasis in original);

see also Weisberg (Maersk) Dep., CX00000709 at 153:24 -154:9 [REDACTED]

[REDACTED]; Weisberg (Maersk) Dep. CX0000709 at 154:24-25 [REDACTED].

RESPONSE: Denied. This SUMF relies upon a draft document from which informational details are missing; further, there is no evidence that [REDACTED]

REPLY: There is no dispute of material fact. The fact that the underlying document is a “draft” is immaterial; Maersk’s corporate witness testified that [REDACTED]

[REDACTED]” Weisberg Dep., CX00006316 at 141:24-142:15. Further, Respondents’ assertions regarding additional parts of the slide deck do not contradict this statement.

503. [REDACTED]

[REDACTED]. *See* CX00004610 (Weisberg Dep. Ex. 19) at 611

([REDACTED]
[REDACTED]); *see also* Weisberg (Maersk) Dep.,
CX00000709 at 149:14-150:18 ([REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF is incomprehensible. Without prejudice, there is nothing in the referenced exhibit supports this SUMF. And, as stated in previous responses, this SUMF relies upon a draft document from which informational details are missing; further, there is no evidence that [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. The fact that the underlying document is a “draft” is immaterial; Maersk’s corporate witness testified that [REDACTED]

[REDACTED]” Weisberg Dep.,
CX00006316 at 141:24-142:15. Respondents’ assertions regarding additional parts of the slide deck do not contradict this statement. Further, the cited slide noted an assumption that

“ [REDACTED]
[REDACTED]” CX00004610 (Weisberg Dep. Ex. 19) at 611. The slide also states that [REDACTED]
[REDACTED]
[REDACTED].” *Id.*

504. [REDACTED]
[REDACTED]. *See* CX00004610 (Weisberg Dep. Ex. 19) at 612 [REDACTED]

[REDACTED]
[REDACTED]; Weisberg Dep., CX00000709 at 158:15-159:4 ([REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF is incomprehensible. Without prejudice, there is nothing in the referenced exhibit that supports this SUMF. And, as stated in previous responses, this SUMF relies upon a draft document from which informational details are missing; further, there is no evidence that [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. The fact that the underlying document is a “draft” is immaterial; Maersk’s corporate witness testified that [REDACTED]
[REDACTED]” Weisberg Dep., CX00006316 at 141:24-142:15. Respondents’ assertions regarding additional parts of the slide deck do not contradict this statement. Further, this statement is supported by a direct quotation from the slide deck and Weisberg’s testimony confirming that “[REDACTED]
[REDACTED]” See CX00004610 (Weisberg Dep. Ex. 19) at 612; Weisberg Dep., CX00000709 at 158:15-159:4.

505. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. See Oct. 28, 2020 Maersk Notes from DCLI Meeting, CX00004673

(Weisberg Dep. Ex. 21) at 674-75.

RESPONSE: Denied. This SUMF is conclusory, insofar as it speculates about the intent of a non-party and should accordingly not be construed as a contested fact

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. This statement, supported by a [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

506. [REDACTED]

[REDACTED] Nov. 5, 2015 Email from Brian Doyle (CMA), CX00002746 at 746.

RESPONSE: Denied. This SUMF is conclusory, insofar as it speculates about the meaning of an abbreviated phrase in an email, about which there was no testimony. Without more, it is unclear what is being described or what effect it had, if any, on the eventual determination of the a chassis provider.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not deny that the statement accurately quotes the cited exhibit. IMCC does not speculate about the meaning of the statement; the document speaks for itself.

507. [REDACTED]

[REDACTED]

[REDACTED]. Aug. 13,

2019 Email from Bill Shea (DCLI) to Ed Aldridge (CMA/APL), CX00002654 at 657.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]. Furthermore, the assertions in this SUMF are based upon an email from a non-party to this litigation and should not be admitted absent testimony from the author.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 173 (addressing Respondents' assertions regarding the materiality and relevance of proposed contract provisions [REDACTED] [REDACTED]).

508. [REDACTED]

[REDACTED] Aug. 15, 2019 Email from John Mizarek (Flexi-Van) to Robert Cannizzaro (CMA), CX00002732 at 733.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]. Furthermore, the assertions in this SUMF are based upon an email from a non-party to this litigation and should not be admitted absent testimony from the author.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 173 (addressing Respondents' assertions regarding the materiality and relevance of proposed contract provisions [REDACTED] [REDACTED]).

509. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]. Furthermore, the assertions in this SUMF are based upon an email from a non-party to this litigation and should not be admitted absent testimony from the author.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 173 (addressing Respondents’ assertions regarding the materiality and relevance of proposed contract provisions [REDACTED]
[REDACTED]).

510. [REDACTED]
[REDACTED]
[REDACTED] CX00002580
(Fentress Dep. Ex. 21) at 580 ([REDACTED]
[REDACTED]
[REDACTED]); *see also* Fentress
(CMA) Dep., CX00000916 at 227:5-16.

RESPONSE: Denied. This SUMF is not material because there is no evidence that [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 382 (addressing Respondents’ assertions regarding the materiality and relevance of internal discussions regarding contract provisions [REDACTED]).

511. [REDACTED]

[REDACTED]

[REDACTED] CX00002870 (Houghtalin Dep. Ex. 24) at 872; *see also* Houghtalin (COSCO) Dep., CX00000337 at 307:3-9 [REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes the cited exhibit. Internal discussions regarding an ocean carrier’s “[REDACTED] [REDACTED] are material and relevant to IMCC’s argument that Respondent ocean carriers’ contracts linking MH volumes with CH prices are unjust and unreasonable. IMCC MSD 20-21.

512. [REDACTED]

[REDACTED]

CX00002870 (Houghtalin Dep. Ex. 24) at 872; *see also* Houghtalin (COSCO) Dep.,

CX00000337 at 307:10-308:28 ([REDACTED])

[REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes the cited exhibit. Internal discussions regarding an ocean carrier’s ability to [REDACTED] are material and relevant to IMCC’s argument [REDACTED] are unjust and unreasonable. IMCC MSD 20-21.

513. [REDACTED]

[REDACTED]
[REDACTED] Aug. 13, 2015 Email from Tom Wang (Evergreen) to Robert L.T. Tan (Evergreen), CX00003307 (Wang Dep. Ex. 7) at 309.

RESPONSE: Denied. This SUMF is not material because “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes the cited exhibit. Internal discussions regarding an ocean carrier’s [REDACTED] [REDACTED] are material and relevant to IMCC’s argument that Respondent ocean carriers’ contracts linking MH volumes with CH prices are unjust and unreasonable. IMCC MSD 20-21.

514. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004084

(Barattini Dep. Ex. 11) at 084.

RESPONSE: Denied. This SUMF is not material [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes the cited exhibit. *See also supra*, ¶ 382 (addressing Respondents’ assertions regarding the materiality and relevance of internal discussions regarding contract provisions [REDACTED]).

515. [REDACTED]
[REDACTED] Sept. 18, 2019 Email from Bill Shea (DCLI) to Robert Milazzo (MSC), CX00004546 (Roveccio Dep. Ex. 28) at 547.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes the cited exhibit. This statement is material to IMCC’s argument that Respondent ocean carriers’ contracts linking MH volume with CH prices are unjust and unreasonable and, in particular, IMCC’s argument that ocean carriers understood that they received the benefit of lower CH prices (or direct payments) from their IEPs’ provision of higher price MH chassis. IMCC MSD 20-21.

516. [REDACTED]
[REDACTED]
10/07/18 Email from Ronald Armstrong (ONE) to Dave Daly (ONE), CX00005418 (Armstrong Dep. Ex. 2) at 418.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 515 (addressing Respondents’ assertions regarding the materiality and relevance of internal discussions regarding contract provisions [REDACTED]).

517. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] CX00005422 (Armstrong Dep. Ex. 7) at 425-26; *see also* Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 85:8-12 (“[REDACTED]”
[REDACTED]
[REDACTED]

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 173 (addressing Respondents’ assertions regarding the materiality and relevance of proposed contract provisions [REDACTED]
[REDACTED]), 515 (addressing Respondents’ assertions regarding the materiality and relevance of internal discussions regarding contract provisions [REDACTED]).

518. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” CX00005406 (Armstrong Dep.

Ex. 4) at 412.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 173 (addressing Respondents’

assertions regarding the materiality and relevance of proposed contract provisions [REDACTED]

[REDACTED]), 515 (addressing Respondents’ assertions

regarding the materiality and relevance of internal discussions regarding contract provisions

[REDACTED]).

519. Flexi-Van’s [REDACTED]

[REDACTED]

[REDACTED] *Id.*; *see also*

Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 70:2-71:3 ([REDACTED]

[REDACTED]), 69:19-74:1.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 173 (addressing Respondents’

assertions regarding the materiality and relevance of proposed contract provisions [REDACTED]

[REDACTED], 515 (addressing Respondents’ assertions regarding the materiality and relevance of internal discussions regarding contract provisions [REDACTED]).

520. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED] CX00005893 (Micena Dep. Ex. 23) at 893; *see also* Micena (Yang Ming) Dep., CX00000001 at 333:25-334:4 [REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 382, 515 (addressing Respondents’ assertions regarding the materiality and relevance of internal discussions regarding contract provisions [REDACTED]).

521. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] CX00006125 at 130.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 382, 515 (addressing Respondents’ assertions regarding the materiality and relevance of internal discussions regarding contract provisions [REDACTED]).

D. Chassis Choice is Not Available in Proprietary Pools, Giving IEPs Negotiating Leverage Over Motor Carriers and BCOs for MH Rates.

522. Respondents’ industry expert stated that [REDACTED]
[REDACTED] Coates Initial
Expert Report, CX00001524 at 539.

RESPONSE: Admitted.

523. [REDACTED]
[REDACTED]
[REDACTED] Coates Dep., CX00000871 at
152:9-17 [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]”); *see also* June 5, 2020 Email from James Ford-Hutchinson (Flexport) to Daewon Kim (HMM), CX00004245 (Compton Dep. Ex. 18) at 250 [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Furthermore, the SUMF misrepresents the cited evidence because [REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. This is a single proposition supported by citations to the record. Further, Respondents’ assertions do not contradict that [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *See* Compton (HMM) Dep., CX00006153 at 153:23-155:13 (testifying that [REDACTED]
[REDACTED]).

524. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Coates Dep., CX00000871 at 169:10-170:5 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains assertions regarding the efficiency of interoperable pools and inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Facts relating to the benefits of interoperable pools and costs of non-interoperable pools are material and relevant to IMCC’s arguments that Respondent ocean carriers’ decisions and agreements to withdraw from existing interoperable chassis pools are unjust and unreasonable (IMCC MSD 22-25) and that Respondents’ conduct harms motor carriers and the supply chain (IMCC MSD 28-29); *see also supra*, Prefatory Statement, ¶ E.

525. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00002713 (Fentress Dep. Ex. 20) at 719; Fentress (CMA) Dep., CX00000916 at 222:17-223:24 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains assertions regarding the efficiency of interoperable pools and inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or inefficiency of non-interoperable pools are not material or relevant). Further, Respondents’ citations do not address proprietary pools and therefore do not contradict this statement. Respondents’ own expert

admits that [REDACTED]

[REDACTED]. Coates Dep., CX000000871 at 172:17-23.

E. MH Rates are Lower When Chassis Choice is Available, and Motor Carriers Have Paid Higher MH Rates Because of the Lack of Chassis Choice.

526. [REDACTED]. Langenfeld

Initial Expert Report, CX00001266 at ¶ 93, Exs. 1-2.

RESPONSE: Denied. This SUMF is conclusory and too general to be admitted as a material fact. Further, this assertion ignores who is paying the chassis usage charge, what types of chassis are being paid for, where the chassis are located, when these chassis are being procured, and why the prices may have increased.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not deny that the prices have increased since 2016 and do not articulate how their assertions contradict this statement.

527. [REDACTED]

[REDACTED]. *Id.* at ¶ 58, Ex. 1A;

Intermodal Cartage Chassis Reports, CX00004463 (2017), CX00004464 (2018), CX00004465 (2019), CX00004459 (2020).

RESPONSE: Denied. This SUMF is conclusory and is not supported by admissible evidence.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny that cited spreadsheets show [REDACTED]. These spreadsheets are admissible business records. Further, Respondents do not cite any support for their assertion that [REDACTED] are excluded from the cited spreadsheets.

528. [REDACTED]. *Id.* at ¶ 58, Ex. 1B; Evans Delivery Chassis Reports, CX00003155-206 (Jan. 2017 – Dec. 2020).

RESPONSE: Denied. This SUMF is conclusory and is not supported by admissible evidence. When questioned about Evans’s documents including spreadsheets with data related to chassis provisioning, [REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny that cited spreadsheets show that [REDACTED]. These spreadsheets are admissible business records. Further, Respondents do not cite any support for their assertion [REDACTED] are excluded from the cited spreadsheets.

529. [REDACTED]

[REDACTED] Langenfeld Initial Expert Report, CX00001266 at ¶59, Exs. 2A-2B.

RESPONSE: Denied. This SUMF is conclusory and is not supported by admissible evidence.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Exhibits 2A-2B of Dr. Langenfeld’s Initial Expert Report are admissible summary exhibits based on business records. *See* Fed. R. Evid. 1006.

530. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 60; CX00004936 at 960.

RESPONSE: Denied. This SUMF is conclusory and is not supported by admissible evidence.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. The statement is supported by a citation to an admissible business record.

531. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 60, n.89.

RESPONSE: Denied. This SUMF is conclusory and is not supported by admissible evidence.

Further, available evidence confirms that NACPC prices have increased rather than stayed “[REDACTED]” since its establishment, and sufficient information about now NACPC, a non-party despite the interests held by various IMCC members, has not been entered into the record to confirm this fact. (*See* NACPC Pricing at

<https://web.archive.org/web/20170316095204/https://www.nacpc.org/pricing/> as compared to NACPC's present pricing available at [nacpc.org/pricing](https://www.nacpc.org/pricing/)).

REPLY: There is no dispute of material fact. Respondents' assertion that NACPC prices have increased does not contradict that NACPC prices have remained [REDACTED].

532. [REDACTED]

[REDACTED]. *Id.* at ¶ 60; CX00003843 (Manning Dep. Ex. 22) at 843.

RESPONSE: Denied. This SUMF is conclusory and is not supported by admissible evidence. The entity best positioned to confirm the rates would be an administrator at SACP or the IEPs that determine the prices, and the Respondents are not positioned to evaluate this assertion. Furthermore, it appears that IMCC is referring to [REDACTED] from the evidence cited, and [REDACTED], a non-party, is best suited to determine whether this rate is accurate as represented.

REPLY: There is no dispute of material fact. The cited exhibit is an admissible composite exhibit compiled by Respondents from the IEPs' published websites. Manning Dep., CX00006312 at 144:11-13. Respondents do not deny that this exhibit shows that [REDACTED] [REDACTED]. CX00003843 at 843.

DCLI's rate, effective January 1, 2021, was the same. *Id.* at 854.

533. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶103; *see also* CX00004936 at 960.

RESPONSE: Denied. This SUMF is conclusory and not supported by the evidence. NACPC maintained "subscriber" and "non-subscriber" rates on its website. (*See* NACPC Pricing at

<https://web.archive.org/web/20170316095204/https://www.nacpc.org/pricing/>). NACPC is not a party to this proceeding, so the Respondents are not positioned to evaluate this assertion.

REPLY: There is no dispute of material fact. The fact is based on Respondents’ own business records. Respondents do not articulate how a citation to a non-party’s website contradicts their own business records. Further, Respondents issued documentary and testimonial subpoenas to NACPC.

534. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶103; *see also id.*

RESPONSE: Denied. This SUMF is conclusory and not supported by the evidence. On April 28, 2018, NACPC’s SACP rates are \$12 for an unspecified group, \$13 for its “MH Rate” and \$20 for its “Non-Subscriber Rate.” (*See* Web Archive at <https://web.archive.org/web/20180428181331/https://www.nacpc.org/pricing/>). NACPC is not a party to this proceeding, so the Respondents are not positioned to evaluate this assertion.

REPLY: There is no dispute of material fact. The fact is based on Respondents’ own business records. Respondents do not articulate how a citation to a non-party’s website contradicts their own business records. Respondents also issued documentary and testimonial subpoenas to NACPC. Further, Respondents’ assertions regarding NACPC’s SACP rates as of April 28, 2018 do not contradict the fact that a CCE Board Meeting presentation showed that NACPC’s rate in the SACP *as of January 1, 2018* was [REDACTED]

535. [REDACTED]

[REDACTED] Langenfeld Initial Expert Report, CX00001266 at ¶ 61.

RESPONSE: Denied. This SUMF is conclusory, since NACPC is not a party to this proceeding, the Respondents are not positioned to evaluate this assertion further.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. The statement cites to a portion of Dr. Langenfeld's expert report that is supported by summary exhibits based on [REDACTED] [REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 61, Exs. 3A, 3B. Further, Respondents issued documentary and testimonial subpoenas to NACPC.

536. [REDACTED]

[REDACTED]. *Id.* at ¶ 93, Exs. 10A-10D; *see also id.*, Exs. 11A-11C

([REDACTED] [REDACTED]).

RESPONSE: Denied. This SUMF is conclusory and, since it relates to multiple chassis usage agreements contracts of eleven ocean carrier Respondents over a five year period, does not contain a concise statement of each material fact (Initial Order, ¶15).

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. This fact, comparing rates over time, cannot be stated any more concisely. Further, this statement describes admissible summary exhibits.

537. [REDACTED]

Id. at ¶ 88–89, 97, Ex. 9.

RESPONSE: Denied. This SUMF is conclusory. *See also,* [REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. Paragraph 16 of the Initial Order requires that each fact the responding party denies “must be followed by an exact citation to the evidence[.]” Respondents’ general citations to the entirety of an expert report and to an untimely expert declaration are insufficient to deny this statement; therefore, it should be deemed admitted.

538. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at ¶ 89, Ex. 9.

RESPONSE: Denied. This SUMF is conclusory. *See also,* [REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. Paragraph 16 of the Initial Order requires that each fact the responding party denies “must be followed by an exact citation to the evidence[.]” Respondents’ general citations to the entirety of an expert report and to an untimely expert declaration are insufficient to deny this statement; therefore, it should be deemed admitted.

539. [REDACTED]

[REDACTED]. “The Chassis ‘CHOICE’ Dilemma” Presentation, CX00002160 (Wilson Dep. Ex. 10) at 161.

RESPONSE: Denied. This SUMF is conclusory. *See also,* [REDACTED]
[REDACTED]. Further, the assertion therein does not consider

[REDACTED]

██████████ is not supported by their cited testimony. *See also* Coates Dep., CX00000871 at 172:17-23 (Respondents' industry expert testifying that ██████████
██████████).

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]; CX00004878

(Wilson Dep. Ex. 6) at 878 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF is conclusory. Further, there has been no evidence adduced

that shippers “have complained” about chassis usage charges. *See also*, [REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. Paragraph 16 of the Initial Order requires that each fact the responding party denies “must be followed by an exact citation to the evidence[.]” Respondents’ general citations to the entirety of an expert report and to an untimely expert declaration are insufficient to deny this statement; therefore, it should be deemed admitted.

541. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 86.

RESPONSE: Denied. This SUMF is conclusory. Furthermore, [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. Paragraph 16 of the Initial Order requires that each fact the responding party denies “must be followed by an exact citation to the evidence[.]” Respondents’ general citations to the entirety of an expert report and to an untimely expert declaration are insufficient to deny this statement; therefore, it should be deemed admitted.

Further, Respondents’ citations do not support their assertion; Fehribach’s testimony mentions [REDACTED]
[REDACTED] and Respondents admit that Lhotak’s testimony is [REDACTED]
[REDACTED]

542. For example, [REDACTED]

[REDACTED]. *Id.*; see also Apr. 8, 2020

Email from Alan Schmid (TRAC) to Chris Giltz (Evans), CX00003220 at 222 ([REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF is conclusory and requires Respondents to speculate regarding the negotiations between two entities which are not parties.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. See Initial Order, ¶ 16. Respondents do not deny that the statement accurately describes the exhibit.

543. [REDACTED]

[REDACTED]. Langenfeld

Initial Expert Report, CX00001266 ¶ 87; CX00002765 (Fehribach Dep. Ex. 3) at 766-77

[REDACTED]).

RESPONSE: Denied. This SUMF is conclusory and requires Respondents to speculate regarding the negotiations between two entities which are not parties.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. See Initial Order, ¶ 16. Respondents do not deny that the statement accurately describes the exhibit.

_____).

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not deny that the statement accurately describes the exhibit.

545.

[REDACTED]. Langenfeld Initial Report, CX00001266 at ¶ 90; *see also* May 7, 2019 CCE Board Meeting Presentation, CX00002441 at 445 ([REDACTED])
[REDACTED]
[REDACTED]; Oct. 23, 2018 CCE Board Meeting Presentation, CX00005010 at 056 ([REDACTED])
[REDACTED]).

325

REPLY: There is no dispute of material fact. Paragraph 16 of the Initial Order requires that each fact the responding party denies “must be followed by an exact citation to the evidence[.]” Respondents’ general citations to the entirety of an expert report and to an untimely expert declaration are insufficient to deny this statement; therefore, it should be deemed admitted. Further, this statement is a single proposition supported by citations to Respondents’ own business records.

V. RESPONDENT OCEAN CARRIER CONTRACTS THAT REQUIRE USAGE OF IEP PROPRIETARY POOLS INSTEAD OF CCM INTEROPERABLE GRAY POOLS REDUCE COMPETITION FOR MH RATES AND INCREASE COSTS ON SUPPLY CHAIN STAKEHOLDERS.

A. Respondent Ocean Carriers Enter into Contracts That Transition Them Out of CCM Interoperable Pools and Into IEP Proprietary Pools.

CMA

546. [REDACTED]

[REDACTED] See “DCLI Open Choice Process” presentation (June 8, 2016) directed to CCM, CX00002482 at 484; *see also* Oct. 30, 2015 DCLI Response to CMA’s Request for Proposal, CX00002736 (Fentress Dep. Ex. 13) at 740 ([REDACTED]
[REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Further, [REDACTED]
[REDACTED].

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. This statement is a single proposition supported by citations to the record. Respondents do not deny that CMA [REDACTED]

[REDACTED] Further, the chassis usage agreements negotiated and agreed to by CMA [REDACTED]

[REDACTED] See IMCC Resp. SUMF ¶¶ 204-06.

547. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Fentress (CMA) Dep.,

CX00000916 at 171:4-20; CX00002621 at 623 [REDACTED]

[REDACTED]);

“CCM Board Meeting” (May 18, 2016), CX00002510 at 510 (“[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and statements about [REDACTED] are conclusory.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. See Initial Order, ¶ 16. Respondents do not deny that [REDACTED]

[REDACTED]

[REDACTED].

548. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *See* January 1, 2017 CMA/TRAC CUA, CX00002586 (Fentress Dep. Ex. 16) at 618 ([REDACTED]); *see also* Fentress (CMA) Dep., CX00000916 at 184:16-185:8 (“[REDACTED]”).

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. [REDACTED]

[REDACTED]. Furthermore, the testimony cited does not support the assertions therein.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not deny that [REDACTED]

[REDACTED]

[REDACTED]. Further, the supporting citations establish that [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” *See* January 1, 2017 CMA/TRAC CUA,

CX00002586 (Fentress Dep. Ex. 16) at 618; *see also* Fentress (CMA) Dep., CX00000916 at 184:16-185:8.

549. [REDACTED]

[REDACTED]

[REDACTED]. “CCM Board Meeting” (Sept. 23, 2016), CX00002498 at 509.

RESPONSE: Denied. This SUMF is conclusory. Furthermore, [REDACTED]

[REDACTED]

[REDACTED].

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. This statement is factual, not conclusory; the CCM presentation states “[REDACTED]

[REDACTED].” CX00002498 at 509. Further, the chassis usage agreements negotiated and agreed to by CMA [REDACTED]

[REDACTED]. *See* IMCC Resp. SUMF ¶¶ 204-06.

550. [REDACTED].

See CX00002495 at 496 ([REDACTED]

[REDACTED]); *see also* “CCM

Board Meeting” (May 18, 2016) CX00002510 at 510 ([REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF is conclusory. Furthermore, [REDACTED]

[REDACTED]

[REDACTED].

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 549 (addressing Respondents’ assertion that “[REDACTED]”). Further, the supporting citations establish that by [REDACTED]

551. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] CX00002586 (Fentress Dep. Ex. 16) at 589, 602-08 ([REDACTED])
[REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. [REDACTED].

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. This statement is a single proposition supported by citations to the record. Further, Respondents do not deny that the statement accurately quotes the cited contract.

552. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] CX00002536 (Fentress Dep. Ex. 19) at 540.

RESPONSE: Denied. This SUMF is conclusory. Furthermore, [REDACTED]
[REDACTED]
[REDACTED].

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 549 (addressing Respondents’ assertion that “[REDACTED]”). Further, Respondents do not deny that the statement accurately quotes the cited contract.

553. [REDACTED]
[REDACTED]
[REDACTED]. Fentress (CMA)
Dep., CX00000916 at 218:10-219:7 (“[REDACTED]”
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]”).

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and is conclusory. Furthermore, [REDACTED]
[REDACTED]s.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 549 (addressing Respondents’ assertion that “[REDACTED]”). This statement is a single proposition supported by citations to the record. Further, Respondents do not deny that the statement accurately quotes the cited contract.

554. In [REDACTED]
[REDACTED]
[REDACTED]. CX00002533
(Basila Dep. Ex. 1) at 533-34 [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: This SUMF contains multiple statements in violation of ¶15 of the Initial Order and is conclusory. Furthermore, [REDACTED]
[REDACTED].

In addition, this SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage

of the litigation. Finally, to the extent that a chassis usage agreement was executed between CMA and TRAC, the agreement speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶¶ 113 (addressing Respondents’ assertion regarding the relevance, materiality, and/or admissibility of the cited document or communication because it includes locations outside of the scope of geographic discovery); 549 (addressing Respondents’ assertion that “[REDACTED]”). Further, this statement is a single proposition supported by citations to the record.

555. [REDACTED]
[REDACTED]
[REDACTED]. Basila (CMA) Dep., CX00000534 at 14:12-16:15. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED])

RESPONSE: This SUMF contains multiple statements in violation of ¶15 of the Initial Order and is conclusory. Further, this SUMF is speculative to the extent it asserts what might take place in the future and is inadmissible.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. This statement is a single proposition supported by citations to the record. Further, Respondents do not deny the substance of this statement, which establishes

that [REDACTED]
[REDACTED]

COSCO

556. [REDACTED]
[REDACTED]. Houghtalin (COSCO) Dep.,
CX00000337 at 188:22-189:2; *see also* July 1, 2018 COSCO/DCLI CUA, CX00002796
(Houghtalin Dep. Ex. 16) at 796, 798, 808; “COSCO SS List_v2”, CX00003117 (Houghtalin
Dep. Ex. 17); Houghtalin (COSCO) Dep., CX00000337 at 246:21-247:25 ([REDACTED]
[REDACTED]), 262:6-
265:12 ([REDACTED]
[REDACTED]).

RESPONSE: Admitted.

557. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] *See* Houghtalin (COSCO) Dep., CX00000337 at 265:6-12 (“[REDACTED]
[REDACTED]
[REDACTED]), 317:2-7 [REDACTED]
[REDACTED]
[REDACTED]; *see also* CX00002851
(Houghtalin Dep. Ex. 18) at 851 (“[REDACTED]), 861 ([REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and is conclusory . In addition, this SUMF concerns locations outside the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation. Finally, the chassis usage agreement between [REDACTED] speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not deny that on or about July 1, 2018, [REDACTED] [REDACTED]. *See also supra*, ¶ 209 (addressing Respondents’ assertion regarding the relevance, materiality, and/or admissibility of the cited document or communication because it includes locations outside of the scope of geographic discovery).

558. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

CX00003143 (Houghtalin Dep. Ex. 25) at 144; *see also* Houghtalin (COSCO) Dep.,

CX00000337 at 326:17-23 [REDACTED]

[REDACTED]

[REDACTED], 332:10-

333:2 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order. Further, this SUMF is conclusory and speculative to the extent it asserts what might take place in the future and is inadmissible.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. This statement is a single proposition supported by citations to the record. Respondents do not deny that the statement accurately quotes the cited contract. Further, a quotation from an executed contract is not “conclusory and speculative[.]”

559. In its Answers to IMCC’s First Set of Interrogatories, dated June 14, 2021, COSCO responded to Interrogatory No. 4 that [REDACTED]

[REDACTED] COSCO Resps. & Objs. To Interrog. No. 4, CX00002025 (Houghtalin Dep. Ex. 10) at 032.

RESPONSE: Denied. This is an incomplete assertion as to information provided in the Answer given by COSCO to Interrogatory No. 4. Further, the Answer to Interrogatory no. 4 contains information relating to the efficiency of interoperable pools, which is not material. (Order at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the

Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant). To the extent that the remainder of COSCO’s Answer to Interrogatory No. 4 is necessary to provide context, the complete response can be found at the cited document (CX00002025 at 031-032) and in ¶ 611, *infra*.

Evergreen

560. [REDACTED]

[REDACTED]

[REDACTED]

October 22, 2019 Evergreen/DCLI EMC CUA, CX00003754 at 771, n.1.

RESPONSE: Denied. This SUMF misstates the evidence, insofar as [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes the cited contract. Further, the chassis usage agreements negotiated and agreed to by Evergreen [REDACTED]

[REDACTED]. *See* IMCC Resp. SUMF ¶¶ 204-06. This statement is material to IMCC’s argument that Respondent ocean carriers’ decisions and agreements to withdraw from existing interoperable chassis pools are unjust and unreasonable. IMCC MSD 22-25.

561. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. October 22, 2019 Evergreen/DCLI EMC Amendment No. 1, CX00003815 at 819.

RESPONSE: Denied. This SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation. Finally, to the extent that a chassis usage agreement exists between [REDACTED], the agreement speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 113 (addressing Respondents’ assertion regarding the relevance, materiality, and/or admissibility of the cited document or communication because it includes locations outside of the scope of geographic discovery). Respondents do not deny that the October 22, 2019 Evergreen/DCLI EMC Amendment No. 1

[REDACTED].

Further, Respondents have stipulated to the fact that [REDACTED]. JSF ¶ [REDACTED].

562. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 819, n.1.

RESPONSE: Denied. This SUMF misstates the evidence, insofar as [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 113 (addressing Respondents’ assertion regarding the relevance, materiality, and/or admissibility of the cited document or communication because it includes locations outside of the scope of geographic discovery), 560 (addressing Respondents’ assertion that “[REDACTED]”).

563. [REDACTED]

[REDACTED]

[REDACTED]. CX00003647 (Wang Dep. Ex. 14) at 647 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order. Further, to the extent that a [REDACTED], discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself. Finally to the extent this SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 113 (addressing Respondents’ assertion regarding the relevance, materiality, and/or admissibility of the cited document or communication because it includes locations outside of the scope of geographic discovery). This statement is a single proposition supported by citations to the record. Respondents fail to cite to support for their contention that “discussions and negotiations are merged in the agreement and are not admissible[.]” Further, IMCC does not offer this statement to interpret the contract. The statement is material to IMCC’s argument that Respondent ocean carriers understood that the consequences of their decisions and agreements to withdraw from existing interoperable chassis pools would have consequences that are unjust and unreasonable. IMCC MSD 22-25.

564. [REDACTED]
[REDACTED]
[REDACTED] *Id.*; Wang (Evergreen) Dep.,
CX00000773 at 192:11-21 [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order. Further, to the extent that a chassis usage agreement was executed between [REDACTED] [REDACTED] are not admissible; and, the agreement speaks for itself. Finally to the extent this SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶¶ 113 (addressing Respondents’ assertion regarding the relevance, materiality, and/or admissibility of the cited document or communication because it includes locations outside of the scope of geographic discovery), 563 (addressing Respondents’ assertion that “discussions and negotiations are merged in the agreement and are not admissible”). Further, this statement is a single proposition supported by citations to the record.

565. [REDACTED]

[REDACTED]

[REDACTED]. CX00003652 (Wang Dep. Ex. 15) at 652-53.

[REDACTED]. S [REDACTED]

[REDACTED]

[REDACTED]. S [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

[REDACTED]

Id.

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order. Further, the assertions therein are conclusory and speculative insofar as they not supported by admissible evidence. To the extent that a chassis usage agreement was executed between [REDACTED] and are not admissible; and, the agreement speaks for itself. Finally to the extent this SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶¶ 113 (addressing Respondents’ assertion regarding the relevance, materiality, and/or admissibility of the cited document or communication because it includes locations outside of the scope of geographic discovery), 563

(addressing Respondents’ assertion that “discussions and negotiations are merged in the agreement and are not admissible”).

566. [REDACTED]
[REDACTED]. Wang (Evergreen)
Dep., CX00000773 at 163:10-164:9 [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF misrepresents the testimony, which speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not deny the accuracy of the quote in the supporting citation; there, Evergreen’s corporate witness confirmed that “[REDACTED]

[REDACTED]
[REDACTED]” Wang (Evergreen) Dep., CX00000773 at 164:4-9.

Hapag-Lloyd

567. [REDACTED]
[REDACTED]

[REDACTED]. *See*

January 1, 2016 Hapag-Lloyd/TRAC CUA, CX00004115 (Barattini Dep. Ex. 13) at 129, 142.

RESPONSE: Denied. This SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 209 (addressing Respondents' assertion regarding the relevance, materiality, and/or admissibility of the cited document or communication because it includes locations outside of the scope of geographic discovery).

568. [REDACTED]

[REDACTED]. *See* Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 147:3-7.

RESPONSE: Denied. This SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 209 (addressing Respondents' assertion regarding the relevance, materiality, and/or admissibility of the cited document or communication because it includes locations outside of the scope of geographic discovery).

569. [REDACTED]

[REDACTED]. *See* Aug. 16, 2016 TRAC Proposal, CX00004098 (Barattini Dep. Ex. 18) at 098; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 189:5-15 ([REDACTED]).

RESPONSE: Denied. This SUMF contains assertions relating to the negotiations of a chassis usage agreement between [REDACTED] and, to the extent that an agreement was executed, the discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 563 (addressing Respondents’ assertion that “discussions and negotiations are merged in the agreement and are not admissible”).

570. [REDACTED]

[REDACTED]
[REDACTED]. *See* January 1, 2017 Hapag-Lloyd/TRAC Amendment, CX00004089 at 090.

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order. To the extent that a chassis usage agreement was executed between [REDACTED], the agreement speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the

Motion. *See* Initial Order, ¶ 16. Respondents do not deny that the statement accurately describes the cited contract.

571. [REDACTED]
[REDACTED]

[REDACTED]. *Id.* at 092-93, 097.

RESPONSE: Admitted.

572. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]. *Id.* at 091-92.

RESPONSE: Denied. This SUMF misstates the evidence, insofar as [REDACTED]
[REDACTED]

[REDACTED]. To the extent that a chassis usage agreement was executed between [REDACTED], the agreement speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. IMCC does not “misstate” the provision; this statement is a direct quote from the cited exhibit, the accuracy of which Respondents do not deny. Further, the chassis usage agreements to which Hapag-Lloyd is a party [REDACTED]
[REDACTED]; ocean carriers and IEPs negotiate and mutually agree which pool the IEP will use to provide chassis for the movement of that ocean carrier’s containers. *See* IMCC Resp. SUMF ¶¶ 204-06.

573. [REDACTED]

[REDACTED]. See Barattini (Hapag-Lloyd) (10/01/2021) Dep, CX00000654, at 194:5-11.

RESPONSE: Denied. This SUMF is not supported by the cited testimony: “[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes the January 1, 2017 Hapag-Lloyd/TRAC Amendment, and Respondents do not deny that Barattini testified that [REDACTED] CX00000654 at 194:10-11.

574. [REDACTED]

[REDACTED] August 16, 2016 TRAC Proposal, CX00004098 (Barattini Dep. Ex. 18) at 098; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 189:23-190:5.

RESPONSE: Denied. This SUMF is not supported by the cited testimony. Further, this SUMF contains assertions relating to the negotiations of a chassis usage agreement between [REDACTED] and, to the extent that an agreement was executed, the discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. See Initial Order, ¶ 16; *see also supra*, ¶ 563 (addressing Respondents’ assertion that

HMM/DCLI CUA [REDACTED]

[REDACTED]. *Infra*, ¶ 578.

576. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. CX00002491 (Compton Dep. Ex. 19) at 492; Compton (HMM) Dep.,

CX00000207 at 162:17-164:3; *see also* “Chassis Use Agreement” letter (Mar. 19, 2019)

CX00004212 at 214 (“[REDACTED]

[REDACTED]

[REDACTED].”).

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order. In addition, this SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 209 (addressing Respondents’ assertion regarding the relevance, materiality, and/or admissibility of the cited document or communication because it includes locations outside of the scope of geographic discovery).

577. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. CX00002491 (Compton Dep. Ex. 19) at 492.

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order. Further, to the extent that a chassis usage agreement exists between [REDACTED], the agreement speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not deny that the statement accurately describes the cited exhibit.

578. [REDACTED]

[REDACTED]

[REDACTED]. Compton (HMM) Dep., CX00000207 at 187:20-22.

RESPONSE: Admitted.

579. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 163:21-164:3.

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order. Further, this SUMF misrepresents the cited testimony, fails to disclose [REDACTED]

[REDACTED]

[REDACTED]. (Compton Dep., p. 163, l. 21 –p. 163, l. 19, APP0749).

REPLY: There is no dispute of material fact. Compton’s testimony that [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] only supports the statement that [REDACTED]
[REDACTED]. Compton (HMM) Dep., CX00000207 at 164:4-165:3.

580. [REDACTED]
[REDACTED]
[REDACTED] CX00002491 (Compton Dep. Ex. 19) at
492; CX00002433 at 433 (“[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

RESPONSE: Admitted.

581. [REDACTED]
[REDACTED]

Compton (HMM) Dep., CX00000207 at 111:18-24.

RESPONSE: Admitted.

Maersk

582. [REDACTED]
[REDACTED] Weisberg (Maersk) Dep.,

CX00000709 at 46:17-21; 97:6-17.

RESPONSE: Admitted.

MSC

583. [REDACTED]

Roveccio (MSC) Dep., CX00000799 at 89:25-90:4.

RESPONSE: Admitted.

584. [REDACTED]

[REDACTED]. *Id.* at 188:20-189:7.

RESPONSE: Admitted.

585. In [REDACTED]

[REDACTED]. *Id.* at 90:5-10.

RESPONSE: Admitted.

586. [REDACTED]. *Id.* at 189:11-22.

RESPONSE: Admitted.

587. [REDACTED] *Id.* at 189:16-

22.

RESPONSE: This SUMF misrepresents the cited testimony. [REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes the cited testimony; MSC’s corporate witness agreed that “[REDACTED]
[REDACTED]” Roveccio (MSC) Dep., CX00000799 at 190:6-8.

588. [REDACTED]

[REDACTED]. *Id.* at 189:23-190:8.

RESPONSE: Admitted.

ONE

589. [REDACTED]. CX000005382

(Armstrong Dep. Ex. 11) at 382-83; Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 104:3-12.

RESPONSE: Admitted.

590. [REDACTED]. Armstrong (ONE) (10/28/2021) Dep., CX00000606 at 155:13-22.

RESPONSE: Admitted.

591. [REDACTED] *Id.*

RESPONSE: Admitted.

592. [REDACTED]. *Id.* at 134:14-22.

RESPONSE: Admitted.

593. [REDACTED]

[REDACTED] *Id.* at 104:13-15; CX000005382 (Armstrong Dep. Ex. 11) at 382-83.

RESPONSE: Admitted.

594. [REDACTED]

[REDACTED]

[REDACTED] Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 132:20-133:1.

RESPONSE: Admitted.

Wan Hai

595. [REDACTED]

[REDACTED]

February 1, 2016 Wan Hai/TRAC CUA, CX00005777 (Chung Dep. Ex. 5) at 787; April 1, 2020

Wan Hai/TRAC CUA, CX00005789 (Chung Dep. Ex. 7) at 798.

RESPONSE: Admitted.

596. [REDACTED]

[REDACTED]. July 1, 2021 Wan Hai/TRAC

Amendment, CX00005771 (Chung Dep. Ex. 8) at 773; *see also* Chung (Wan Hai) Dep.,

CX00000304 at 78:13-22 [REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Admitted.

Yang Ming

597. [REDACTED]

[REDACTED]. Micena (Yang

Ming) Dep. CX00000001 at 186:21-25.

RESPONSE: Admitted.

598. [REDACTED]

[REDACTED]

[REDACTED].

CX00005808 (Micena Dep. Ex. 19) at 814, 829; *see also* Micena (Yang Ming) Dep.,

CX00000001 at 289:22-290:4 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order, and is not supported by the cited testimony. Further, this SUMF contains assertions relating to the negotiations of a chassis usage agreement between [REDACTED] and, to the extent that an agreement was executed, the discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also* ¶ 563 (addressing Respondents’ assertion that “discussions and negotiations are merged in the agreement and are not admissible”). This statement is a single proposition supported by citations to the record. Respondents do not deny that the statement accurately quotes the cited contract. Further, a quotation from an executed contract is not “conclusory and speculative[.]”

599. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00005808 (Micena Dep. Ex. 19) at 829.

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order, and is not supported by the cited testimony. Further, this SUMF contains assertions relating to the negotiations of a chassis usage agreement between [REDACTED] and, to the extent that an agreement was executed, the discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also* ¶ 563 (addressing Respondents’ assertion that “discussions and negotiations are merged in the agreement and are not admissible”). Further, Respondents’ contention that this statement “is not supported by the cited testimony” ignores that this statement (1) is supported by an exhibit, not testimony; and (2) accurately quotes the [REDACTED]. CX00005808 (Micena Dep. Ex. 19) at 829.

600. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] *Id.* at 812, 829; *see also* Micena (Yang Ming) Dep. CX00000001 294:19-296:11 ([REDACTED]).

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order, and is not supported by the cited testimony. Further, this SUMF contains assertions relating to the negotiations of a chassis usage agreement between [REDACTED] and, to

the extent that an agreement was executed, the discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also* ¶ 563 (addressing Respondents’ assertion that “discussions and negotiations are merged in the agreement and are not admissible”). This statement is a single proposition supported by citations to the record. Further, Respondents do not deny that the statement accurately quotes the cited exhibit.

601. [REDACTED]
[REDACTED]
[REDACTED]. *See* CX00005808 (Micena Dep. Ex. 19) at 829; *see also* Micena (Yang Ming) Dep. CX00000001 at 297:21-298:9 (“[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order, and is not supported by the cited testimony. Further, this SUMF contains assertions relating to the negotiations of a chassis usage agreement between [REDACTED] and, to the extent that an agreement was executed, the discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the

Motion. *See* Initial Order, ¶ 16; *see also* ¶ 563 (addressing Respondents’ assertion that “discussions and negotiations are merged in the agreement and are not admissible”). This statement is a single proposition supported by citations to the record, and Respondents do not deny that the statement accurately quotes the cited exhibit. Further, Respondents do not articulate how the cited testimony ([REDACTED]) does not support the statement.

602. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *See* CX00005914 (Micena Dep. Ex. 21) at 916; *see also* Micena (Yang Ming) Dep. CX00000001 312:18-313:3 [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order, and is not supported by the cited testimony. Further, this SUMF contains assertions relating to the negotiations of a chassis usage agreement between [REDACTED] and, to the extent that an agreement was executed, the discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the

Motion. *See* Initial Order, ¶ 16; *see also* ¶ 563 (addressing Respondents’ assertion that “discussions and negotiations are merged in the agreement and are not admissible”).

603. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. CX00005935 (Micena Dep. Ex. 22) at 936.

RESPONSE: Denied. This SUMF misstates the evidence, insofar as [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Further, the agreement speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents do not deny that the statement accurately quotes the cited contract. Further, the chassis usage agreements to which Yang Ming is a party

[REDACTED]

[REDACTED]; ocean carriers and IEPs negotiate and mutually agree which pool the IEP will use to provide chassis for the movement of that ocean carrier’s containers. *See* IMCC Resp. SUMF ¶¶ 204-06.

604. [REDACTED]

[REDACTED]

[REDACTED]. *See* Micena (Yang Ming) Dep. CX00000001 at

303:14-304:5 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED], 401:21-25 [REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order. Further, this SUMF contains assertions relating to the negotiations of a chassis usage agreement between [REDACTED] and, to the extent that an agreement was executed, the discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also* ¶ 563 (addressing Respondents’ assertion that “discussions and negotiations are merged in the agreement and are not admissible”). This statement is a single proposition supported by citations to the record.

605. [REDACTED]

[REDACTED]. Micena (Yang Ming) Dep. CX00000001 at 343:8-12.

RESPONSE: Admitted.

[REDACTED]

[REDACTED]

January 1, 2019 Yang Ming/TRAC Amendment, CX00005940 at 940.

RESPONSE: Denied. This SUMF misstates the evidence, insofar as [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

Further, the agreement speaks for itself. In addition, this SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶¶ 209 (addressing Respondents’ assertion regarding the relevance, materiality, and/or admissibility of the cited document or communication because it includes locations outside of the scope of geographic discovery), 603 (addressing Respondents’ assertion that “[REDACTED]”).

ZIM

607. [REDACTED]. Messing (ZIM) Dep., CX00000260 at 141:22-142:8; CX00006040 (Messing Dep. Ex. 18) at 043.

RESPONSE: Admitted.

608. [REDACTED]

[REDACTED]. Messing (ZIM) Dep., CX00000260 at 143:14-17, 164:7-22; CX00006100 (Messing Dep. Ex. 19) at 104 ([REDACTED])

[REDACTED]).

RESPONSE: Admitted.

609. [REDACTED]. Messing (ZIM) Dep., CX00000260 at 141:22-142:10; CX00006040 (Messing Dep. Ex. 18) at 043.

RESPONSE: Admitted.

610. [REDACTED]
[REDACTED]. Messing (ZIM) Dep., CX00000260 at 164:17-22; CX00006100 (Messing Dep. Ex. 19) at 104 ([REDACTED]
[REDACTED]).

RESPONSE: Admitted.

B. Respondent Ocean Carriers Agreed that Interoperable Gray Pools Benefit the Intermodal Supply Chain.

611. Each Respondent ocean carrier responded as follows to IMCC’s Interrogatory No. 4 to identify the “benefits and costs of gray pools and interoperability[::]”

- a. [REDACTED]
[REDACTED]
[REDACTED] CMA Resps. & Objs. To Interrog. No. 4, CX00002013 (Fentress Dep. Ex. 27) at 018-20; COSCO Resps. & Objs. To Interrog. No. 4, CX00002025 (Houghtalin Dep. Ex. 10) at 030-32; Evergreen Resps. & Objs. To Interrog. No. 4, CX00002038 (Wang Dep. Ex. 21) at 044-46; Hapag-Lloyd Resps. & Objs. To Interrog. No. 4, CX00002052 (Barattini (10/22/2021) Dep. Ex. 28) at 057-58; HMM Resps. & Objs. To Interrog. No. 4, CX00002065 (Compton Dep. Ex. 25) at 070-72; Maersk Resps. & Objs. To Interrog No. 4, CX00002077 at 082-84; MSC Resps. & Objs. To Interrog. No. 4,

CX00002089 (Roveccio Dep. Ex. 13) at 094-96; ONE Resps. & Objs. To Interrog. No. 4, CX00002113 (Armstrong (10/28/2021) Dep. Ex. 30) at 118-20; Wan Hai Resps. & Objs. To Interrog. No. 3, CX00002125 at 129-31; Yang Ming Resps. & Objs. To Interrog. No. 4, CX00002136 (Micena Dep. Ex. 12) at 141-43; ZIM Resps. & Objs. To Interrog. No. 4, CX00002148 (Messing Dep. Ex. 16) at 153-55

- b. [REDACTED]
- c. [REDACTED]
- d. [REDACTED]
- e. [REDACTED]
- f. [REDACTED]

- g. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- h. [REDACTED]
[REDACTED]
[REDACTED]
- i. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- j. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- k. [REDACTED]

RESPONSE: Denied. This SUMF does not contain a concise statement of each material fact (Initial Order, ¶15) Further, the foregoing Answers to Interrogatory no. 4 (no. 3, as propounded to Wan Hai) speak for themselves.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the

Motion. *See* Initial Order, ¶ 16. Respondents do not deny that the statement accurately quotes their Interrogatory Responses.

612. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] CX00005065 (Wilson Dep. Ex. 6) at 075. [REDACTED]
[REDACTED]
[REDACTED]

Id.

[REDACTED]

Id.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains assertions regarding the

efficiency of interoperable pools and inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

613. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Wilson (CCM) Dep., CX00000490 at 98:5-25; *see also id.* at 99:11-16 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order, and also contains assertions regarding the alleged efficiency of interoperable pools and

alleged inefficiency of non-interoperable pools that are not material. (Order, at p. 6) Further the assertions are not supported by the evidence: “ [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant). Respondents do not deny that the statement accurately quotes the cited testimony. Further, Respondents’ various assertions do not contradict the statement, including the testimony of CCM’s CEO that [REDACTED]

[REDACTED]” CX00000490 at 98:24-25 (emphasis added).

614. [REDACTED]

[REDACTED]. CX00004227 (Compton Dep. Ex. 24) at 228-42 ([REDACTED]
[REDACTED]); Compton (HMM) Dep., CX00000207 192:18-24. [REDACTED]
[REDACTED]

Compton (HMM) Dep., CX00006153 at 154:16-25.

RESPONSE: Denied. This SUMF contains assertions regarding the efficiency at rail terminals, specifically with respect to conditions that involve “[REDACTED]” that are not material or relevant. (Order at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

615. [REDACTED]

[REDACTED]. Wilson (CCM) Dep., CX00000490 at 100:6-19 [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED])

RESPONSE: Denied. This SUMF contains assertions regarding [REDACTED] [REDACTED] that are not material or relevant. (Order, at p. 6) *See also*, the citation to the Coates/MICP rebuttal report in response to no. 613, *supra*.

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant), 613 (addressing Respondents’ citation to the Coates/MICP rebuttal report).

616. [REDACTED]
[REDACTED]
[REDACTED] CX00004878 (Wilson Dep. Ex. 6) at 878. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *Id.* at 879.

[REDACTED]

CX00005065 (Wilson Dep. Ex. 6) at 076; Wilson (CCM) Dep., CX00000490 at 117:20-118:12

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant). Further, Respondents fail to address that this statement is supported by citations to a May 2019 OCEMA Senior Steering Committee meeting and to a presentation given at that meeting. *See generally* CX00004878; CX00005065. Respondents’ sole citation to a rebuttal expert report is insufficient to dispute testimony that

[REDACTED]

[REDACTED]

[REDACTED]. In addition, Respondents’ attack on the

credibility of their own witnesses does not raise a genuine dispute of the facts asserted by the witnesses for purposes of summary decision.

617. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

CX00004878 (Wilson Dep. Ex. 6) at 881. [REDACTED], OCEMA and CCM subsequently developed the “Interoperability Matters!” presentation, which describes the benefits of

interoperable gray pools to intermodal supply chain stakeholders. CX00002221 (Wilson Dep.

Ex. 11). Those benefits include:

- a. All chassis are available within a gray interoperable pool, obviating any requirement to reposition chassis between separate pool locations when an ocean carrier switches chassis providers. *Id.* at 226.
- b. Gray interoperable pools are managed by a neutral party, such as CCM, that does not own chassis itself, thereby fostering an “open competition” environment with “low barriers to entry” for chassis contributors to compete for ocean carrier business, as well as setting standards for chassis quality in the pool. *Id.* at 225.
- c. Gray interoperable pools allow shippers to carry less buffer stock because of more reliable cargo flows with “competitive chassis provision options.” *Id.* at 226.
- d. Gray interoperable pools allow railroads and rail ramp operators to use any chassis on-site, which could result in faster unloading of trains and require fewer chassis on the terminal. *Id.* at 227.
- e. Interoperable gray pools with chassis choice can provide motor carriers “the freedom to use the chassis of his choice on multiple container moves without having to unhook from the chassis,” and given the “broad range of chassis suppliers,” motor carriers can “negotiate better terms and lower rates” in an interoperable pool. *Id.* at 229.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) Further,

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See also, responses to nos. 613 and 616, *supra*.

REPLY: There is no dispute of material fact. See *supra*, ¶¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant), 613 (addressing Respondents’ citation to the Coates/MICP rebuttal report), 616 (addressing Respondents’ attack on the credibility of Michael Wilson and Ken Tock). Further, Respondents’ citation does not dispute the cited statements made by the OCEMA Senior Steering Committee, including [REDACTED].

618. [REDACTED]

[REDACTED], the “Interoperability Matters!” presentation [REDACTED] describes “Who Is Impacted by Non-Interoperability,” as shown below.

COST CATEGORY	DESCRIPTION	WHO EXPERIENCES THESE COSTS?				
		OC	BCO	MC	EP	RR
Chassis Splits	When a trucker drops off a load or empty container for one ocean carrier and needs to backtrack to return the chassis in order to get a different chassis from a new location to pull for a different ocean carrier	✓	✓	✓		
Rail Demurrage	Storage charges at a rail ramp beyond the free time when chassis run short	✓	✓	✓		
Truck Detention	When a trucker spends more than the agreed wait time (usually 2 hours) at a facility for a chassis	✓	✓	✓		
Rail Flips	Moving a container from one chassis to another, usually at rail ramps	✓	✓	✓		
Dead Runs	A failed attempt to pick up a container at a rail ramp	✓	✓	✓		
Bare Repositioning	Moving a bare chassis from one location to another for redeployment purposes	✓	✓	✓	✓	
Extra Stock/Chassis	Additional chassis needed due to inefficient use of the fleet	✓	✓	✓	✓	
Reduced Truck Turns/Truck Capacity Impact	Reduced productivity of the truck due to overall inefficiency-in the supply chain adds cost	✓	✓	✓		
Slower Rail L/D Ops	Lower productivity in rail L/D operations due to multiple chassis pools					✓
Extra Product Inventory	Extra product/inventory needed due to reduced velocity in the supply chain		✓			

Id. at 223.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, responses to nos. 613, 616 and 617, *supra*.

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant), 613 (addressing Respondents’ citation to the Coates/MICP rebuttal report), 616 (addressing Respondents’ attack on the credibility of Michael Wilson and Ken Tock).

619. In [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. CX00003856. [REDACTED]:

a. [REDACTED]
[REDACTED]
[REDACTED]. *Id.* at 865.

b. [REDACTED]
[REDACTED]
[REDACTED]. *Id.*

c. [REDACTED]
[REDACTED]
[REDACTED]. *Id.*

- d. [REDACTED]
[REDACTED]. *Id.*
- e. [REDACTED]
[REDACTED]
[REDACTED]. *Id.* at 866.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) Further, denies that the exhibit referenced in this SUMF makes the representations set forth above.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant). Further, Respondents do not articulate how the cited exhibit differs substantively from the statement.

620. [REDACTED]
[REDACTED]
CX00004878 (Wilson Dep. Ex. 6) at 881. [REDACTED]
[REDACTED]
[REDACTED]. CX00004919
(Lawrence Dep. Ex. 3). [REDACTED]
[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 919.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) Further,

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant). Respondents’ assertion that “[REDACTED]

[REDACTED]” does not contradict the statement that [REDACTED]

[REDACTED]

[REDACTED].” CX00004878 (Wilson Dep.

Ex. 6) at 881. The cited exhibit goes on to describe [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” *Id.*

621. [REDACTED]

[REDACTED]

[REDACTED] *Id.* [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 920.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, response to no. 621, *supra*

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

622. Mr. [REDACTED]

[REDACTED] *Id.* [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. The quotations in this SUMF are not material. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant). The fact is material because it describes how CCM “[REDACTED]

[REDACTED].

623. [REDACTED]

[REDACTED] *Id.* at 919; “CCM Pools LLC (CCMP) Operations Manual Version 2.9” (Apr. 1, 2019), CX00002170; *see also supra* at ¶¶ 78-83.

RESPONSE: Denied. The quotations in this SUMF are not material. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant). The fact is material because it describes how CCM “[REDACTED]

C. Despite Their Agreement that Interoperable Gray Pools Benefit the Intermodal Supply Chain, Respondent Ocean Carriers Chose Their Short Term Financial Interests Instead.

624. The [REDACTED]

[REDACTED]

[REDACTED] CX00004878 (Wilson Dep. Ex. 6) at 878. [REDACTED]

[REDACTED] *Id.* at 879; Wilson (CCM) Dep., CX00000490 at 116:15-20 [REDACTED]

[REDACTED]

[REDACTED]; Jan. 31, 2019 Email from Jeffrey Lawrence (OCEMA), CX00002253 at 253 (“I agree we need a strategy and that the [IEPs] are methodically, and with accelerated pace, carving away at CCM with homicidal intent.”).

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Further, ocean carrier do not withdraw from CCM pools: [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes the cited exhibit. Further, the chassis usage agreements negotiated and agreed to by ocean carriers [REDACTED]

[REDACTED]. See IMCC Resp. SUMF ¶¶ 204-06.

625. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004878 (Wilson Dep. Ex. 6) at 879 [REDACTED]

[REDACTED]. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *Id.*; CX00005065 (Wilson Dep. Ex. 6) at 091.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the

Motion. *See* Initial Order, ¶ 16. This statement is a single proposition supported by citations to the record.

626. At [REDACTED]
[REDACTED]
[REDACTED] CX00004878 (Wilson Dep. Ex. 6) at 880; *see also* June 25, 2019 Email from Michael Wilson (CCM), CX00002430 at 430 ([REDACTED]
[REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. This statement is a single proposition supported by citations to the record.

627. [REDACTED]
[REDACTED]
[REDACTED] Coates Dep., CX00000871 at 95:2-19.

RESPONSE: Admitted. Further, “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]”

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: Respondents Admit this fact. Nothing in Respondents’ response after the admission contradicts the quoted testimony.

628. [REDACTED]

[REDACTED]

[REDACTED]. CX00004878 at 879-80 (“[REDACTED]

[REDACTED]

[REDACTED]

CX00005065 (Wilson Dep. Ex. 6) at 083.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Further, the ocean carrier Respondents did not “transition” into proprietary pools: ([REDACTED] [REDACTED])

REPLY: There is no dispute of material fact. *See supra*, ¶ 624 (addressing Respondents’ assertion that “the ocean carrier Respondents did not ‘transition’ into proprietary pools”). This statement is a single proposition supported by citations to the record. Further, Respondents do not deny that [REDACTED].

629. [REDACTED]

[REDACTED]

[REDACTED]. CX00002235 at 243 [REDACTED]

[REDACTED]

[REDACTED].

[REDACTED]

Id.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Further, the ocean carrier Respondents do not leave CCM pools: "... [REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 624 (addressing Respondents’ assertion that ocean carriers do not leave CCM pools). This statement is a single proposition supported by citations to the record. Further, Respondents do not deny that the statement accurately describes the cited exhibit.

630. [REDACTED]

[REDACTED]

[REDACTED] CX00002259 (Wilson Dep. Ex. 13) at 289. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Further, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 624 (addressing Respondents’ assertion that ocean carriers do not withdraw from pools). Further, Respondents do not deny that the statement accurately quotes the cited exhibit, a CCE Board Meeting presentation.

631. [REDACTED]

[REDACTED] CX00005118

(Wilson Dep. Ex. 13) at 121; *see also* Wilson (CCM) Dep., CX00000490 at 228:5-230:5

[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. This statement is a single proposition supported by citations to the record.

632. [REDACTED]

[REDACTED] CX00002259 (Wilson Dep. Ex. 13) at 036, 274.

RESPONSE: Denied. These quotations do not appear in the referenced documents.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. The “[REDACTED]” quotation appears at CX00002259 at 274 and the correct citation for the quotation [REDACTED] is CX00002259 at 306.

633. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004872 (Wilson Dep. Ex. 14) at 875-76; Wilson (CCM) Dep., CX00000490 at

235:13-22 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]d).

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Further, ocean carriers do not withdraw from CCM pools:

“ [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 624 (addressing Respondents’ assertion that ocean carriers do not withdraw from CCM pools). Further, Respondents do not deny that the statement accurately quotes the cited exhibit, Minutes of an OCEMA Senior Steering Committee.

634. [REDACTED]

[REDACTED]. CX00002259 (Wilson Dep. Ex. 13) at 274.

RESPONSE: Admitted.

635. [REDACTED]. CX00002335 at 356. [REDACTED]

[REDACTED] *Id.*; Wilson (CCM) Dep.,

CX00000490 at 41:6-18 [REDACTED]

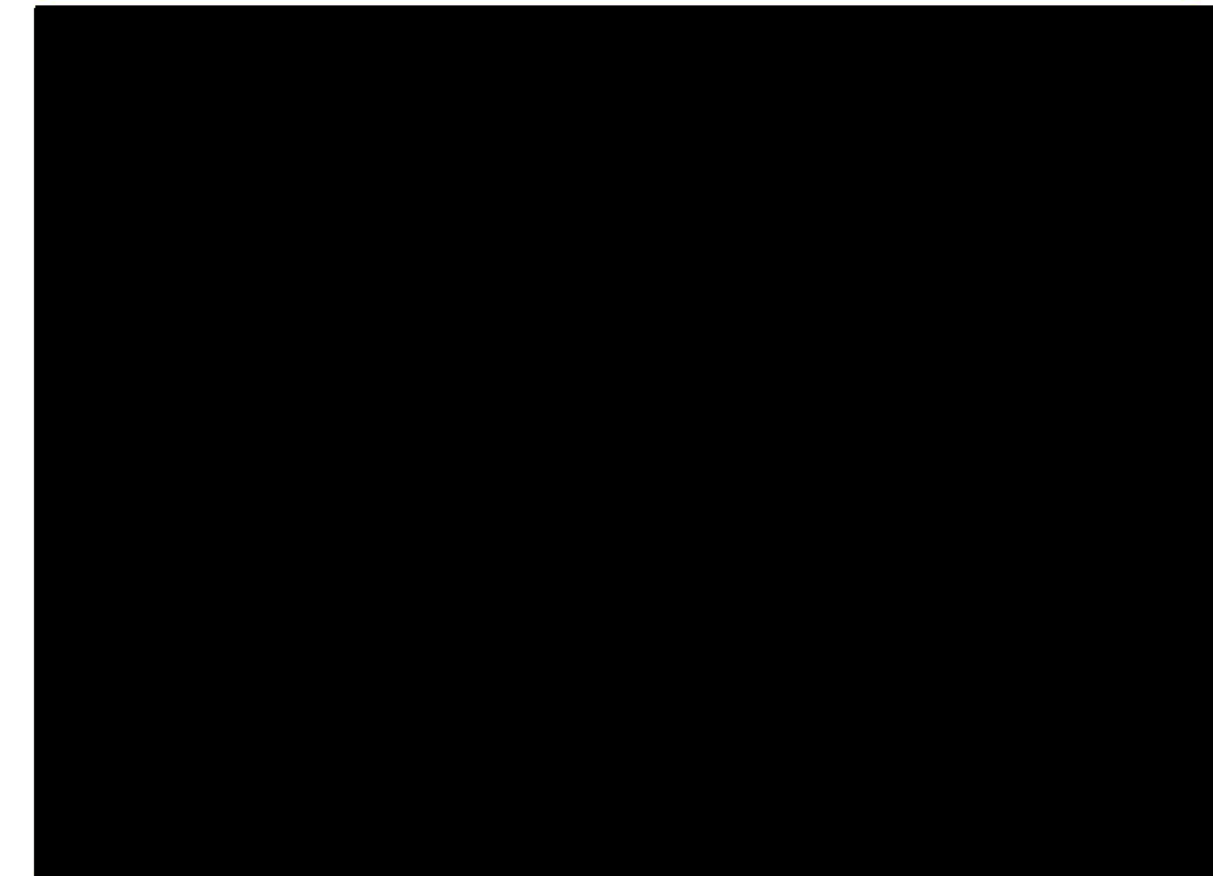
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED])



CX00002335 at 356.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Further, ocean carriers do not withdraw from CCM pools. *See*, Response to no. 633, *supra*

REPLY: There is no dispute of material fact. *See supra*, ¶ 624 (addressing Respondents’ assertion that ocean carriers do not withdraw from CCM pools).

636. [Redacted]

[Redacted]

[Redacted].

[REDACTED]

Id. at 359.

RESPONSE: Admitted.

VI. THE RESPONDENTS' CONDUCT HAS HARMED MOTOR CARRIERS, BCOS, AND THE SHIPPING PUBLIC.

A. The Closure of the COCP and the Fragmentation of the MCCP Have Resulted in Decreased Productivity and Increased Costs for Motor Carriers and Their Customers.

637. [REDACTED]

[REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 129; *see also* “2017 chi billing codes.xlsx”, CX00002780; “2020 chi billing codes.xlsx”, CX00002781.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged

inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

Respondents furthermore object to IMC's untimely production of 2017 chi billing codes.xlsx", CX00002780; "2020 chi billing codes.xlsx", CX00002781 which were not produced in response to the subpoena served upon it and prior to the deposition of Mark George.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see supra*, ¶ 524 (addressing Respondents' assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant). Further, CPG produced this data on September 3, 2021, and CPG's corporate witness was deposed on January 28, 2022. Mark George did not testify on behalf of CPG, and he was also deposed in January 2022.

638. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 130.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see supra*, ¶ 524 (addressing Respondents' assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

639. [REDACTED]

[REDACTED]

[REDACTED]. *Id.* at ¶ 136.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

640. [REDACTED]

[REDACTED]

[REDACTED] Lhotak (Reliable) Dep., CX00000477 at 180:7-10; *see also id.* at 181:3 [REDACTED]).

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

641. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Lhotak (Reliable) Dep., CX00000477 at 182:16 – 183:23.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

642. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at

¶135; *see also* Glenn Fehribach Decl. (Apr. 25, 2022) at ¶¶ 5, 8.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

643. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Rodrigue Initial Report at ¶ 138. Indeed, as Mr. Coates explained, there are “different operational situations where the actual dynamics are going to either favor or not favor interoperable pools.” Coates Dep., pp. 180-181.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) Further,

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See* Initial Order, ¶ 16; *see supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant). Further, Respondents’ cited expert quote does not dispute that “[REDACTED] [REDACTED].” Rodrigue Initial Expert Report, CX00001362 at ¶ 138; *see also* Wilson (CCM) Dep., CX00000490 at 98:24-25 (testifying that [REDACTED] [REDACTED]” (emphasis added)).

644. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *Id.* at ¶ 139; *see*

also Glenn Fehribach (CPG) Decl. (Apr. 25, 2022) at ¶¶ 4, 8.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged

inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643. Respondents further deny the statement as it is a characterization of non-party hearsay.

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 55 (addressing Respondents’ assertion regarding “non-party hearsay”), 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant), 643 (addressing Respondents’ assertion that “[m]arket conditions and differences among regions require different solutions”).

645. [REDACTED]
[REDACTED]
[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 86; *see also* Glenn Fehribach (CPG) Decl. (Apr. 25, 2022) at ¶¶ 6, 8.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant), 643 (addressing Respondents’ assertion that “[m]arket conditions and differences among regions require different solutions”).

646. [REDACTED]
[REDACTED]

[REDACTED]. “CCE Board Meeting” presentation (Jan. 28, 2021), CX00002335 at 359.

RESPONSE: Admitted.

647. [REDACTED].
Rodrigue Initial Expert Report, CX00001362 at ¶ 144.

RESPONSE: Admitted.

648. The Memphis region contains several large intermodal rail facilities, including at least two wheeled ramp facilities. *Id.*; *see also* “Intermodal Cartage_Chassis Usage 2019.csv,” CX00004463 ([REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]); CX00004227 (Compton Dep. Ex. 24) at 228 ([REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Without prejudice, admits that the Memphis region contains two wheeled ramp facilities.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. This statement is a single proposition supported by citations to the record. Respondents do not deny the statement itself, or that the statement accurately quotes and summarizes the cited exhibits.

649. [REDACTED]
[REDACTED]
[REDACTED]. Rodrigue Initial Expert Report,

CX00001362 at ¶¶ 145-46; *see also* CX00005566 (Scott George Dep. Ex. 41) ([REDACTED])

[REDACTED]; Scott George (TCW) Dep., CX00000640 at 144:16-145:19, 148:10-151:7.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

650. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 148; *see also* Scott George (TCW) Decl. (Apr. 25, 2022) at ¶¶ 4, 8.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

651. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶¶ 148-49; *see also* Scott George (TCW) Decl. (Apr. 25, 2022) at ¶¶ 7, 8.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant), 643 (addressing Respondents’ assertion that “[m]arket conditions and differences among regions require different solutions”). Further, this statement is a single proposition supported by citations to the record.

652. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 150; *see also* Mark George (IMC) Decl. (Apr. 25, 2022) at ¶¶ 10, 13.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-

interoperable pools are not material or relevant), 643 (addressing Respondents’ assertion that “[m]arket conditions and differences among regions require different solutions”).

653. [REDACTED]

[REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 152; *see also* “Chassi Splits.xlsx”, CX00006146.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643. Respondents furthermore object to IMC’s untimely production “Chassi Splits.xlsx”, CX00006146 which were not produced in response to the subpoena served upon Intermodal Cartage and prior to the deposition of Mark George.

REPLY: There is no dispute of material fact. *See supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant). Respondents also do not contest that the statement accurately characterizes the data. Further, CX00006146 was not a document created and maintained in the ordinary course of business by Intermodal Cartage; rather, it was part of the work papers of Dr. Rodrigue and was timely produced on February 28, 2022, along with Dr. Rodrigue’s initial expert report.

654. [REDACTED]

[REDACTED].
Rodrigue Initial Expert Report, CX00001362 at ¶ 152; *see also* Mark George (IMC) Decl. (Apr. 25, 2022) at ¶ 13.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643.

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant), 643 (addressing Respondents’ assertion that “[m]arket conditions and differences among regions require different solutions”).

655. [REDACTED]

[REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 152; *see also* Mark George (IMC) Decl. (Apr. 25, 2022) at ¶¶ 6-8, 13.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643.

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant), 643 (addressing Respondents’ assertion that “[m]arket conditions and differences among regions require different solutions”).

656. [REDACTED]

[REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 152; *see also* Mark George (IMC) Decl. (Apr. 25, 2022) at ¶¶ 12, 13.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643.

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant), 643 (addressing Respondents’ assertion that “[m]arket conditions and differences among regions require different solutions”).

657. [REDACTED]

[REDACTED]. CX00003430
(Wang Dep. Ex. 9) at 434 (“Continued fragmentation is not in the long term best interest of OCEMA and the supply chain as a whole nor to any future consideration of a transaction involving CCM.”

RESPONSE: Denied. This SUMF is conclusory, and contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643.

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant), 643 (addressing Respondents’ assertion that “[m]arket conditions and differences among regions require different solutions”).

B. The Lack of Interoperable Chassis Pools Increases Supply Chain Inefficiencies and Costs.

658. [REDACTED]

[REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 75; *see also* CX00005065 (Wilson Dep. Ex. 6) at 076; Wilson (CCM) Dep., CX00000490 at 200:5-11.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant), 643 (addressing Respondents’ assertion that “[m]arket conditions and differences among regions require different solutions”).

659. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. CX00005065 (Wilson Dep. Ex. 6) at 076.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

660. The [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 75; Wilson (CCM) Dep.,

CX00000490 at 200:12-201:19 ([REDACTED])

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant), 643 (addressing Respondents’ assertion that “[m]arket conditions and differences among regions require different solutions”).

661. [REDACTED]

[REDACTED]. CX00005065 (Wilson Dep. Ex. 6) at 076.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

662. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 75; CX00002221 (Wilson Dep. Ex. 11) at 229-230.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant), 643 (addressing Respondents’ assertion that “[m]arket conditions and differences among regions require different solutions”).

663. [REDACTED]

[REDACTED]. Rodrigue Initial Report at ¶ 75; Wilson (CCM) Dep., CX00000490 at 202:17-20.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant), 643 (addressing Respondents’ assertion that “[m]arket conditions and differences among regions require different solutions”).

664. [REDACTED]

[REDACTED]. CX00005065 (Wilson Dep. Ex. 6) at 076.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

665. The “Interoperability Matters! The Interoperable Gray Pool Model: Enhancing Supply Chain Efficiencies” presentation included ocean carriers, BCOs, and motor carriers as entities who experience costs from increased bare repositioning due to a lack of interoperability. CX00002221 (Wilson Dep. Ex. 11) at 223.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

REPLY: There Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

666. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 ¶ 75; Wilson (CCM) Dep., CX00000490 at 202:21-203:10 [REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant), 643 (addressing Respondents’ assertion that “[m]arket conditions and differences among regions require different solutions”).

667. [REDACTED]

[REDACTED]. CX00005065 (Wilson Dep. Ex. 6) at 076.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

668. The “Interoperability Matters! The Interoperable Gray Pool Model: Enhancing Supply Chain Efficiencies” presentation included ocean carriers, BCOs, and motor carriers as

entities who experience costs from the need to maintain additional equipment inventory due to a lack of interoperability. CX00002221 (Wilson Dep. Ex. 11) at 223.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

REPLY: There Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

669. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 75; Wilson (CCM) Dep., CX00000490 at 203:11-21.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant), 643 (addressing Respondents’ assertion that “[m]arket conditions and differences among regions require different solutions”).

670. [REDACTED]

[REDACTED]. CX00005065 (Wilson Dep. Ex. 6) at 076.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

REPLY: There is no Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

671. [REDACTED]

[REDACTED]. Rodrigue
Initial Expert Report, CX00001362 at ¶ 75; Wilson (CCM) Dep., CX00000490 at 201:20-202:5.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant), 643 (addressing Respondents’ assertion that “[m]arket conditions and differences among regions require different solutions”).

672. [REDACTED]

[REDACTED]

[REDACTED].

CX00005065 (Wilson Dep. Ex. 6) at 076.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

673. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 75; Wilson (CCM) Dep., CX00000490 at 203:22-204:11 ([REDACTED]).

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant), 643 (addressing Respondents’ assertion that “[m]arket conditions and differences among regions require different solutions”).

674. [REDACTED]

[REDACTED].
CX00005065 (Wilson Dep. Ex. 6) at 076.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant), 643 (addressing Respondents’ assertion that “[m]arket conditions and differences among regions require different solutions”).

675. [REDACTED]

[REDACTED]. CX00005065
(Wilson Dep. Ex. 6) at 076-77.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

676. [REDACTED]

[REDACTED] Wilson (CCM) Dep., CX00000490 at 145:6-11.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

REPLY: There Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶ 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant).

VII. LESS INTRUSIVE ALTERNATIVES TO THE CHALLENGED CONDUCT EXIST.

677. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 106; *see also supra*, Section III.B.

RESPONSE: Denied. This SUMF is conclusory. A more accurate description of the ocean carrier Respondents Choice policies and business models are described in the Coates Declaration, ¶21 a-k; and, the Coates/MICP Report, CX00001524 at 1545—8.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16.

678. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 108; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000695 at 150:11-152:8; Micena (Yang Ming) Dep. CX000000001 at 282:5-283:10; Messing (ZIM) Dep., CX00000260 at 159:15-160:12.

RESPONSE: Admitted.

679. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report,
CX00001362 at ¶ 108.

RESPONSE: Admitted.

680. A [REDACTED]

[REDACTED]. *Id.*; *see also* Lawrence (OCEMA) Dep.,
CX00000448 at 90:9-92:21 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Admitted.

681. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Coates Dep., CX00000871 at 265:20-266:4.

RESPONSE: Denied. This is a conclusory and incomplete statement of Mr. Coates’ opinions and testimony on this complex issue: “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] (Coates/MICP Rebuttal Report, CX00001688, at 1693-4)

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes their industry expert.

VIII. THE MARKETS IN WHICH THE RESPONDENTS' CONDUCT SHOULD BE ASSESSED.

A. Relevant Product Markets.

682. Chassis supplied by IEPs on a daily usage basis is a relevant product market because that is the basis by which both ocean carriers and motor carriers (and their customers) obtain chassis from chassis pools. Chassis at daily usage prices are obtained either through contracts with IEPs or at the IEPs posted daily prices. *See supra*, Sections IV.A., IV.B., IV.D.

RESPONSE: Denied. IMCC attempt to present its expert *opinion* as fact here, citing four Sections of this as underpinning this assertion. Furthermore, the relevant product market is in dispute. (Reitzes Declaration, APP2226). To the extent IMCC intends this fact to be limited to its second statement, Respondents admit that chassis are generally secured through contracts or through posted daily rates.

REPLY: There is no dispute of material fact. This statement does not rely on IMCC's expert witnesses. *See supra*, Sections IV.A. (citing ocean carrier-IEP contracts and negotiations); Section IV.B. (same); Section IV.D. (citing Respondents' industry expert and ocean carrier testimony and exhibits). Further, Respondents cite solely to an untimely expert declaration as support for their contention that "the relevant product market is in dispute."

683. [REDACTED]

[REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 40.

RESPONSE: Admitted.

684. [REDACTED]

[REDACTED]

[REDACTED]. *Id.* at ¶¶ 34-37.

RESPONSE: Denied. Respondents’ expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶ 98-104. Further: “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. Respondents cite solely to an expert opinion that criticizes Dr. Langenfeld’s analysis without conducting any analysis of his own. Reitzes Rebuttal Report, CX00001625 at ¶¶ 98-104. Further, their assertion that IMCC’s experts’ opinions “[REDACTED]” is too general to be a sufficient denial. *See* Initial Order, ¶ 16.

Paragraph 102,¹² the only portion of Dr. Reitzes’s opinion that Respondents cite with specificity, is not supported by any citations and amounts to a hypothetical: [REDACTED]

¹² Respondents incorrectly cite to ¶ 103; the quote itself is from ¶ 102.

[.]” *Id.* at ¶ 102 (emphasis added).

[REDACTED]. See Coates Initial Expert Report, CX00001524 at 535; Rodrigue Initial Expert Report, CX00001362 at ¶ 31; *see also supra*, Section IV.A.

RESPONSE: Admitted.

See *supra*, Section IV.A.

RESPONSE: Admitted.

[REDACTED]. *See, e.g.*, Fehribach (CPG) Dep., CX00000329 at 62:3- 63:3 ([REDACTED]); CX00002759 (Fehribach Dep. Ex. 7); CX00003208 (Giltz Dep. Ex. 8) ([REDACTED]); [REDACTED], Giltz (Evans Delivery) Dep., CX00000186 at 67:14-17; Lhotak (Reliable) Dep., CX00000477 at 39:14-40:13 ([REDACTED]); [REDACTED]; Evergreen Resps. & Objs. To Interrog. No. 6 (Wang Dep. Ex. 21), CX00002038 at 047-48; *see also* Langenfeld Initial Expert Report, CX00001266 at ¶¶ 41, 51.

RESPONSE: Admitted.

688. [REDACTED]

[REDACTED]

[REDACTED]. Langenfeld
Initial Expert Report, CX00001266 at ¶ 41.

RESPONSE: Denied. Respondents’ expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”).

689. [REDACTED]

[REDACTED]

[REDACTED]. *Id.* at ¶¶ 62-67.

RESPONSE: Denied. Respondents’ expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”).

690. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]
[REDACTED]. *Id.* at ¶ 44.

RESPONSE: Denied. Respondents’ expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”).

691. [REDACTED]
[REDACTED]
[REDACTED].

Langenfeld Initial Expert Report, CX00001266 at ¶ 55; Coates Initial Expert Report, CX00001524 at 542.

RESPONSE: Denied. Respondents’ expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”).

692. [REDACTED]
[REDACTED].

Langenfeld Initial Expert Report, CX00001266 at ¶ 46.

RESPONSE: Denied. Respondents’ expert has opined that these opinions advanced by Dr.

Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶98-104. (*See also*, Response to no. 684, *supra*)

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”).

693. [REDACTED]

[REDACTED]. *Id.* at ¶ 47; Coates Initial Expert Report, CX00001524 at 554.

RESPONSE: Admitted.

- i. There are significant financial and practical barriers to motor carrier substitution of owned or leased chassis for daily rental chassis.**

694. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Langenfeld Initial

Expert Report, CX00001266 at ¶ 48.

RESPONSE: Denied. Respondents’ expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶98-104. (*See also*, Response to no. 684, *supra*)

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”).

695. A [REDACTED]
[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 49; Giltz (Evans Delivery) Dep., CX00000186 at 160:20-162:20; Scott George (TCW) Dep., CX00000640 at 152:7-154:8.

RESPONSE: Denied. Respondents’ expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”).

696. [REDACTED]
[REDACTED]. Coates Initial Expert Report, CX00001524 at 538.

RESPONSE: Admitted.

697. [REDACTED]
[REDACTED]:
[REDACTED]

[REDACTED]

Id.; see also Coates Dep., CX00000871 at 172:17-23 [REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Admitted.

698. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 55.

RESPONSE: Denied. Respondents’ expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”).

699. [REDACTED]

[REDACTED]. *Id.* at ¶ 49; Manning Dep., CX00000247 at 157:6-159:21, 166:7-22; Giltz (Evans Delivery) Dep., CX00000186 at 161:3-16.

RESPONSE: Denied. The referenced testimony contains general assertions regarding the efficiency of chassis operations at railyards which are not material. (Order, at p. 6) Furthermore,

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 52 (addressing Respondents’ assertion that facts regarding the efficiency of operations at rail terminals are not material or relevant), 524 (addressing Respondents’ assertion that facts regarding the efficiency of interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant). Further, the fact that [REDACTED] does not rebut the statement.

700. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 49.

RESPONSE: Denied. The referenced testimony contains general assertions regarding the efficiency of chassis operations at railyards which are not material. (Order, at p. 6) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 52 (addressing Respondents’ assertion that facts regarding the efficiency of operations at rail terminals are not material or relevant), 524 (addressing Respondents’ assertion that facts regarding the efficiency of

interoperable pools and/or the inefficiency of non-interoperable pools are not material or relevant). Further, the fact that [REDACTED]

[REDACTED].

701. [REDACTED]

[REDACTED]. *Id.* at ¶ 50; CX00002586 (Fentress Dep. Ex. 16) at 589.

RESPONSE: Admitted.

702. [REDACTED]

[REDACTED].

Langenfeld Initial Expert Report, CX00001266 at ¶ 50; Manning Dep., CX00000247 at 159:14-21, 163:10-25.

RESPONSE: Denied. Whether a motor carrier can be compensated for the use of its own chassis in a CH move will depend on the agreement between the motor carrier and the ocean carrier. However, in a CH move, since the ocean carrier arranges for the chassis and pays the IEP for its use, there is no reason why a motor carrier would use its own chassis to transport a container moving on a CH basis.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents fail to support their denial of this material fact with any citation and do not contend that the statement is immaterial; therefore, this statement must be deemed admitted.

703. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 51; Scott George (TCW) Dep., CX00000640 at 152:7-153:2.

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*) Furthermore, [REDACTED]

[REDACTED]

[REDACTED].

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents' assertion that their expert "has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons"). Further, the fact that one motor carrier "[REDACTED]" [REDACTED] [REDACTED]. *See also* Coates Dep., CX00000871 at 172:17-23 (Respondents' industry expert agreeing that [REDACTED] [REDACTED]).

704. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 52; Declaration of Randy Clifford (Ventura), CX00001706 at ¶¶ 7-9.

RESPONSE: Deny that this SUMF is material, but admit that motor carriers engaged in the transport of heavy or specialized containers purchase or lease specialty chassis. This SUMF is not material because a motor carrier, such as Ventura Transport, is not engaged in the business of transporting intermodal containers. As to paragraph 52 of Dr. Langenfeld's Report, Respondents' expert has opined that by Dr. Langenfeld's opinions are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”).

705. [REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 52.

RESPONSE: Admitted.

706. [REDACTED]
[REDACTED]. *Id.*; Declaration of Randy Clifford (Ventura), CX00001706 at ¶ 8.

RESPONSE: Deny that this SUMF is material because it does not involve any allegation made by IMCC in this proceeding; but admit that specialty chassis are not subject to the benefits of a gray pools.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents admit that “specialty chassis are not subject to the benefits of gray pools” and do not provide any evidence disputing that this is “[REDACTED]” Further, this statement is material as a rebuttal to Respondents’ argument that IMCC ignores the ability of motor carriers to provide their own chassis. Respondents’ Response Memorandum 8.

707. [REDACTED]
[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 52.

RESPONSE: Denied. This generalization is not adequately supported by testimony from one

regional motor carrier and “interviews” that were conducted by IMCC’s witnesses off of the record in the absence of Respondents counsel. Furthermore, this statement is not relevant or material because it does not implicate any allegations made by IMCC in this proceeding. Respondents’ expert has opined that by Dr. Langenfeld’s opinions are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”), 706 (addressing Respondents’ assertions that a statement regarding specialty chassis “does not implicate any allegations made by IMCC in this proceeding”). Respondents have not proffered contradictory evidence. Further, experts are permitted to rely on interviews with knowledgeable individuals. Fed. R. Evid. 703. This statement is material as a rebuttal to Respondents’ argument that IMCC ignores the ability of motor carriers to provide their own chassis. Respondents’ Response Memorandum 8.

708. [REDACTED]

[REDACTED]. *Id.* at ¶ 53; Scott George (TCW) Dep., CX00000640 at 152:7-153:2; Lawrence (OCEMA) Dep., CX00000448 at 141:21-144:16.

RESPONSE: Denied. This statement is not relevant or material because it does not implicate any allegations made by IMCC in this proceeding.

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16; *see also supra*, ¶¶ 684 (addressing Respondents’ assertion that

their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”), 706 (addressing Respondents’ assertions that a statement regarding specialty chassis “does not implicate any allegations made by IMCC in this proceeding”).

709. [REDACTED]
[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 53.

RESPONSE: Denied. Respondents’ expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”).

710. [REDACTED]
[REDACTED]. *Id.* at ¶ 54; *see also* Giltz (Evans Delivery) Dep., CX00000186 at 163:23-163:10; Lhotak (CPG) Dep., CX00000477 at 40:22-41:5 [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

RESPONSE: Denied. This generalization is not adequately supported by the cited testimony from two motor carriers. Furthermore, the testimony cited does not support the statement because it is clear that [REDACTED] was responding to a question about [REDACTED] and not [REDACTED]. (Lhotak Dep., p. 40, l. 2 – p. 41, l. 22, APP2126-27). As to paragraph 57 of Dr. Langenfeld’s Report, Respondents’ expert has opined that by Dr.

Langenfeld’s opinions are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*) .

REPLY: There is no dispute of material fact. Respondents do not deny that the statement accurately quotes the cited testimony. Further, Respondents’ experts do not dispute that smaller motor carriers tend to lack the capital and ability to invest in storage space or infrastructure required for chassis. *See* Reitzes Rebuttal Report, CX00001625 at ¶ 100 (“[REDACTED]

[REDACTED]” (emphasis added)); *see also* Coates Dep., CX00000871 at 172:17-23

(Respondents’ industry expert agreeing that [REDACTED]

[REDACTED]).

711. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 54; Giltz (Evans Delivery) Dep., CX00000186 at 125:16-128:15.

RESPONSE: Admitted.

712. The [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 57. [REDACTED]

CX00005367 at 367.

RESPONSE: Denied. As to paragraph 57 of Dr. Langenfeld’s Report, Respondents’ expert has opined that Dr. Langenfeld’s opinions are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*) Consistent

with [REDACTED], the question of whether a motor carrier procures his or her own chassis is determined by which alternative is more attractive: daily chassis rentals or an investment in self-supplying a chassis.

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”). Respondents also do not contest that the statement accurately quotes Mr. Tock’s testimony.

713. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Langenfeld
Initial Report, CX00001266 at ¶ 57 n.83.

RESPONSE: Denied. Respondents’ expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”).

ii. Daily Chassis Usage for MH Movements is a relevant product submarket.

714. The ocean carriers’ tariffs distinguish between: (1) ocean carrier transportation provided under through or “store-door” rates that included chassis and for which ocean carriers

are billed at IEPs’ CH rates, and (2) ocean carrier transportation provided under port-to-port tariffs or inland tariffs terminated at intermodal rail terminals which require motor carriers and/or their customers to obtain chassis at IEPs’ MH rates. Joint Stipulations at ¶¶ 30, 33, 47, 49, 63, 65, 77, 79, 92, 94, 107, 109, 122, 124, 138, 140, 152, 154, 168-69, 181, 183.

RESPONSE: Admitted.

715. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 62.

RESPONSE: Denied. Respondents’ expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”).

716. [REDACTED]

[REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 62.

RESPONSE: Denied. Respondents’ expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*).

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”).

717. [REDACTED]
[REDACTED].

Langenfeld Initial Expert Report, CX00001266 at ¶ 63.

RESPONSE: Denied. Respondents’ expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”).

718. [REDACTED]
[REDACTED]
[REDACTED]. *Id.*

RESPONSE: Denied. Respondents’ expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”).

719. [REDACTED]
[REDACTED]. *Id.*

RESPONSE: Denied. This statement is denied because it makes a statement that is not conclusive but “may” be the case. As such, this is inappropriately characterized by IMCC as a “fact” because it is also true that [REDACTED] *may not* [REDACTED].

REPLY: Respondents have not provided citations demonstrating the existence of a genuine issue as to the stated fact, and therefore the fact should be deemed Admitted for purposes of the Motion. *See* Initial Order, ¶ 16. Respondents’ assertion that “it is also true that [REDACTED] *may not* [REDACTED]” does not rebut the statement.

720. [REDACTED]

[REDACTED]. *Id.*; Chung (Wan Hai) Dep., CX00000304 at 40:22-41:5; Houghtalin (COSCO) Dep., CX00000337 at 88:2-89:3; Micena (Yang Ming) Dep. CX00000001 at 77:17-24.

RESPONSE: Admitted.

721. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 63.

RESPONSE: Denied. Respondents’ expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. *See*, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”).

722. [REDACTED]

[REDACTED]. *Id.* at ¶ 63, Ex. 4.

RESPONSE: Denied. Respondents’ expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*) Further, this statement is denied because it suggests that NACPC has not raised its rates which is demonstrably false. (*See* NACPC Pricing at <https://web.archive.org/web/20170316095204/https://www.nacpc.org/pricing/> as compared to NACPC’s present pricing available at [nacpc.org/pricing](https://www.nacpc.org/pricing/)). This statement is also denied because it ignores other possible factors for chassis price reductions such as efficiencies in utilization, aging equipment, and increased volume commitments.

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”). In addition, Respondents’ citation to non-party NACPC’s website pricing is not record evidence and does not contradict the statement that “[REDACTED]” “[REDACTED].” The fact is based on Respondents’ own business record, which compares IEP pricing. *See* Langenfeld Initial Expert Report, CX00001266 at ¶ 60; CX00004936 at 960. Further, Respondents’ assertion that the statement “ignores other possible factors” is an insufficient rebuttal because it is not supported by any citation to the record.

723. [REDACTED]

[REDACTED]. *Id.* at ¶ 63.

RESPONSE: Denied. Respondents’ expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

REPLY: There is no dispute of material fact. *See supra*, ¶ 684 (addressing Respondents’ assertion that their expert “has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons”).

B. Relevant Geographic Markets

724. Container drayage distance rarely exceeds 500 miles, which is the average distance for all truck shipments in the United States. CX00001920 at 920, *Average Length of Haul, Domestic Passenger and Freight Transport, United States, 1960-2016*, THE GEOGRAPHY OF TRANSPORT SYSTEMS, <https://transportgeography.org/contents/chapter5/transportation-modes-modal-competition-modal-shift/length-haul-passengers-united-states/> (last visited Feb. 28, 2022).

RESPONSE: Admitted.

725. In 2017, 39% of the value and 65% of the weight of all goods carried by trucks in the U.S. travelled fewer than 50 miles. *Id.* at 921.

RESPONSE: Admitted.

726. Drayage moves take place on even shorter distances than the national truck haul average, limiting the distance for which a chassis is used and returned. Evidence from Atlanta shows a notable decline in the average drayage distance from 216 miles in 2018 to 155 miles in 2019. CX00001926 at 928, Ari Ashe, *US drayage rates rise as length of haul shrinks*, THE JOURNAL OF COMMERCE (July 19, 2019), https://www.joc.com/trucking-logistics/drayage/us-drayage-rates-rise-length-haul-shrinks_20190719.html.

RESPONSE: Admitted.

727. For the Los Angeles/Long Beach drayage market, about 59% of trips were for less than 40 miles in 2013. CX00001886 at 894, CALSTART, *Key Performance Parameters for Drayage Trucks Operating at the Ports of Los Angeles and Long Beach* (Nov 15, 2013), https://calstart.org/wp-content/uploads/2018/10/I-710-Project_Key-Performance-Parameters-for-

Drayage-Trucks.pdf.

RESPONSE: Admitted.

728. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Rodrigue

Initial Expert Report, CX00001362 at ¶165.

RESPONSE: Admitted.

729. [REDACTED]

[REDACTED]

[REDACTED]. *Id.*

RESPONSE: Admitted.

730. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *Id.*

RESPONSE: Admitted.

731. [REDACTED]

[REDACTED] According to Respondent CCM, “The Pools were developed large enough to try and encompass enough geography to encircle the migration of chassis between locations. Costs vary by region of the country, so the Pools’ geography was also considered to be small enough to help differentiate regional costs.” *Id.* at ¶ 166; *see also* CX00001923 at 923, CCM, *Frequently Asked*

Questions – General Subject Matters (Sept. 22, 2017),
<https://www.ccmpool.com/UploadedDocuments/Frequently-Asked-Questions-9-22-17.pdf>.

RESPONSE: Admitted.

732. [REDACTED]
[REDACTED]
[REDACTED].

The IEPs also proposed rates to ocean carriers by geographic region. *See* [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Denied. This SUMF does not contain a concise statement of material fact in violation of Initial Order, ¶15. In addition, this SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation. [REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶ 113 (addressing Respondents’ assertion regarding the relevance, materiality, and/or admissibility of the cited document or communication because it includes locations outside of the scope of geographic discovery). The fact that [REDACTED]
[REDACTED] does not contradict the fact that [REDACTED] and

that IEPs proposed rates to ocean carriers by geographic region [REDACTED]
[REDACTED].

733. [REDACTED]
[REDACTED]
[REDACTED]. Rodrigue Initial
Expert Report, CX00001362 at ¶¶ 170-76.

RESPONSE: Denied. “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. Respondents’ quotation does not address [REDACTED]
[REDACTED]. In fact, the quoted language from Respondents’ industry expert reinforces [REDACTED]
[REDACTED]. Respondents also admit [REDACTED]
[REDACTED]. *See supra*, ¶ 731.

734. In particular:
- The region surrounding the port facilities at Los Angeles / Long Beach is a relevant geographic market. *Id.* at ¶¶ 170, 179.
 - The region surrounding the intermodal rail facilities of Chicago, Illinois is a relevant geographic market. *Id.* at ¶¶ 171-72, 179.

- The region surrounding the intermodal rail facilities of Memphis, Tennessee is a relevant geographic market. *Id.* at ¶¶ 173-74; 179.
- The region surrounding the port facilities at Savannah, Georgia is a relevant geographic market. *Id.* at ¶¶ 175-76, 179.

RESPONSE: Denied. “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

REPLY: There is no dispute of material fact. The quoted language from Respondents’ industry expert reinforces the differences among regional markets. Respondents also admit [REDACTED]
[REDACTED]. *See supra*, ¶ 731.

[REDACTED]
[REDACTED]. *Id.* at ¶ 179.

RESPONSE: Denied. “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. *See supra*, ¶¶ 733-34. Further, the Dr. Reitzes quote relied on by Respondents does not discuss the relevant *geographic* markets.

IX. ADDITIONAL FACTS.

736. A [REDACTED]

[REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 112.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

REPLY: There is no dispute of material fact. The [REDACTED]

[REDACTED] is at issue in this case; simply citing to Respondents’ experts’ explanation of [REDACTED] in an untimely declaration is insufficient to rebut that [REDACTED]

[REDACTED] as described in ¶ 736.

737. [REDACTED]
[REDACTED].

Id. at ¶ 113.

RESPONSE: Denied. “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

REPLY: There is no dispute of material fact. The section of Respondents’ expert’s report that is quoted contains **no** citations to the record. Further, Respondents’ expert’s hypothetical regarding [REDACTED] is not responsive to [REDACTED]. Respondents’ own expert’s testimony also confirms that [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].”

Coates Dep., CX00000871 at 265:20-266:4.

738. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *Id.* at ¶¶ 114-15.

RESPONSE: Denied. *Id.* at 1544-5

REPLY: There is no dispute of material fact. The quoted section of Respondents’ expert’s report contains **no** citations to the record.

739. The FMC-assembled Memphis Supply Chain Innovation Team submitted a white paper titled “A Single Gray Chassis Pool Fosters Fluid Commerce and Improves Supply Chain Velocity” in 2019, in which it concluded that “the answer to reducing gridlock and improving supply chain velocity in the Mid-South is a single gray chassis pool in Memphis offering greater supply, quality, fair access, and accountability. A gray pool allows interoperability of all chassis, which is the exchange of any [] chassis for usage.” CX00006417 at 150 (emphasis in original).

RESPONSE: Admit that the white paper referenced in this SUMF was prepared and that the quotation from same is accurate.

Respectfully submitted,

DATED: June 13, 2022

/s/ W. Stephen Cannon

W. Stephen Cannon
David D. Golden
Seth D. Greenstein
Richard O. Levine
Allison F. Sheedy
J. Wyatt Fore
Paulette Rodríguez López
Janice Johnson
Osob M. Samantar
CONSTANTINE CANNON LLP
1001 Pennsylvania Avenue, NW
Suite 1300 N
Washington, DC 20004
Phone: 202-204-3500
scannon@constantinecannon.com

Daniel Vitelli
CONSTANTINE CANNON LLP
335 Madison Avenue
9th Floor
New York, NY 10017
Phone: 212-350-2700
dvitelli@constantinecannon.com

*Attorneys for Complainant
Intermodal Motor Carriers Conference
of the American Trucking Associations*